

ACRC KOREA

Annual Report 2023



Anti-Corruption &
Civil Rights Commission



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ACRC KOREA Annual Report 2023



Anti-Corruption &
Civil Rights Commission

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Greetings from the Chairperson



Since its establishment in 2008, the Anti-Corruption & Civil Rights Commission (ACRC) has been dedicated to fostering a society free from corruption and unfair practices and to resolving the challenges faced by the public due to illegal and unfair administrative practices.

In 2023, the ACRC made significant policy efforts to embed the value of integrity in public service and make tangible improvements that benefit the public. By closely listening to and resolving public grievances, we have strived to become the ACRC that Empowers the People.

Key initiatives in 2023 included the launch of the Integrated Center for Reporting Hiring Irregularities to enhance fairness in public sector recruitment. This involved thoroughly investigating recruitment practices in public service-related organizations, addressing reports of irregularities, and consulting on public service-related organizations' regulations to eliminate blind spots. Moreover, taking into account the evolving social and economic conditions, the ACRC has revised the definition of permissible gifts under the Improper Solicitation and Graft Act to include gift certificates for goods and services, and to increase the value limits of gifts for agricultural and fishery products.

The ACRC also tackled fraudulent payments in vulnerable sectors, such as fuel subsidies and agricultural subsidies, as per the Act on the Prevention of False Claims of Public Funds, recommending the recovery of KRW 10.1 billion. Furthermore, the ACRC enhanced protection and support for public interest whistleblowers by increasing the upper limit of rewards from KRW 200 million to KRW 500 million.

Such efforts have bolstered Korea's international reputation in anti-corruption. In 2023, the ACRC hosted 90 officials from 14 countries, including Senegal, Kyrgyzstan, the Philippines, and India, who visited to study Korea's anti-corruption policies.

The ACRC has undertaken a variety of initiatives to safeguard the rights and interests of the people. The ACRC enhanced field-oriented rights redress through the Onsite Outreach Service for marginalized and vulnerable groups, while actively mediating and resolving persistent collective grievances, such as those involving the Yeongju Multipurpose Dam. In addition, the ACRC established the Administrative Appeals Integration Planning Team to facilitate the shift towards ONE-STOP Administrative Appeals, streamlining administrative appeals mechanisms and systems for citizen convenience.

Through big data analysis of public complaints, the Commission provided recommendations to



relevant organizations on issues such as improving the conditions of reserve military training and providing support for infertile couples. Furthermore, the ACRC also has improved the unreasonable system, including extending the validity period for certified language exam scores used in national qualification exams and addressing frequent complaints concerning the challenges faced by low-income individuals due to delayed payment of health insurance premiums.

Looking ahead to 2024, amid the global low growth, it is expected that social and economic difficulties will persist for the underprivileged, small business owners, youth, and vulnerable groups. Taking these challenging conditions into account, the ACRC will continue to engage with the public to effectively resolve grievances and social conflicts, fundamentally improve systems causing inconvenience, and uphold the principles of fairness and common sense, helping Korea advance as a nation of integrity.

First of all, the ACRC will visit the field for major social issues to find the cause of the problem and seek solutions. Rather than desk-based administration, the ACRC will set the direction of policy and actively protect the rights and interests of the people through communication with the public via On-site Business Grievance Meetings, Onsite Outreach Services, and On-site Mediation of Collective Complaints. Furthermore, the ACRC will identify the people's demands for policy improvement through Big Data Analysis of Civil Complaints, People's Idea Box, and Civil Proposals to achieve tangible results. The ACRC aims to realize an administration without partitions within and outside the Commission to swiftly address unreasonable systems and practices.

It is also important to create a culture of integrity that fits Korea's international standing. To meet the public's expectations and demands, the ACRC will systematically eradicate corruption by examining public sector recruitment irregularities, inspecting corruption practices at local institutions such as local councils, and overseeing the management of sanctions for the illegal receipt of government subsidies. Moreover, the ACRC will rationalize anti-corruption laws to improve system effectiveness by adapting them to the changing environment and further strengthen the protection and rewards for corruption and public interest whistleblowers, encouraging confident reporting.

The ACRC Annual Report 2023 faithfully documents the ACRC's endeavors over the past year. The ACRC hopes this publication will be a valuable resource for those interested in the ACRC, contributing to policy development and research.

Ryu Chul Whan
Chairperson
Anti-Corruption & Civil Rights Commission



Part
01

Assessment and Future
Direction of Policies for
People's rights and Interests



Chapter 1. Achievement for the Past Year and the Way Forward

The Anti-Corruption and Civil Rights Commission (the ACRC) of Korea was established on February 29, 2008, by integrating three institutions, Ombudsman of Korea, Korea Independent Commission Against Corruption, and the Administrative Appeals Commission under the Prime Minister to effectively prevent corrupt practices and to swiftly resolve infringements on people's rights and interests caused by unreasonable administrative actions.

1. Major Achievements in the Past Year

A. Enhancement of the Corruption Perception Index by Actively Promoting Anti-Corruption and Fairness Reform Initiatives

The ACRC, as a leading organization for the pan-governmental anti-corruption initiative, has led anti-corruption and fairness reforms to realize a transparent and fair society. The Commission focused its efforts on improving policies to embed anti-corruption reforms in civil society and everyday lives of people.

Most of all, the ACRC sought to strengthen the legal and institutional framework to improve the effectiveness of anti-corruption efforts.

The 「Act on the Prevention of Conflict of Interest Related to Duties of Public Servants」, enacted in 2021, is a law that prevents conflicts of interest that may arise during public servants' duties through reporting and avoidance by private stakeholders and establishes reasonable interpretation standards. Last October, the work handbook of the Conflict of

Interest Prevention Act was distributed to relevant organizations of various levels. In addition, briefing sessions and promotions for each region were held to ensure that each organization clearly understood the legal interpretation and application standards.

The 「Improper Solicitation and Graft Act」, which came into effect in 2016, is a law to ensure fairness in the performance of duties by preventing public officials from abusing their public position and authority for private gain. A reasonable adjustment was made last August to reflect changes in the social and economic environment and consumption patterns after this Act was implemented. For example, goods or service gift certificates were included in the gift standards permitted under the Improper Solicitation and Graft Act, and the permissible value of gifts of agricultural and fishery products / processed agricultural and fishery products was increased from KRW 100,000 to KRW 150,000.

In January, to strengthen hiring fairness, the existing 'Task Force (TF) for the Eradication of Recruitment Irregularities in Public Institutions' was expanded and reorganized into the 'Center for Reporting Recruitment Corruption Integrated.' Inspections were also conducted on the appropriateness of recruitment in public service-related organizations. Additionally, blind spots in hiring process have been eliminated by handling reported cases of employment corruption and providing consulting for the improvement of employment regulations for public service-related organizations and recommending improvements to the hiring standards for non-civil servants in administrative agencies, etc.

The ACRC responded swiftly and strictly to various corruption cases.

Intensive inspection of the code of conduct and inspection of operation status were conducted as follow : In April, an inspection was conducted on excessive notices of congratulations and condolences by local government heads, and in May, an inspection focused on the preferential use of sports and cultural facilities. Through these preventive activities, the recurrence of similar cases was prevented. In addition, violations of the code of conduct were actively prevented through intensive inspections at times when corruption is likely to occur, such as during major holidays.

Based on the 「Act on Prohibition of False Claims for Public Funds and Recovery of Illicit Profits」 enacted in 2020, a fact-finding survey was conducted on vulnerable areas including fuel subsidies and agricultural subsidies. As a result, in February, 203 local governments were advised to reclaim KRW 10.1 billion. During the first half of the year, regular inspections were conducted on sanctions against unlawful receipt of funds by 308 agencies at various levels, including central ministries, local governments, and offices of education. These efforts led to the agencies' initiatives to recover illegally received funds.

Thanks to these efforts, Korea is maintaining its high international status, ranking 32nd out of 180 countries in 2023 in the Corruption Perceptions Index (CPI) published annually by Transparency International (TI).

B. Active Processing of Corruption and Public Interest Violation Reports and Whistleblower Protection for the Realization of Public Interest

While making it easier for citizens to make corruption and public interest violation reports, and helping government agencies process the reports they receive more efficiently, the ACRC continues to strengthen its institutional foundation to provide balanced protection and support to reporters.

First, in order to encourage reporting and establish a reward level that meets the public's expectations, the 「Public Interest Whistleblower Protection Act」 was revised in March to allow monetary rewards to be paid even if the revenue of not only public institutions such as national and local governments as well as public corporations / organizations for public interest, is recovered or increased through public interest reporting.

In December, the 「Enforcement Decree of the Public Interest Whistleblower Protection Act」 and the 「Enforcement Decree of the Act on Prohibition of False Claims for Public Funds and Recovery of Illicit Profits」 were revised. As a result, monetary rewards at the same level can be paid to those who report acts of public interest infringement or fraudulent claims of public funds as those who report acts of corruption. The upper limit of monetary rewards

for reporting was increased from KRW 200 million to KRW 500 million, and the reward rate for whistleblowing disclosure was also increased from a maximum of 20% to a maximum of 30%.

Meanwhile, integrated services including reporting-related consultation, application, protection, and compensation are provided to the public. The number of institutions using 'Clean Portal,' a platform that allows anti-corruption tasks under the jurisdiction of each level of institution to be processed, shared, and collaborated online, increased to 1,122 public institutions by the end of 2023.

As a result of these efforts, 6,854 corruption reports and 2,990 public interest violation reports were received in 2023, and a total of 5.6 billion won were paid out in awards, rewards, etc.

C. Strengthening People-oriented Advocacy Efforts

The ACRC also actively carried out activities as the leading organization for pan-governmental advocacy for rights and interests by actively utilizing the functions of grievance handling, administrative appeals, and counseling,

First, the ACRC actively resolved grievance petitions that violated people's rights or caused inconvenience or burden for people's lives. In 2023, the Commission resolved a total of 42,582 grievances and operated the "Outreach Complaint-Handling Bus" 104 times to visit people in blind spots such as marginalized areas and the underprivileged, counseling 2,264 grievances and resolving 1,326 grievances on the spot. This effort aimed at quickly resolving the grievances of local residents and socially disadvantaged people with increased social and economic difficulties.

In addition, the ACRC identified and resolved collective grievances that had been unresolved amicably by local governments and others through active mediation. This reduced the social costs of conflicts and fulfilled the wishes of residents. In 2023, the demand for the completion of the Yeongju Multipurpose Dam, which had been delayed due to the restoration of cultural assets, was resolved, and the conflict over publicly owned land

requested by residents of a village for persons affected by Hansen's disease was also resolved. A total of 63 collective civil complaints were resolved, including restoring and opening Anheung Castle, which had been neglected due to a military facility protection zone.

The Government Complaint Counseling Center, which was launched in October 2019 to provide one-stop consultation for complaints involving multiple agencies without partitions, received 29,394 complaints in 2023, and responded to more than 2.55 million requests for consultation during the same period through the government's complaint information line, the 110 Government Call Center. In addition, since January, the '☎1398 Telephone Consultation System Enhancement Project' was newly established, which has increased convenience by sending consultation details and instructions to counselees by text, and consultation history has been managed more systematically.

Meanwhile, through the Central Administrative Appeals Commission (CAAC), the ACRC received 30,896 administrative appeal cases in 2023 and upheld a total of 1,247 petitions, including those concerning unlawful and unfair dispositions by administrative agencies. The 'Easy Administrative Appeal' service, which automatically completes a claim by simply entering basic disposition information, was expanded to a total of 51 organizations in 2023, increasing public convenience in filing an administrative appeal. In addition, support is being actively provided for the use of administrative appeals by socially and economically disadvantaged people, with a total of 102 administrative appeals being processed in 2023 through a court-appointed defense counsel system for administrative appeals.

D. Implementation of Policies Co-created with Citizens Using Digital Platforms

The ACRC is a public communication organization that oversees various digital participation and communication platforms such as the e-People and the People's Idea Box. The e-People, which was completely reorganized in 2020 to provide more convenient and efficient services, is a system that integrates and connects the civil complaints channels of a total of 1,163 administrative agencies and public institutions. A total of 12.4 million civil complaints were received in 2023.

The People's Idea Box is a digital policy participation platform that allows citizens to directly participate in policy proposals and improvements. The size of the national panel, which totaled about 9,200 people in 2021, increased to about 22,000 people at the end of 2023 and continues to increase. In 2023, a total of 65,000 policy agendas were discussed in the People's Idea Box, with public participation totaling 710,000.

In addition, the ACRC actively supported policy improvements at all levels by analyzing complaint data on major government policies and social issues. Civil complaints on major policy and social issues were analyzed, including improvement of institutional inconveniences related to drills for the reserve forces, proposals for infertility policy, and improvement of the CSAT mock evaluation system. The results were then provided to the relevant organizations to request policy improvement and corrective action. 'Voice of the People,' a weekly and monthly trend monitoring big data on civil complaints, was published 44 times, and provided to 1,773 organizations.

The voices of the people lead to efforts to identify and address problems in systems and policies. In order to fundamentally eliminate laws and systems that cause inconvenience to the public, foster corruption, or are unreasonable, recommendations were made to the relevant agencies. These included, in February, the 'disclosure of interview scores for public official recruitment examination', in October, 'expansion of the validity period for official language test scores for national qualification examinations', and in November, 'improvement of the product management system of local governments and public service-related organizations' and 'measures to resolve civil complaints regarding frequent non-payment of health insurance premiums in the low-income bracket.'

Through the active administration national application system introduced in 2021, approximately 3,000 applications, including 'simplification of submission procedures of a physical examination report when hiring short-term teaching staff' and 'Improvement of the procedure for issuing health examination results at public health centers,' etc. were reviewed and screened, and 228 active administration recommendations were made to the relevant agencies.

2. The Way Forward

In 2024, the ACRC will actively communicate with citizens to effectively resolve public grievances and social conflicts, fundamentally improve systems that cause inconvenience to the public, and establish principles of fairness and common sense to lead the leap toward becoming an advanced country with integrity.

First, the ACRC will strengthen communication with citizens and actively protect people's rights and interests.

Although Korea's economic growth outlook for 2024 is improving, there are concerns that social and economic difficulties will continue for ordinary people, small business owners, young people, and vulnerable groups as the low growth trend continues around the world. The ACRC plans to resolve blind spots in policy by actively communicating in the field and focusing on protecting field-centered rights and interests. In addition, the ACRC plans to enable the public to receive remedies more easily and conveniently by implementing a one-stop administrative appeal service.

Second, the ACRC will quickly improve the unreasonable system through barrier-free administration.

2024 marks the third year since the government was launched, and the people are looking forward to tangible policy results. The ACRC will strive to bring about substantive changes in matters of public interest, such as support for the young generation, improving economic vitality, and realizing a fair society by identifying the public's demand for policy improvement through big data analysis on civil complaints and policy proposals and discussions through the People's Idea Box and leading the improvement of unreasonable systems and practices through active collaboration between ministries and departments.

Third, the ACRC will strive to realize a society of integrity that meets the public's expectations.



Despite improvements in various international anti-corruption indices, such as the Corruption Perceptions Index (CPI), the public's expectations and demands for fairness have further increased. In particular, Korea's CPI is relatively low compared to its status in other areas such as economic size and cultural influence. Therefore, the ACRC plans to intensively inspect corruption and customary corruption in local areas closely related to people's lives and actively improve corruption-causing factors. It is planning to increase the effectiveness of anti- corruption and integrity policies and create a transparent society for future generations by rationally reorganizing anti-corruption laws and policies in line with the changing environment.

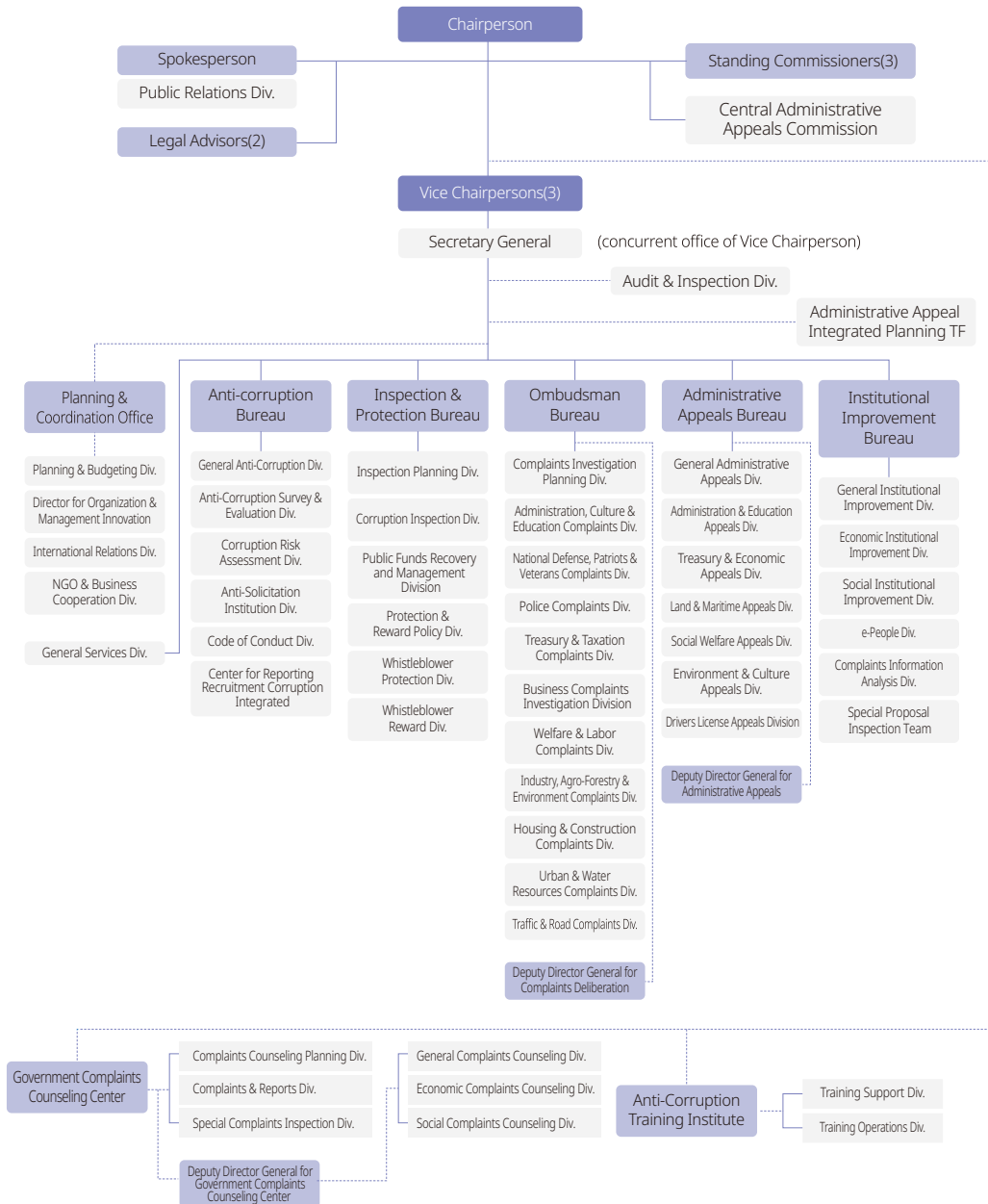




Chapter 2. Organization and Operation of the ACRC

The Anti-Corruption and Civil Rights Commission (ACRC) consists of 15 members, including one Chairperson, three Vice Chairpersons, and three standing commissioners. The Chairperson, Vice Chairpersons, and commissioners are appointed or commissioned according to the qualifications prescribed by law. Each of three Vice chairpersons assists the Chairperson by handling grievances, addressing anti-corruption, and the operating the Central Administrative Appeals Committee (CAAC), respectively. The Commission also has a secretariat that handles its affairs. The position of Secretary General is concurrently held by one of the Vice Chairpersons designated by the Chairperson. The secretary general takes charge of dealing with administrative affairs of the Commission under the direction of the Chairperson, and supervises and directs the employees (currently 564) of the Commission.

○ [Figure 1-1] Organization chart



The ACRC's annual revenue budget for 2023 was KRW 823 million, and the tax expenditure budget was KRW 94.96 billion. This included KRW 47.83 billion for personnel expenses, KRW 7.44 billion for basic expenses, and KRW 39.69 billion for primary work expenses.

In 2023, the plenary committee meeting held 26 meetings to address 1,064 items, and the small committees held 204 meetings to handle 10,787 items, and the subcommittee held 50 meetings to process 400 items.

<Table 1-1> Committee meetings held in 2023

(unit : times, cases)

Committee			2023
Plenary Committee	Meeting		26
	Item	Resolution - Decision	935
		Report	129
		Total	1,064
Small Committee	1 st small committee	Meeting	41
		Item	4,434
	2 nd small committee	Meeting	41
		Item	2,312
	3 rd small committee	Meeting	40
		Item	1,757
	4 th small committee	Meeting	42
		Item	909
	5 th small committee	Meeting	40
		Item	1,375
Subcommittee	First subcommittee	Meeting	25
		Item	167
	Second subcommittee	Meeting	25
		Item	233
	Total	Meeting	50
		Item	400
Total	Meeting		280
	Item		12,251



Chapter 3. Private-Public Cooperation and Support for Ethical Business Management

The ACRC has continued to expand communication and cooperation through policy participation by private organizations and the public to protect people's rights and spread a culture of integrity while strengthening its support to promote integrity and ethical management in the business sector at the government level.

Section 1 Support for the Spread and Establishment of Ethical Management of Business

To improve the practice of integrity and ethics management and transparency in public enterprises, the ACRC has been promoting the development of the Integrity and Ethics Management Compliance Program (K-CP) since 2021. In June 2022, the Commission distributed the K-CP Guidelines to public institutions. The K-CP is an anti-corruption compliance program that enables each institution to autonomously establish an integrity and ethics management system and prevent, detect, and improve corruption risks.

In July 2021, the ACRC signed an MoU with six public corporations including the Korea Electric Power Corporation, the Korea Gas Corporation, the Korea District Heating Corporation, the Korea Land and Housing Corporation, the Korea Expressway Corporation, the Korea Water Resources Corporation, etc. to develop a system that matches the management field. The ACRC has frequently held meetings and open discussions with experts and stakeholders to support this initiative.

In November 2022, the ACRC has established a cooperation system by forming a working council with the Korea Chamber of Commerce and Industry, the Korea Enterprises Federation, the

Federation of Korean Industries, the Korea Federation of Small and Medium Business, etc.

The ACRC has been in constant communication to build consensus on the practice of integrity and ethical management, extending beyond the public sector to all areas of society.

In 2023, the ACRC conducted consulting, performance presentations, site visits, and surveys targeting 20 public institutions, including public enterprises, quasi-governmental organizations, local public corporations & organizations for public interest. Support was provided for the implementation of Corruption Prevention (CP) measures to ensure practical corruption risk management at the institutional level.

In 2024, the ACRC plans to continue to support companies to actively respond to global anti-corruption norms through the distribution of a transparent ethical management CP guidebook for private companies prepared by faithfully reflecting the opinions of stakeholders.

Section 2 Revitalization of Governance for Anti-Corruption and Civil Rights Promotion

The ACRC has formed and operated a 'Public Participation Monitoring Group' to promote anti-corruption and integrity policies that meet the public's expectations. This group identifies and raises relevant anti-corruption issues from the public's perspective and examines and evaluates existing policies to support Korea's advancement as a country with high integrity.

In 2023, 200 people were selected as monitoring agents for the Public Participation Monitoring Group. In particular, in line with the national policy of activating youth participation in policy, the proportion of youth among the monitoring group was increased to 70%, and various activities were conducted under the theme of 'Fairness Desired by Youth.'

The group monitored national policy and proposed improvements. In addition, a survey was conducted regarding the real-life difficulties faced by young people and policies that need to

be improved from a fair perspective. Based on policy proposal activities and survey results, subtopics were presented, and discussion was held for each topic through a youth-centered online discussion forum for integrity and fairness.

Suggestions from the public, including youth, were shared with the relevant departments to be integrated and utilized for system improvement. The ACRC plans to continue engaging with the public and faithfully reflecting various opinions to promote public rights as well as integrity policies.

To enhance accountability and transparency in public administration, the ACRC has been working to promote the Citizen Integrity Inspector System, a private participatory corruption prevention system operated by various institutions.

In line with this, the “Comprehensive Integrity Assessment of Public Institutions” is used to measure the performance of the Citizen Integrity Inspector System across all levels. In 2023, 277 (99.3%) out of 279 organizations subject to the assessment have introduced and are operating the system. The system's effectiveness is evidenced by its successful resolution of correction requests, audit requests, and recommendations for institutional improvement. These actions have led to tangible results, such as the enactment and revision of relevant regulations and the implementation of audits.

Section 3 Discover and Support Programs to Promote Autonomous Integrity and Rights at the Private Level

Since 2007, the ACRC has been selecting and funding projects through an open call to private organizations every year. This initiative aims to foster a culture of integrity and promote people's rights based on autonomy and creativity in their areas of activity.

In 2023, the ACRC selected 8 projects after evaluating their themes, impacts, and the organization's capabilities to carry out them, and granted approximately KRW 150 million.

While increasing the use of video content and online media, the ACRC focused on improving the integrity in the private sector, supporting system improvement projects and projects with a large number of program participants.

Projects that achieved excellent results in 2023 are as follows: 'Public Institutions Youth Ombudsman's 'Public Youth Network' by the Citizens Coalition for Better Government, 'Improvement of Information Accessibility System for Food Safety for the Visually Impaired' by the Eco Justice, 'Finger Interlocking Project: How can we change the laws and systems related to public interest reporting?' by the Whistleblowers Foundation.

The results of the auxiliary project were provided to the relevant departments of the ACRC as reference material so that they could be used in their work. (Data from a discussion session on the actual status survey and improvement direction on food information accessibility for the visually impaired from the Eco Justice / Discussion material related to improvement of laws and systems related to whistleblowers from the Whistleblowers Foundation)





Chapter 4. International Cooperation

In 2023, most in-person international conferences that had been restricted by COVID-19 resumed, and bilateral exchanges expanded, leading to increased international cooperation and activity.

Section 1 International Anti-Corruption Cooperation

1. Implementation and Negotiation of the International Anti-Corruption Convention

The Republic of Korea signed the United Nations Convention against Corruption in 2003 and ratified the convention in 2008. The target of the second cycle of implementation review (scheduled for 2016 to 2025) of the UN Convention against Corruption is Chapter 2 (Preventive Measures) and Chapter 5 (Asset Recovery) of the Convention. The process for Korea began in June 2019. The designation of liaison officers (the Anti-Corruption & Civil Rights Commission, the Ministry of Justice, and the Ministry of Foreign Affairs), the submission of a self-assessment checklist (November 2019), the response to written questions (October 2020) and country visit (October 2022) were conducted. The country review report was completed in December 2023, and Korea's second cycle of implementation review was completed. Meanwhile, Korea was selected, along with Papua New Guinea, as one of the second cycle reviewing countries for Japan in the lottery of inspectors (June 25- 26) prior to the 11th meeting of the Implementation Review Group (Vienna/Video conference on Jun. 29, 2020).

The OECD Anti-Bribery Convention that came into force in February 1999, aims to combat

corruption in international business transactions. Korea signed the Convention in December 1998 and enacted the implementation law for the Convention, known as the Act on Combating Bribery of Foreign Public Officials in International Business Transactions (International Anti-Bribery Act), which went into effect in February 1999. This Act is supported by the Public Interest Whistleblower Protection Act, which offers legal protection to individuals reporting violations of the International Anti-Bribery Act. In December 2023, Korea submitted a written report outlining follow-up measures for the 4th stage review recommendations of the Convention. The OECD plans to conduct a technical inspection of these recommendations in the second half of 2024.

On May 23, 2022, the Indo-Pacific Economic Framework (IPEF), a new trade and economic partnership focused on supply chain, digital, and clean energy, was launched to address common challenges faced by the Indo-Pacific region, including digital transformation, climate change adaptation, and the economic impacts of the pandemic.

With the goal of strengthening cooperation in the Indo-Pacific region, the IPEF focuses on four pillars: trade, supply chain, clean economy (clean energy, decarbonization, and infrastructure), and fair economy (taxation and anti-corruption). At the IPEF Ministerial Meeting held in September 2022, a ‘Ministerial Declaration’ was agreed upon, which stipulated the scope and target of negotiations, and the start of formal negotiations was declared. At the IPEF Ministerial Meeting held in November 2023, the Pillar 2 (Supply Chain) Agreement was signed, and Pillar 3 (Clean Economy) and Pillar 4 (Fair Economy) Agreements were substantially finalized.

2. Participation in Anti-Corruption Meetings with International Organizations

In 2023, India held the G20 presidency, and hosted the first in person G20 anti-corruption ministerial meeting (August 12). The ACRC attended as a representative of Korea and delivered a speech on ‘Korea’s international cooperation efforts against corruption and major anti-corruption policies.’

Along with the outcome document of the anti-corruption ministerial meeting and the chair's summary, as an annex to the summit declaration, the 'High-Level Principles on Promoting Integrity and Effectiveness of Public Bodies and Authorities Responsible for Preventing and Combatting Corruption' were adopted. A compendium of good practices and an accountability report were also submitted as outcomes of the working group meeting.

At the APEC 2023 Anti-Corruption and Transparency Experts Working Group (ACTWG) meeting hosted by the U.S. Department of State, Korea's anti-corruption policies, including support projects to introduce 'Clean Portal' to developing countries in collaboration with UNDP, results of corruption risk assessment, Comprehensive Integrity Assessment of public institutions, and corruption awareness survey, etc. were presented.

The OECD organizes Working Party of Senior Public Integrity Officials (SPIO, twice a year) and the Integrity Forum (once a year) to promote the design and implementation of integrity and anti-corruption policies that support good public governance. At the SPIO and Integrity Forum held in May and November 2023, discussions focused on improving integrity and transparency through expanded lobbying scope, strengthening public-private partnerships, and utilizing digital and information analysis technology in preventing corruption.

Since its establishment in 1999, the ADB/OECD Asia-Pacific Anti-Corruption Council has been supporting anti-corruption efforts in the Asia-Pacific region through the effective implementation of the United Nations Convention against Corruption. Annual events include the coordination group meeting for anti-corruption policy consultation among governments in the Asia-Pacific region and a seminar for anti-corruption capacity development. A public-private joint Asia-Pacific anti-corruption conference is also held every three years. At the Asia-Pacific Anti-Corruption Conference held in May 2023, Korea's whistleblowers protection and reward system and Conflict of Interest Prevention Act were introduced.

In 2013, the ACRC made a voluntary contribution of about KRW 150 million to the International Anti-Corruption Academy (IACA), an international organization dedicated to



anti-corruption education and training, and has been contributing 50,000 euros annually since 2019. At the 12th IACA Conference of the Parties held in Vienna, Austria, in November 2023, the ACRC made a presentation on key achievements such as establishing fair hiring standards for public institutions and providing a 'Corporate Integrity and Ethics Management Compliance Program' to help private companies in aligning with global anti-corruption norms.

3. Anti-Corruption Technical Assistance

As Korea's leading anti-corruption organization under the UN Convention against Corruption, the ACRC provides technical assistance to other countries to help them establish and implement effective policies to prevent and combat corruption.

Through the "MOU on Anti-Corruption Cooperation between ACRC and UNDP" signed on December 4, 2015, the ACRC has supported Vietnam, Uzbekistan, and Kosovo in introducing anti-corruption measures such as the "Corruption Risk Assessment" and "Anti-Corruption Measures Assessment." Starting in 2022, the ACRC have been promoting a project to share the 'Clean Portal,' a digital corruption and whistleblowing disclosure system, with three countries: Mongolia, Uzbekistan, and Kosovo. In February 2023, a webinar was conducted for intensive training for the Clean Portal sharing project. In December 2023, the ACRC signed a MoU with UNDP to extend its period by two years, and plans to carry out an anti-corruption measures assessment sharing project targeting Sri Lanka in addition to the Clean Portal sharing project.

4. Bilateral Cooperation on Anti-Corruption

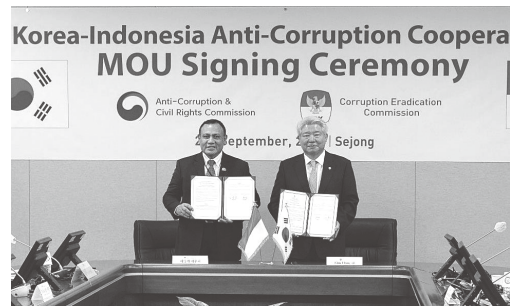
The ACRC signed a new MoU for anti-corruption cooperation with the Uzbekistan Anti-Corruption Agency in September 2023. This agreement aims to support the introduction of Korea's anti-corruption system in Uzbekistan and enhance international anti-corruption cooperation between the two countries.

In October 2023, an anti-corruption cooperation meeting was held with the Central Internal Committee of Vietnam, which visited Korea. After extending the MoU in 2022, it was decided to share the status of Korea's anti-corruption activities such as the Act on the Prevention of Conflict of Interest Related to Duties of Public Servants, Comprehensive Integrity Assessment, and anti-corruption education system and to continue to strengthen.

In July 2023, a delegation from Indonesia's Corruption Eradication Commission visited the ACRC, and a capacity building workshop on the 'Comprehensive Integrity Assessment System' was held for them. In addition, in September 2023, the ACRC agreed to continue to strengthen anti-corruption cooperation and support by re-signing an anti-corruption cooperation MoU with Indonesia's Corruption Eradication Commission.



Workshop on 'Comprehensive Integrity Assessment' for a delegation from Indonesia (17th, Jul)



Re-signing Korea-Indonesia Anti-Corruption Cooperation MoU (25th, Sep)

In addition, in October 2023, policy briefing sessions on Korea's major anti-corruption systems as well as the organization and operation of the ACRC were held for delegations from the Malaysian Anti-Corruption Commission and the Swedish Constitutional Commission who visited Korea, respectively.



Policy briefing session for a delegation
from Malaysia (18th, Oct)



Policy briefing session for a delegation
from Sweden (31st, Oct)

Section 2 Ombudsman Cooperation and International Outreach

The Korea Independent Commission against Corruption, the predecessor of the ACRC, joined the International Ombudsmen Institute (IOI), a conference of heads of ombudsman organizations, in 1996. Since the establishment of the ACRC in 2008, the Chairperson of the Commission has been actively participated in the IOI as the Regional Director for Asia, contributing to discussions and decision-making on various agenda items at the IOI Board of Directors and General Assembly. At the IOI Board of Directors meeting held in May 2023, the ACRC presented on the Ombudsman's major activities, including “the e-People Foreign Language Service” system.

Asian Ombudsman Association (AOA) was established in 1996 to enhance the capacity of ombudsman organizations in Asia and to promote the exchange of information and experience and the development of the AOA. At the board of directors and regular general meeting held in September 2023, the ACRC's Vice Chairperson was elected as an AOA director and participated in discussions regarding the operation of the association.

To raise its profile among foreigners and promote the Korean government's anti-corruption efforts and achievements, the ACRC produces and distributes multilingual promotional materials: The 2022 ACRC KOREA Annual Report, a periodical, as well as a brochure introducing the ACRC and ombudsman system were produced and distributed. A series of

materials on anti-corruption laws and regulations, including 「Act on the Prevention of Conflict of Interest Related to Duties of Public Servants,」 and 「Improper Solicitation and Graft Act,」 were produced and distributed.

ACRC Act	Anti-Graft Act	Protection of Public Interest Reporters Act	Public Funds Recovery Act	Conflict of Interest Prevention Act

In addition to that, the ACRC collaborated with related organizations such as KOICA, KOTRA, Incheon International Airport Corp., and National Institute for International Education, etc. to effectively promote Korea's anti-corruption policies and systems. This included showcasing the digital platform operated by the ACRC, through various channels such as newsletters and websites of public institutions



Chapter 5. Public Relations

As an anti-corruption control tower, the ACRC is committed to anti-corruption activities such as preventing conflicts of interest, eradicating improper solicitation, protecting and compensating reporters, and resolving social conflicts and grievances with a focus on the public and the field-based concerns. As part of these efforts, the ACRC has been actively promoting public relations activities to foster a culture of integrity and protect people's rights and interests.

In particular, the ACRC tried to develop field-based publicity for its major policy promotion activities. This included conducting on-site complaints coordination meetings to strengthen outreach centered on people's daily lives. In addition, various policy-related events, including briefings and debates, were broadcast live in real time through the ACRC's YouTube channel, 'ACRC Vision.' By producing videos on various policy actions, the ACRC aimed to share progress on public concerns and major social issues and form social consensus

For key public relations issues including the 「Center for Reporting Recruitment Corruption Integrated」, which was newly launched in 2023 to build the foundation for a fair society that young people can feel, the ACRC promoted systematic planning and publicity, such as operating an 'intensive publicity period for fair recruitment' using various publicity media such as developing a PR plan in advance for key PR issues, conducting media interviews, running online and offline advertisements, and collaborating with YouTubers who specialize in employment content. In addition, on the occasion of Chuseok, the amendment to the Improper Solicitation and Graft Act, which raises the gift value of agricultural and fishery products that public officials can receive, was actively informed to the public through media outlets. In addition, the ACRC resolved collective civil complaints that occurred in the region and communicated with local residents about their meaning, purpose, and resolution process.

The ACRC has further expanded its communication efforts with the foreign media this year. For the first time, the ACRC held a policy briefing for foreign journalists, including those residing in Korea. Through this, the ACRC explained the main functions of the ACRC and its achievements in resolving complaints, and made efforts to enhance international publicity. In addition, a full-page advertisement about the e-People system was placed in the New York Times, a representative foreign newspaper to further bolster foreign outreach.

The ACRC's digital communication team consists of a total of six people, including writers, video production PDs, and graphic designers, and utilizes its own filming studio to produce policy content in an organized and systematic manner. The ACRC maintains official accounts on various social media platforms, including YouTube, Facebook, Instagram, Twitter, and Naver, to actively promote the ACRC's major policies and operational achievements.

The ACRC produced and broadcast TV policy advertisements to actively inform the public about the ACRC's various tasks, including anti-corruption, grievance, administrative appeal, and institutional improvement, and to promote public participation in reporting corruption and public interest violations and filing complaints and administrative appeals. The TV campaign, "the e-People," was produced to inform the public about the operation of the ACRC's flagship system, the e-People, by promoting the use and resolution of cases to the public, and to increase the use and participation of the public in the future. In addition, the ACRC operated a regular radio program to inform the public about the ACRC's policies to

[ACRC TV campaign, 'the e-People']



The ACRC also publishes a bi-monthly Newsletter, that highlights trends in major policy promotion activities and examples of policies that resonate with the public. Since its inaugural issue in March 2008, The ACRC Newsletter, has published 79 issues (Winter 2023) so far. 10,500 copies are published each time and distributed to public institutions' civil affairs offices, local government community centers, libraries, etc.

In addition to its main functions of preventing corruption and protecting people's rights and interests, the ACRC employs mascots such as 'Chung-begi (undercover royal inspector)' and 'Gwon-igi (sinmungo)' in various promotional contents such as newsletters, videos, webtoons, and card news. These mascots help present the ACRC with a friendly, approachable image.

In 2023, as a result of these outreach activities, public awareness of the ACRC's key policies increased significantly to 56.7% (a rise of 5.9 percentage points year-on-year), and subscribers to its YouTube channel, ACRC Vision, increased by 14% year-on-year.





Part 02

Implementation of Anti-Corruption
Policies for Realization of Clean Korea



Chapter 1. Promotion of Anti-Corruption Legislation and Systems as Norms in Daily Life

Section 1 Stable establishment of Act on the Prevention of Conflict of Interest Related to Duties of Public Servants and effective operation of the system

The Act on the Prevention of Conflict of Interest Related to Duties of Public Servants was enacted in 2021 to prevent potential conflicts of interest that may arise during the performance of public servants' duties, thereby ensuring fair performance of duties and securing public trust in public institutions, and has been in effect since May 19, 2022. As 2023 marks the second year of implementation of the Act, an important task for the ACRC was to create a compliance environment so that the conflict of interest prevention system can be established in the public service community.

The Conflict of Interest Prevention Act establishes 10 standards of conduct for public officials. These standards are categorized into five reporting and submission obligations that public officials must fulfill and five restrictions and prohibitions that they must avoid.

<Table 2-1> Standards of conduct for public officials under the Conflict of Interest Prevention Act

Reporting·submission	Restriction·prohibition
① Disclosure of personally interested persons and application for evasion	⑥ Restriction on duty-related outside activities
② Disclosure of ownership/purchase of public duty-related real estate	⑦ Restriction on employment of family members
③ Submission of records of high-ranking officials' business activities in the private sector	⑧ Restriction on private contracts
④ Report of transactions with duty-related persons	⑨ Prohibition of private use of or profiting from public institutions' goods
⑤ Report of personal contact with retirees	⑩ Prohibition of use of job secrets, etc.

Public officials who fail to comply with the above 10 standards of conduct are subject to severe penalties, including imprisonment with labor for up to 7 years, a fine not exceeding KRW 70 million, or an administrative fine of up to KRW 30 million. Additionally, any unfair profits obtained from non-compliance will be subject to recovery.

The Act on the Prevention of Conflict of Interest Related to Duties of Public Servants stipulates 10 standards of conduct that public officials must adhere to. The ACRC minimized the burden on public officials of complying with the law by presenting clear standards for legal interpretation for each possible issue for each standard of conduct so that public officials can comply with all 10 standards of conduct. In 2023, the ACRC reviewed the requirements for mandatory reporting requirements on a case-by-case basis and established standards by collecting opinions through holding a council of related organizations regarding compliance with the obligation to report and avoid conflicts of interest related with private interests by public officials performing investigation, audit, and investigative duties. In addition, standards for legal interpretation were established through two consultations with relevant organizations and seven advisory meetings regarding obligations to report and avoid conflict of interest related with private interests, particularly in cases where actual influence might be exercised. The consultations also addressed restrictions on entering into negotiated contracts when high-ranking public officials are the actual representatives, etc.

In order to disseminate the standards for interpretation of established laws and listen to opinions on difficulties in operating the system at various levels of institutions, 11 regional briefing sessions were held for conflict of interest prevention officers, and a total of 1,338 people from 922 organizations attended the sessions from August to September 2023. In addition, the '2023 work handbook of the Act on the Prevention of Conflict of Interest Related to Duties of Public Servants' was published. This handbook includes the legal interpretation standards, frequently asked questions, and solutions to common operational issues. The work handbook was distributed to all public institutions in October 2023, allowing institutions of various levels to operate a stable conflict of interest prevention system.

Regarding the restriction on concluding negotiated contracts, one of the 10 standards of conduct in the Conflict of Interest Prevention Act, public institutions that frequently engage with overseas companies have requested an English version of the 'Confirmation of restrictions on the conclusion of negotiated contracts.' Accordingly, the ACRC provides English and Chinese translations of a 'Confirmation of restrictions on the conclusion of negotiated contracts' through the 'Work Handbook of the Act on the Prevention of Conflict of Interest Related to Duties of Public Servants,' thereby supported the system operation of institutions of various levels more actively.

In order to effectively communicate the value of the Act on the Prevention of Conflict of Interest Related to Duties of Public Servants and raise positive awareness of the Act, a public slogan contest and a People's Idea Box vote were held for the public. A total of 6,533 people participated in the publicity slogan contest, and 1,988 people voted to select a total of eight slogans, giving the public a meaningful time to understand the main contents of the Conflict of Interest Prevention Act.

2,017 people participated in the survey through the People's Idea Box. 73.6% of respondents are aware of the Conflict of Interest Prevention Act, 62% believe it is effective, and 46.8% believe that public officials comply with the Act.

The ACRC sought stable implementation through authoritative interpretation of the Conflict of Interest Prevention Act and educational support for institutions. From May 18, 2021, when the Act was enacted, to December 31, 2023, the ACRC received a total of 1,600 requests for authoritative interpretations, of which 1,329 (83.1%) was completed after consultation with experts. In addition, for organizations that requested training directly from the ACRC, customized 'on-site lessons on the Act on the Prevention of Conflict of Interest Related to Duties of Public Servants' was provided. And for other organizations, the ACRC provided standard training materials along with training videos so that they could be used in their own training.

From the implementation of the Act (May 19, 2022) to 2023, the ACRC received a total of

263 reports of violations. Of these, 243 reports were processed. Among them, 18 cases that were deemed to be in violation of the law and required further investigation were forwarded to the relevant public institutions to ensure the effective operation of the system.

In addition, in September 2023, fact-finding inspections were conducted for all public institutions on the fulfillment of public officials' reporting obligations and the status of institutional actions, as well as the status of receiving and processing reports on acts in violation of the law. Through these inspections, the ACRC gained insights into the current status of the system's operation by institution, and made efforts to prepare improvement measures.

Section 2 Enhancement of the Normative Power and Effectiveness of Anti-Graft Act

The Improper Solicitation and Graft Act (Anti-Graft Act), which was enacted and enforced on September 28, 2016, in response to the public's desire for a transparent and corruption-free society, is considered to have brought about a range of positive changes across the country as it has become a norm in the public sector and among ordinary citizens. New practices, such as 'Dutch treat' are becoming commonplace, and various privileges and favors that have been considered routine are now recognized as unfair. The ACRC is focusing all its efforts on stabilizing the Improper Solicitation and Graft Act in our society with the goal of realizing a clean and transparent society where everyone can compete fairly without solicitation or entertainment.

From the enforcement of the Anti-Graft Act (September 28, 2016) to the end of December 2021, the ACRC investigated the status of receiving and processing reports of violations of the Improper Solicitation And Graft Act and the status of designation of anti-corruption officers at approximately 23,000 public institutions. This was done to assess institutional operations at various levels. During this period, a total of 13,524 violations of the Act were

reported to agencies at all levels: 60.7% (8,211 cases) for illegal solicitation, 36.2% (4,900 cases) for bribery, and 3.1% (413 cases) for excessive remuneration for external lecture. During the same period, a total of 1,879 public officials were sanctioned for violating the Anti-Graft Act: by type of violation, 1,767 for bribery, 101 for illegal solicitation; and by type of disposition, fines for 1,232 (65.6%), disciplinary fines for 391 (20.8%) and criminal penalties for 256 (13.6%).

The ACRC has been providing workshops and briefing sessions for anti-corruption officers in charge of counseling and report processing across various levels of institutions. These efforts aim to ensure that public officials subject to the Anti-Graft Act accurately understand the law and to strengthen the system operation capabilities of public institutions. In February, a briefing session on the operation of the anti-graft system was held for a total of 1,458 people, including officials responsible for the operation of the Improper Solicitation and Graft Act at various levels of institutions. In August and September, a total of 1,338 people in charge of operating the anti-graft system attended the regional briefings, which were held in six regions across the country.

In particular, for journalists, who have been lacking practical training opportunities and experience compared to public officials, the ACRC has regularly organized training sessions on the Anti-Graft Act for trainee journalists in the city councils. These sessions have been conducted in collaboration with the Korea Press Foundation, and about 220 trainee journalists have been trained on the Anti-Graft Act in a total of 12 sessions

The Commission also sought to increase public understanding of the Anti-Graft Act by launching an “Anti-Graft Act Awareness Campaign” at specific times such as Lunar New Year’s Day, Chuseok Holidays, and Teacher’s Day to clarify misconceptions about the Act and explain its main provisions in an easy-to-understand manner. The ACRC also promoted highlights of the Act and addressed frequently asked questions through card news and YouTube, including information on the increased gift value of agricultural and fishery products during major holidays.

Meanwhile, there has been a surge in appeals for support from various sectors, including the agriculture, livestock, fisheries, and culture and arts. These sectors have recently been affected by natural disasters such as heavy rains, typhoons, and droughts caused by extreme weather, as well as high inflation, and a sharp drop in demand. In addition, the consumption patterns of the public are changing rapidly, including the rapid growth of the online gift certificate market and the spread adoption of mobile and internet-based gift-giving culture. Therefore, there is a need to reflect these socio-economic conditions and relax regulations to reflect the consumption patterns of the public. In response, the ACRC amended and implemented the Enforcement Decree of the Improper Solicitation and Graft Act (Aug. 30, 2023) to adjust the value range of gifts that public officials can exceptionally receive within the scope of purposes such as smooth performance of duties, socializing, and ceremonies.

Section 3 Reviewing and Strengthening of the Code of Conduct for Public Officials

The code of conduct for public officials is a standard of conduct that public officials must comply with to ensure the fair performance of public duties and to prevent corruption. It includes both a code of ethics containing the values that internal members of an organization should basically pursue and a code of practice, which set out detailed standards and procedures for members to follow.

The ACRC has actively promoted the autonomous discipline of institutions and made various efforts to support the more effective operation of the Code of Conduct system. This included preparing and implementing institutional codes of conduct tailored to the characteristics of different levels of public institutions.

First, if a public service-related organization does not reflect the standards of conduct in the new code of conduct, including the prohibition on power trips, in its own code of conduct, there may be a blind spot where violations of these standards cannot be sanctioned. To

address this, in April 2023, the ACRC conducted a full inspection on the status of the enactment of codes of conduct in public service-related organizations. This included verifying the establishment of a prohibition on power trips and ensuring the removal of conflict of interest provisions in codes of conduct, as mandated by the Act on the Prevention of Conflict of Interest Related to Duties of Public Servants, to prevent such blind spots from occurring.

In addition, briefing sessions on the establishment and operation of the code of conduct were held in March and July 2023 for 52 newly designated as public service-related organizations in 2023. Through this, the need to establish a code of conduct for each institution, the main contents of the code of conduct, and various integrity measures to improve the integrity of executives and employees of public service-related organizations were promoted. The ACRC received submissions on the establishment and revision of the Code of Conduct from institutions of various levels, reviewed them, and notified the relevant organizations of any corrective actions to ensure effective operation of the Code of Conduct system.

In addition, to support the smooth operation of the Code of Conduct, "The Work Handbook on the Code of Conduct for Public Officials" was published and distributed to a total of 1,770 organizations. Lectures by expert inspectors were provided to organizations throughout the year to strengthen institutional capacity to implement the Code of Conduct.

In 2023, the ACRC identified a total of 34 violations of the Code of Conduct by public officials, notified the relevant organizations, and handled a total of 718 reported cases, transferring some cases to the relevant organizations for further investigation.

The ACRC annually investigates and inspects the operation and implementation of the Code of Conduct by public institutions according to the Article 9 of the Enforcement Decree of the Act on the Prevention of Corruption and the Establishment and Management of the ACRC. The ACRC is committed to reducing blind spots in corruption control by reviewing codes of conduct in areas of vulnerability to corruption. For instance, corruption cases involving local elected mayors, prefects, and local council members, such as sending personal notices of congratulations or condolences to officials related to their work or receiving preferential

treatment in the use of swimming pools and sports facilities, were reported in the media. In response, the ACRC conducted an urgent inspection of corruption at the local level to restore public trust. It is difficult for the audit department of the relevant local government to independently audit mayors and governors who are public officials in political service. To address this, the ACRC directly conducted an on-site inspection and confirmed violations of the code of conduct. These violations of the code of conduct were notified to higher authorities such as metropolitan municipalities, with requests for necessary measures. In addition, to prevent similar cases from occurring in the future, the ACRC prepared and disseminated guidelines for compliance with the code of conduct for public officials, covering issues such as notification of congratulations and condolences to job-related personnel and job-related public officials and preferential use of sports facilities, to all levels of public institutions.

In addition, in order to eradicate corruption such as receiving money and goods during major holidays such as Lunar New Year and Chuseok, and to promote a culture of integrity, the ACRC conducted intensive inspections targeting public institutions with lower integrity scores. These inspections focused on the giving and receiving of money, entertainment, and gifts during vulnerable periods. Violations of the code of conduct, such as receiving gifts, were notified to the relevant organizations, and necessary measures such as disciplinary actions, were recommended.

Furthermore, the ACRC selected eight organizations, newly designated as a public service-related organization in 2019, for inspection due to their high potential for violating the code of conduct given their short period of introduction and operation of the code of conduct. . As a result of the inspection, several cases of violations of the Code of Conduct and deficiencies in the Code of Conduct regulations were identified. These included instances where the value of food and beverages exceeded KRW 30,000 or gifts surpassed KRW 50,000 without a justifiable reason. Other issues included the provision condolence gifts, such as congratulatory or condolence money, wreaths, etc. in violation of the established usage standards and improper use of travel and clothing expenses.



Chapter 2.

Improvement of Laws and Systems to Combat Persistent Injustice and Recruitment Corruption

Section 1 Elimination of Recruitment Irregularities in Public Institutions and Promoting a Culture of Fair Recruitment

The “Eradication of employment corruption in the public sector” was a national task aimed at “ensuring fair opportunities for young people to take a leap forward” pledged when the Yoon Suk Yeol government was launched in 2022. Prior to the implementation of the national tasks, the government established the Task Force for the Eradication of Recruitment Irregularities in Public Institutions (the “TF”), a temporary body from November 2018 to the end of 2022, to promote comprehensive government-wide measures to eliminate recruitment irregularities in public institutions. However, in January 2023, the Center for Reporting Recruitment Corruption Integrated (the “Center”) was established to promote the national tasks in a more systematic manner and to deepen the culture of fair employment in the public sector.

Since the launch of the center, the ACRC has been regularly receiving and resolving reported cases of recruitment irregularities in order to establish a fair hiring culture in the public sector, and its ability to detect hiring irregularities has been strengthened by conducting fact-finding investigations. Meanwhile, various efforts have been made to eradicate hiring irregularities, such as consulting on the hiring regulations of public service-related organizations, professional training on fair hiring, and expanding preventive functions such as system improvement.

The ACRC has been promoting a comprehensive inspection of the hiring status of public service-related organizations every year jointly with related ministries since 2019, and in

2023, a comprehensive inspection was conducted targeting 1,364 public service-related organizations. When conducting a comprehensive inspection, the ACRC conducted a strict investigation, focusing on whether there were cases in which fairness was undermined due to failure to comply with relevant laws and guidelines at any stage of the process, including the establishment of plans related to new hiring and conversion to full-time employees, document screening, interview screening, and final selection of successful candidates. Through this comprehensive inspection, 867 cases of irregularities were identified across 454 institutions. An investigation was requested into two cases in which fairness was significantly impaired in the hiring process, such as interfering with or influencing hiring in violation of the law. In addition, disciplinary action was required for 42 cases in which serious negligence and errors occurred during the recruitment process that could affect the evaluation ranking of successful applicants or candidates. For the 823 cases in which minor negligence was found, such as simple mistakes in the course of work, the ACRC requested caution and warning measures for those involved, as well as revisions to the organization's internal regulations.

Moreover, the ACRC receives, and resolves reported cases of hiring irregularities in the public sector raised by citizens throughout the year in order to operate a continuous management and supervision system for eradication of recruitment irregularities in the public sector. This year, a total of 130 cases were reported, including violations of employment-related laws and unfair intervention, and 116 of them were resolved.

In particular, this year, a specific investigation was conducted into allegations of preferential treatment related to employment corruption in public institutions, raised by the media and the National Assembly. The allegations of preferential hiring of the children of the National Election Commission's employees in May had sparked public criticism and outrage, and it was necessary to resolve suspicions and restore trust by identifying those involved in corruption and improving structural and systemic issues. In response, the ACRC organized a 37-member investigation team, headed by the Vice Chairperson and Secretary General of the ACRC, to conduct a 52-day intensive comprehensive inspection of the National Election Commission's recruitment of civil servants over the past seven years. As a result of the investigation, a total of 353 cases of fraudulent hiring, including preferential hiring and

unfair decisions on successful candidates, were discovered, and among these, 28 people involved were accused of intentionally, habitually, or repeatedly undermining the fairness of hiring. An investigation was requested for 312 cases requiring clarification of the facts, such as improper solicitation and family preferential treatment. Meanwhile, the ACRC analyzed the National Election Commission's poor self-audit activities and institutional problems related to recruitment and proposed improvement measures to the National Election Commission.

In the case of hiring public officials in administrative agencies and executives and staff of public service-related organizations, there are detailed laws and guidelines for each stage of recruitment, ensuring fair hiring to some extent. On the other hand, there are no common standards for hiring non-public officials (temporary workers, public service employees, etc.) within administrative agencies. As a result, management and supervision are not properly carried out and it remains a blind spot, so improper hiring cases have continued to occur. To eliminate management blind spots related to the hiring of non-public officials in administrative agencies, the ACRC systematizes the fair recruitment procedures applied by public service-related organizations when hiring public officials, executives and staff. The ACRC also establishes the 'fair hiring standards' to enable administrative agencies to apply such procedures when hiring non-public officials. In March 2023, system improvement was recommended so that 550 administrative agencies would regulate fair hiring standards and apply those standards when hiring non-public officials. Upon reviewing the implementation of system improvements in the second half of the year, it was found that 401 out of 550 institutions had incorporated more than 70% of the fair hiring standards for non-public officials. The ACRC will continue to encourage administrative agencies to actively implement system improvements in order to resolve unfair issues in the hiring process of non-public officials and further establish fair hiring procedures and plans to regularly check whether hiring is conducted in accordance with fair recruitment standards.

Since its launch, the ACRC has supported the improvement of the system by conducting consulting on internal employment-related regulations for public service-related organizations in order to prevent hiring irregularities and to detect them. In addition, in

order to prevent hiring irregularities caused by ignorance of fair recruitment-related laws and guidelines, the ACRC opened professional fair recruitment training courses for recruiters in public service-related organizations available both online and offline. Over the course of one year, a total of 907 courses were provided, reaching 5,066 individuals within these institutions. The training courses cover related regulations, precautions for each stage of recruitment, case studies detected by comprehensive inspection, and Q&A.

Section 2 Corruption Risk Assessment to Improve Corruption-causing Factors Fundamentally

Corruption Risk Assessment (CRA) is a tool that seeks to systematically analyze and evaluate corruption-causing factors within laws and regulations in order to prevent corruption in advance by preparing improvement measures. It can be divided into two main categories: assessment of enacted and revised laws and regulations and assessment of current laws and regulations. In the assessment of enacted and revised laws, the ACRC reviews laws and regulations requested by central administrative agencies in advance from the legislative stage for factors causing corruption. The assessment of current laws is to analyze and review the factors that cause corruption, such as social problems that have emerged due to corruption cases, or those inherent in laws, autonomous laws, and internal regulations of public institutions that are currently in effect, and to improve them. As for the evaluation of local statutes and internal rules of public-related organizations, each institution autonomously establishes evaluation system in accordance with their own characteristics and carries out the evaluation autonomously.

First, in the assessment of enacted and revised laws, a total of 1,621 enacted and revised laws were reviewed in 2023. During this process, 158 corruption-inducing factors were found in 85 laws, and recommendations for improvements were made to the relevant ministries. The number of laws and regulations evaluated increased by 15% (212) year-on-year, but the average processing time was 6.4 days, which was 0.9 days shorter than the previous year, enabling faster support for the enactment and revision of laws and regulations.

Meanwhile, as the functions and powers of local governments have expanded, the need for an anti-corruption system that can prevent habitual local corruption, such as abuse of power and preferential public-private ties, has more increased. Recognizing the need to fundamentally diagnose and address local government corruption, the ACRC established a plan to conduct the Corruption Risk Assessment (CRA) on local autonomous rules. Since 2022, the ACRC has focused on the CRA for current laws and regulations including ordinances and rules, with plans to complete this initiative by 2024.

The ACRC conducted the CRA on municipal laws and regulations operated by 79 municipal governments. In 2023, the CRA was conducted on 50,256 autonomous laws and regulations in 17 metropolitan cities, provinces, and 61 autonomous districts. 24 improvement tasks were discovered in the areas of local councils, operation of organizations such as accounting and service, and project promotion such as private consignment and subsidies, and 2,199 cases requiring improvement were identified and recommendations were made to the relevant local governments.

A major example of improvement recommendations for local ordinances includes establishing prior screening standards for the feasibility and adequacy of overseas business trips to prevent misuse by local council members. In addition, regulations were established for the recovery of business trip expenses incurred for purposes other than those intended.

Recommendations were made to enhance the standards for executing business expenses, such as execution standards for entertainment expenses and restrictions on private use that do not comply with higher laws, including the Improper Solicitation and Graft Act, etc. It was recommended that violations of mandatory obligations violating the code of ethics and ethical practice of local council members be specified as misconduct subject to disciplinary action, with specific disciplinary standards established for each type of misconduct in order to ensure accountability in legislative activities.

In order to increase transparency in the organization's operations, the ACRC had external experts participate in the pre-screening of overseas business trips to prevent misuse by

local public officials. The ACRC requested agencies to review their travel reports for plagiarism and poor writing to ensure the accuracy and quality of the reports.

To prevent public-private collusion, the ACRC introduced measures such as limiting the long-term tenure of consultant certified public accountants and tax accountants. In addition, management-level public officials unrelated to collection practices were excluded from receiving monetary rewards for local taxes, and award eligibility was ensured through a public review committee that included external members to oversee the selection process.

In order to enhance fairness in the process of implementing various projects such as subsidy support, the ACRC blocks subsidies for local administrative fellow members society that do not have a legal basis. The ACRC recommended that relevant organizations establish reasonable contractor priority standards for cases where there are two or more applicants within the same priority level when contracting for priority installation of stores, etc. in public facilities.

There was an issue where administrative convenience was prioritized over public safety by excessively reducing the deadline for reporting poor construction of public construction projects to within one year from the date of completion without considering the characteristics of construction projects. To address this, the ACRC has blocked passive administration by extending this reporting deadline to the end of the defects liability period specified in the 「Framework Act On The Construction Industry」.

In order to prevent hiring irregularities, such as private recruitment, when hiring members of arts organizations, the ACRC recommended the relevant organizations to establish open recruitment and review procedures by judges. The ACRC also prevented the possibility of conflicts of interest by requiring members of large architectural art installation review committees to limit their own artwork during their term of office. The ACRC also specified the criteria for calculating the cost of artwork installation in accordance with the statutory mandate to prevent local governments from abusing their discretion.



Chapter 3. Support for Improvement of the Integrity of Public Institutions

Section 1 Enhancement of Integrity through Comprehensive Public Integrity Assessment

The ACRC has been conducting an objective assessment of the integrity levels of public institutions every year since 2002 and publishing the results in order to overcome the limitations of existing anti-corruption policies of the public sector, which are mostly focused on countermeasures such as detection and punishment. This allows public institutions to voluntarily improve areas vulnerable to corruption and to keep the public informed about the level of integrity in the public sector, thereby building consensus on the need to fight corruption and improve integrity.

The target institutions for the comprehensive integrity assessment of public institutions conducted in 2023 in accordance with Articles 12 and 27-2 of the Act on the Prevention of Corruption and the Establishment and Management of the Anti-corruption and Civil Rights Commission are 16 types and a total of 628 institutions. Considering the characteristics of the organizations, the target organizations were divided into 16 types, including central administrative agencies, local governments, offices of education, and public service-related organizations. In particular, in 2023, 17 metropolitan councils and 75 city councils were also included in the evaluation to accurately diagnose and improve the level of integrity in local areas.

<Table 2-2> Institutions subject to Comprehensive Integrity Assessment in 2023

(Unit: number)

Total	Central administrative agencies		Local government agencies				Offices of Education	Public service-related institutions					National/ public universities	Public medical institutions	Local councils	
			Metro politan	Lower-level local gov'ts				I	II	III	IV	V			Metro politan	Lower-level local gov'ts (si)
628	I (Ministry)	II (Office)	17	I	II	III	17	I	II	III	IV	V	16	22	17	75

The 2023 Comprehensive Integrity Assessment is based on a 100-point scale. Scores are determined using a weighted sum of 60% for integrity perception and 40% for integrity effort, with a maximum of 10 points deducted for corrupt practices.

Integrity perception was measured through an objective survey conducted by a social research organization on awareness and experience of corruption in the main business of an institution. Integrity commitment was measured by a group of internal and external experts evaluating the institution's anti-corruption efforts and performance using quantitative and qualitative indicators and confirmed through an appeal process. A total of 270,000 people, including 190,000 citizens and 80,000 public officials, actively participated in the integrity perception survey. The ACRC also did its best to ensure that the comprehensive integrity assessment was conducted fairly and without setbacks.

The assessment results for each level of institution were presented on a scale of 1 to 5 for each type of institution for comprehensive integrity level, integrity perception, and integrity effort. The rating for each institution is based on its total score, which was calculated by determining the rating range using the average score and standard deviation of each type. Each institution was provided with detailed scores for each area (including average scores for all institutions and for each type of institution) in the form of an institutional report for analysis of the institution's corruption-prone areas and voluntary improvement efforts.

For 498 administrative agencies and public service-related organizations, and 12 types of institutions, the average comprehensive integrity score was 81.2, down 0.7 points from the previous year. The average integrity perception score was 80.0, the integrity effort score was 82.2. Among the detailed corruption perception measurement items that constitute the degree of integrity, the corruption perception score for the pursuit of unfair private interests using job-related secrets or undisclosed information was the highest. In the assessment of integrity effort, the scores for the quantitative evaluation index items such as public-private cooperation (96.9 points) and establishment of an anti-corruption implementation plan (93.2 points) were relatively high. Indicators related to national tasks also performed well, such as 'revision of factors causing corruption' (91.4 points) to spread standards for fair adoption and 'efforts to self-check public funds unlawful receipt' (87.1 points) to strengthen financial soundness.

The agency's anti-corruption efforts also led to an improvement in the actual level of integrity. The strong correlation between the integrity effort scores of various levels of institutions and their overall integrity level scores was observed, with more than 0.6, especially when analyzed over two years. There was also a strong correlation between the previous year's integrity effort score and this year's overall integrity level score, indicating that an organization's anti-corruption efforts continue to have an impact overtime.

On the other hand, separate evaluation models were applied to local councils (92), public healthcare organizations (22), and public universities (16) due to differences in their institutional characteristics and nature of their work compared to administrative agencies and public service-related organizations.

In 2022, a comprehensive integrity assessment was not conducted for local councils because local elections significantly changed the composition of local councils. In 2023, a comprehensive integrity assessment was conducted for 17 metropolitan councils and 75 city councils. The overall integrity level of the 92 local councils was 68.5, compared to an average of 80.5 for the 498 administrative agencies and public service-related organizations. In terms of corruption perceptions that make up the degree of integrity, the highest scores were given to "pursuing private interests through illegal or unfair methods in the course of

official activities" and "using public property for private use or purposes other than those intended," while the lowest scores were given to "complying with obligations to avoid conflicts of interest" and "taking business trips for traveling abroad. The highest rate of corruption experience among local councils was 16.33% for 'unfair demands for work beyond authority' and 9.96% for 'unfair involvement in selecting a contractor'.

22 public medical institutions received a low rating in terms of integrity effort, scoring 74.8 points for the CIA, 79.3 for integrity perception and 69.1 for integrity effort. First, in the area of integrity perception, the external perception evaluated by business partners who have experience working with public health facilities, such as contracts or medical treatment, was 87.8 points, and the internal perception evaluated by members inside public health facilities was 60.7 points. In terms of external perception, patient care scored lower than healthcare contracting and general contracting. In terms of internal perception, corruption perception scores for preferential treatment and power trips were low. In particular, in the case of power trip behavior, it is also the item with the largest difference in scores with administrative agencies and public service-related organizations.

The 16 national or public universities had an overall integrity level score of 77.6, with an integrity perception score of 76.2, and an integrity effort score of 82.6. In terms of integrity perception, the score for 'research and administration' (71.0) was lower than the score for 'contracting' (94.5). In terms of experience with corruption, the rate of experience with corruption was 0.06% in the "contracting" category, compared to 2.16% in the "research and administration" category, and the rate of experience with "embezzlement and misappropriation of research funds" was even higher at 2.49%.

The public can access the results of the comprehensive integrity assessment of each agency through their websites. Additionally, an integrity map is posted on the Clean Portal operated by the ACRC providing user-friendly visualization of the level of integrity of each institution.

Section 2 Support for Integrity Consulting for Corruption-Prone Institutions

Integrity consulting is a support policy of the ACRC to promote integrity aimed at enhancing capacity to combat corruption and diagnosing the problems of public institutions with relatively lower levels of integrity and providing tailored alternatives. The ACRC aims to raise the level of integrity across public institutions by creating success stories for institutions with low integrity through integrity consulting and spreading them to institutions of various levels. To ensure effective consulting, a group consulting approach was employed, where excellent institutions serve as mentors and those with low integrity levels serve as mentees. This group consulting method facilitated mutual learning of techniques for enhancing integrity. Since 2006, the Integrity Consulting Program has provided support for a total of 205 organizations, with 240 consulting sessions conducted until 2023.

In 2023, the ACRC received applications from 32 groups (32 mentor institutions and 66 mentee institutions). Considering factors such as the integrity level of mentor and mentee institutions, their commitment to implementation, and success conditions, the Commission provided consulting to 12 groups (12 mentor institutions and 24 mentee institutions). In order to identify the causes of the low integrity of the mentee institutions, the ACRC and the mentor institutions conducted an anti-corruption capacity diagnosis, analyzing mentee institutions' operations, anti-corruption systems, internal control systems, and the behavior of employees. In this process, various sources were utilized, including the results of the Comprehensive Integrity Assessment (CIA), internal regulations and control systems, the incidence of corrupt officials, external audit results, and media reports. In addition, a survey involving internal employees was conducted to examine the contents and effectiveness of anti-corruption measures implemented by the mentee institution and identify the primary factor contributing to the relatively low integrity.

According to the results of the anti-corruption capacity diagnosis, customized measures were prepared for each institution based on identified corruption-prone areas and causes. In particular, in 2023, the ACRC introduced a new in-depth diagnosis program in which

members of the mentee organizations directly participate to strengthen integrity consulting support by identifying problems and causes that are not revealed through the existing survey method and preparing improvement measures. This targeted approach enabled the mentee institutions to establish and implement more effective anti-corruption measures by adapting and applying the best anti-corruption measures learned from the mentor institutions during the group meetings.

Out of the 24 institutions that received integrity consulting in 2023, 13 (54.2%) saw an increase in their ratings in the 2023 Comprehensive Integrity Assessment compared to last year's integrity assessment results. In particular, six organizations moved up two or more levels.

Section 3 Communication with Institutions of Various Levels through Public Institution Auditor Meetings

As an anti-corruption agency, the ACRC holds meetings every year regularly and from time to time for auditors in charge of audit work at all levels of public institutions, including the central government, local governments, and public-related organizations, to guide the direction of the government's new anti-corruption and integrity policies and to discuss major issues and priority initiatives.

At the beginning of each year, the ACRC hosts a meeting to discuss the 'anti-corruption and integrity policy implementation tasks' to be promoted throughout the year, and shares information needed to promote integrity policies and philosophy on the direction of the Korean government's anti-corruption policy. It is used as an opportunity to communicate with each other. The ACRC also holds customized auditors' meetings on an ad hoc basis adjusting the agenda and scope of attendance to reflect emerging corruption issues and administrative and social changes

The ACRC held auditor meetings six times to communicate with other public institutions working on anti-corruption and integrity policies. These included four Auditor Meetings for

the first half of 2023 (February) to share directions of anti-corruption and integrity policy and task, and two Auditor Meetings for the second half of 2023 (September) to discuss three main tasks for tackling cartel corruption, etc.

In February, a task delivery meeting was held for four types of organizations: central administrative agencies, metropolitan municipalities, basic local governments, and public service-related organizations. Customized information required for each type of institution was provided, including main contents of the code of conduct for public officials such as the Act on the Prevention of Conflict of Interest Related to Duties of Public Servants, system operation direction, and integrity competency support measures such as customized integrity education. In particular, for basic local government and public service-related organization, which include a large number of agencies, 'ACRC Vision' live teleconferencing method was used to answer and communicate with agencies at various levels in real time.

In September, the ACRC held meetings with representatives from 215 major public institutions, including central administrative agencies, metropolitan municipalities, city/provincial offices of education, and major public service-related organizations. During these meetings, the ACRC discussed three main tasks of the anti-corruption and integrity policy to eliminate cartel corruption, such as special privileges and leakage of public funds, and the policy direction for the second half of the year, and collected opinions from the field.



Chapter 4.

Substantialization of Anti-Corruption Training to Foster a Culture of Integrity

Section 1 Strengthening of the Management of Compulsory Education

Since the enforcement of the amended ACRC Act in September 2016, which requires public officials to undergo at least 2 hours of integrity training annually, the ACRC has been making efforts to enhance the effectiveness of integrity education by providing high-quality and tailored integrity training programs and continuously managing the completion status of statutory training at all levels. Consequently, the number of public officials who have completed integrity training since it became mandatory has been steadily increasing over the past three years: 1.62 million public officials in 2020, 1.74 million in 2021, and 1.76 million in 2022.

A survey conducted in the first half of 2023 revealed that 95.6% of all eligible public officials had completed their integrity training. This represents a 0.6% increase in the completion rate from the previous year (95%). Heads of most types of organizations has participated in integrity training, and the completion rate among high-level public officials has also risen. The ACRC's efforts to strengthen the implementation of integrity education seem to have been effective, as special training for managers has been conducted based on the Act on the Prevention of Corruption and the Establishment and Management of the Anti-Corruption and Civil Rights Commission and the Enforcement Decree of the Act, which was amended in 2022.

The ACRC has enhanced its guidance on integrity training systems for integrity officers in public institutions with poor integrity training conditions in 2023. Briefing sessions were held for integrity officers of new organizations, small organizations with low training completion rates, and national or public universities to provide guidance on the main

contents of the operational guidelines for anti-corruption education. In the case of institutions with a poor record of integrity education, the ACRC visited and consulted on integrity education.

Section 2 Substantialization of Integrity Education through Strengthening Customized Training

To achieve a transparent and corruption-free society, it is important not only to implement reactive measures such as detecting and punishing corruption practices, but also to proactively prevent corruption by increasing the integrity capacity of public officials through integrity education.

To this end, the Anti-Corruption Training Institute (ACTI), Korea's sole anti-corruption and integrity education and training center, has been working towards this goal since its opening in October 2012. The ACTI has been making various efforts to spread the culture of integrity throughout the public service, including providing professional integrity training to members of the public service, under the mission of 'Nurturing Integrity Talents to Change Korea'.

This year, the existing online training was converted to face-to-face training with higher effectiveness and satisfaction due to the easing of Covid-19 quarantine. As integrity and ethics management has emerged as a key strategy for sustainable management of companies, it was necessary to strengthen the existing integrity and ethics management curriculum, and the ACRC established and implemented customized strategies according to changes in the educational environment, such as expanding e-learning and developing new curricula to promote integrity education for public service-related organizations, which account for a large proportion of organizations subject to integrity education obligations.

In recent years, the demand for integrity training has continued due to the growing importance of anti-corruption and integrity in society, the mandatory nature of anti-corruption education for public officials, and enforcement of major anti-corruption laws such as the Act on the Prevention of Conflict of Interest Related to Duties of Public Servants.

Therefore, the ACTI is improving access to integrity education by continuing to build a foundation for integrity education that is easily accessible to public officials, including training of integrity education instructors and development of educational contents, in addition to direct education such as in-person, visit, and e-learning.

In addition, considering the ACRC's characteristics of combating corruption and promoting people's rights and interests, the ACTI held 10 training courses on rights remedies such as ombudsman, rights improvement, and administrative appeal this year, providing training to 526 public officials.

Section 3 Integrity Everyday with People, a World-leading Powerhouse of Integrity

1. Operation of Participatory Integrity Training Program for the Public

The ACTI has expanded its outreach through the "Hands-on Integrity Experience Class," targeting elementary, middle, and high school students to foster a sense of integrity in future generations. At the same time, the ACTI operated customized education courses for young people to cultivate the value of integrity that they should uphold as prospective members of society. It also held a 'Citizen Participation Integrity Content Contest' in which citizens directly participated in the creation of integrity-themed content.

The ACTI has been running "Hands-on Integrity Experience Class" for elementary, middle, and high school students since 2019. In 2023, training programs were offered to a total of 57 schools, an increase of 12 schools from the previous year, with a total of 7,168 students receiving training. Students enjoyed the educational programs developed by the ACTI, including the interactive activities like 'Integrity Grip Tok' and 'Integrity Paper Toys,' and the quiz-based educational program 'Integrity Golden Bell.' These activities engage students in learning about integrity through fun and innovative methods.

In addition, the 'Integrity Vacation Camp', a program for elementary school students to visit historical sites related to integrity figures, was piloted to help them learn the value of

integrity through experiential learning. This program allowed students to learn about integrity through stories and activities related to these figures, making the learning experience both enjoyable and educational.

In addition, specialized education programs such as the '2030 Integrity Talent Academy' and the 'University Collaboration Integrity Special Course' were provided to young people. Through these programs, young people had the opportunity to enhance the integrity mindset that they should have as prospective members of society. First, the '2030 Integrity Talent Academy', an educational program to improve the integrity mindset of the 2030 generation, including undergraduate and graduate students, job seekers, and employees, received a lot of responses from young people, as it consisted of various contents such as domestic and international anti-corruption systems, special lectures on integrity essential books, integrity and ethics management, special lecture on whistleblowers and discussion and presentation. The '2030 Integrity Talent Academy' was held twice in July and December, and 123 young adults completed the program.

In addition to these initiatives, the ACTI launched the "University Collaboration Integrity Special Program," which provides special lectures on integrity-related topics across nine universities nationwide. This program saw participation from 499 university students. And included special lectures and customized sessions relevant to various majors, including public administration, education, and business administration. By integrating these integrity-focused lectures into the university program, the ACTI aimed to help university students develop integrity skills relevant to their future careers.

The Public Integrity Content Contest is a public engagement program designed to promote a culture of integrity throughout our society by disseminating various forms of content that express the increased public interest in integrity. This year, the "writing contest" category was added to the contest to encourage future generations to participate in the contest. The contest categories have been reorganized to utilize the winning entries as educational content.

From June 1 to August 31, a contest was held for the entire nation with themes such as 'What I want a fair and clean society to look like' and 'The change that integrity has brought

to my life in everyday life.' A total of 1,276 entries were submitted to the contest, which consists of five categories: literature, video, design, character, and writing contest. To select the best content, 12 external experts were recruited to conduct a fair and rigorous judging process, and 50 final winners were selected, 10 in each category.

2. Conducted anti-corruption training for foreign public officials

The ACTI is strengthening Korea's international reputation as a leader in integrity by providing 'Anti-corruption Policy Training' to introduce Korea's excellent anti-corruption system, including comprehensive integrity assessment, corruption risk assessment, and whistleblower protection and reward system to assist anti-corruption capacity building among public officials from developing countries as part of the ODA program.

This year's multi-country anti-corruption capacity-building training program expanded its reach with the addition of a French language course for African countries, in addition to the existing English language course for the Indo-pacific-Africa region and Russian language course for the Central Asia region. The French course for African countries took place over three days (28-30 March) via live online video training and was attended by 54 public officials and public sector employees from four countries: Gabon, Madagascar, Senegal, and Côte d'Ivoire.

In addition, country-specific customized invitational training was provided to Sri Lanka (15-19 May) and Kyrgyzstan (26-30 June), two of the government's key ODA partners in Asia. A total of 90 public officials from 14 countries learned about Korea's excellent anti-corruption system through the English-language course of the Multinational Anti-Corruption Training Program (4-9 September).

Furthermore, Korea's mandatory anti-corruption education for public officials was introduced as a best practice in the Annex to the Declaration of the Bali G20 Summit in November 2022. Following this recognition, Korea shared its expertise in integrity education with visiting delegations from Uzbekistan's Anti-Corruption Agency and Vietnam's Central Committee for Interior Affairs.



Part
03

Systematic Handling of Corruption
and Public Interest Reports, and
Protection of Whistleblowers



Chapter 1. Promotion of Self-Discipline in Society Through Handling of Reported Corruption and Public Interest Violations

Section 1 Operation of the Corruption and Public Interest Violation Reporting System

The Corruption Reporting System aims to protect the basic rights of citizens, ensuring the appropriateness of administration and establish a transparent and ethical social atmosphere by preventing public officials from abusing their authority or violating laws and effectively regulating corruption acts as defined in the ACRC Act. The system was introduced under the Anti-Corruption Act, which was enacted on July 24, 2001, and enforced on January 25, 2002.

The Public Interest Violation Reporting System (Whistleblowing System) was introduced under the Public Interest Whistleblower Protection Act, which was enacted on March 29, 2011, and enforced on September 30, 2011. It is an effective means and a tool for tackling the persistent corruption in our society and building a transparent society by preventing and controlling acts that infringe upon the public interest in the private sector such as infringement on the health and safety of the public, the environment, consumer interests, fair competition and the public interest corresponding thereto.

Reports received through the Corruption and Public Interest Violation Reporting Center are assigned to the division in charge of handling the reported cases and they undergo the process of examination and verification by inspectors, review by the commissioner in charge, and then deliberation by the ACRC's internal committee. Then, they are referred to the relevant institutions for further action: cases that are deemed to require an audit under the Board of Audit and Inspection Act are referred to the Board of Audit and Inspection;

cases involving criminal suspicions or requiring investigation are referred to investigative agencies; and other cases are referred to the supervisory body of the respective public institutions.

The investigative agency to which the report is referred should notify the ACRC of its findings within 10 days of completing the audit, investigation, or inspection. Upon receipt of the results of the audit, investigation, or inspection, the ACRC should notify the reporter of the summary of the results and report the results to its internal committee. If the Commission deems that the audit, investigation, or inspection by the investigative organization is not sufficient, it may request the investigative agencies to re-investigate, citing reasonable grounds such as the submission of new evidence.

1. Receipt and Handling of Corruption Reports

The total number of cases of counseling and guidance related to corruption is 209,873. While there may be fluctuations from year to year, the overall trend shows an increase.

<Table 3-1> Counseling & guidance services by year

(unit : No. of cases, %)

Mode of use	Total		'02~ '05	'06~ '10	'11~ '15	2016	2017	2018	2019	2020	2021	2022	2023
		%											
Total	209,873	100.0	25,406	27,090	41,732	11,104	10,884	12,312	14,465	14,004	12,952	13,000	13,972
Phone call	164,969	78.6	16,381	22,590	37,210	9,719	10,014	11,082	11,479	10,200	8,765	8,870	9,894
Internet	32,227	15.4	4,147	3,074	2,640	1,001	485	676	2,342	3,177	3,512	3,821	3,840
Visitation	12,677	6.0	4,878	1,426	1,882	384	385	554	644	627	675	309	238

* The number of counseling and guidance services offered through fax, mail, and in-person meeting is included in the number of the "visitation" category

From January 25, 2002, when the former Korea Independent Commission Against Corruption was launched, until the end of December 2023, a total of 91,292 reports were submitted with an average of 346 per month.

<Table 3-2> Corruption reports received by year

(unit : No. of cases)

Category	Total	'02~ '05	'06~ '10	'11~ '15	2016	2017	2018	2019	2020	2021	2022	2023
No. of cases	91,292	7,988	11,585	17,186	3,758	4,066	7,328	9,435	6,103	9,690	7,300	6,853
Monthly average	346	167	193	287	313	339	610	786	506	808	608	572

During the same period, a total of 91,292 cases were received, and 91,074 cases were addressed.

<Table 3-3 > Status of reports handled

(unit : No. of cases)

Category	Total	Referral	Notification of violation of code of conduct	Forwarding to public institutions	Closed
Report handling	91,074	3,531	1,614	15,880	70,040

The number of referral cases totaled 3,531, and as of December 2023, the rate of confirmation of charges in 3,310 cases except for 221 on which investigation and inspection were underway was 72.4%.

<Table 3-4> Referral to investigative agencies by year

(unit : No. of cases)

Category	Total	Notification of investigation result			Under Investigation	Corruption detection rate (②/①)
		Sub-total①	Corruption detected②	Acquitted		
Total	3,531	3,310	2,398	912	221	72.4

A total of 2,398 cases were investigated, leading to the prosecution of 5,579 individuals and disciplinary action against 5,592 individuals. The detection of corruption resulted in the collection and recovery of KRW 879.9 billion.

<Table 3-5> Result of notification by investigative agencies

(unit : No. of cases)

Category	Prosecution/discipline, etc.(persons)				Institutional warning [cases]	Other [cases]	Amount to be collected or recovered (KRW 1 million)
	Total	Prosecution	Discipline	Accusation/dismissal from office			
Total	11,281	5,579	5,592	110	247	1,076	872,944

* The numebr does not include 221 cases under investigation by investigative agencies

2. Receipt and Treatment of Public Interest Violation Reports

From September 30, 2011, when the Public Interest Whistleblower Protection Act was enforced to the end of December 2023, a total of 49,800 whistleblowing disclosures were reported to the ACRC. By type, health violations such as the manufacture of harmful food and the sale of unlicensed drugs accounted for the highest proportion of 17,419 cases (35.0%), followed by safety violations such as poor construction and the failure to install firefighting facilities, with 7,539 cases (15.1%).

<Table 3-6> Public interest reports received by the ACRC by year

(unit : cases)

Category	Total	2011	2012	2013	2014	2015	2016	2017	2018	2019	2020	2021	2022	2023
No.of cases	49,800	292	1,153	2,887	9,130	5,771	2,611	2,521	3,923	5,164	5,546	4,531	3,266	3,005
Monthly average	325	97	96	241	761	481	218	210	327	430	462	378	272	250

In 2023, the number of public interest reports received by the ACRC was 3,005, a decrease of 8% from the previous year. The ACRC handled 49,730 cases out of total 49,800 public interest reports since the enactment and implementation of the Act, including referring 26,052 to investigative and prosecutorial agencies.

<Table 3-7> Handling of public interest reports by the ACRC

(unit : cases)

Category	Sector	Handling Classification			
		Subtotal	Referred	Forwarded	Closed
	Total	49,730	2,872	23,180	23,678
2011~ 2016	Sub-total	21,737	522	13,015	8,200
	Public health	10151	277	8929	945
	Public safety	3332	55	2433	844
	Environment	2051	138	717	1196
	Consumer interest	1018	39	660	319
	Fair competition	334	13	195	126
	Others	4851	0	81	4770
2017	Sub-total	2,238	85	534	1,619
	Public health	498	31	221	246
	Public safety	408	40	182	186
	Environment	195	7	64	124
	Consumer interest	137	4	50	83
	Fair competition	48	3	17	28
	Others	952	0	0	952
2018	Sub-total	3,952	37	943	2,972
	Public health	836	15	403	418
	Public safety	686	11	344	331
	Environment	153	8	61	84
	Consumer interest	224	1	64	159
	Fair competition	198	2	70	126
	the equivalent public interest	1	0	1	0
	Others	1,854	0	0	1,854
2019	Sub-total	5,165	388	2,187	2,590
	Public health	1,047	154	710	183
	Public safety	877	121	571	185
	Environment	546	23	433	90
	Consumer interest	609	73	396	140
	Fair competition	147	17	72	58
	the equivalent public interest	10	0	5	5
	Others	1,929	0	0	1,929

Category	Sector	Handling Classification			
		Subtotal	Referred	Forwarded	Closed
2020	Sub-total	5,563	629	2,975	1,959
	Public health	1,791	322	1,288	181
	Public safety	1,324	153	993	178
	Environment	365	40	294	31
	Consumer interest	571	104	336	131
	Fair competition	96	8	46	42
	the equivalent public interest	28	2	18	8
	Others	1,388	0	0	1,388
2021	Sub-total	4,782	432	1,621	2,729
	Public health	1,893	275	764	854
	Public safety	414	46	248	120
	Environment	158	2	122	34
	Consumer interest	400	99	215	86
	Fair competition	242	5	220	17
	the equivalent public interest	75	5	52	18
	Others	1,600	0	0	1,600
2022	Sub-total	3,262	483	1,069	1,710
	Public health	648	305	267	76
	Public safety	234	14	185	35
	Environment	323	1	310	12
	Consumer interest	438	157	189	92
	Fair competition	91	4	67	20
	the equivalent public interest	67	2	51	14
	Others	1,461	0	0	1,461
2023	Sub-total	3,031	296	836	1,899
	Public health	570	153	336	81
	Public safety	192	2	148	42
	Environment	112	5	84	23
	Consumer interest	345	135	143	67
	Fair competition	76	0	59	17
	the equivalent public interest	82	1	62	19
	Others	1,654	0	4	1,650

Out of 23,962 cases notified to the ACRC by investigative and law enforcement agencies since the enforcement of the Act, 11,434 cases (47.7%) were found to have corruption-related allegations, and appropriate actions were taken: prosecution and accusation (3,306 cases), fine (250 cases) and penalty surcharge and administrative fine (2,427).

<Table 3-8> Result of cases referred/forwarded to investigative agencies

(unit : cases)

Investigation Result on referred/forwarded cases					Action taken					
Result notification status				Under inspection/ investigation by another agency	Prosecution	Accusation	Fine	Penalty surcharge	Administrative fine	Others
Total	Suspicion confirmed	Confirmation-Rate	Acquitted							
23,962	11,434	47.7%	12,528	2,090	1,911	1,395	250	1,067	1,360	6,773

Section 2 Handling Reports of Fraudulent Claims for Public Funds

The Korean government discussed measures at a cross-government level to address irregularities causing financial losses in the welfare sector and eradicate fraudulent welfare benefits. To conduct comprehensive oversight and on-site inspections by collectively handling reported fraudulent payments in the welfare sector prevailing across ministries, the “Joint-Government Center for Welfare Fraud Reporting” was established within the ACRC on October 15, 2013. After that, in December 2014, in the ‘Comprehensive Plan for Combating the Illegal Receipt of National Subsidies’, it was decided to centralize the subsidy reporting and monitoring system, which was scattered among ministries, under the ACRC. The center was reorganized into the “Center for Reporting Welfare and Subsidy Fraud”, which is entitled to handle the reports on subsidy frauds as well as welfare frauds on January 16, 2015.

Afterwards, on May 1, 2023, in order to carry out comprehensive and organic work to eradicate fraudulent claims of public funds, the ‘Public Funds Recovery Division’, which is an integration of the existing ‘Public Funds Recovery System Division’ and the ‘Center for Reporting Welfare and Subsidy Fraud’, has been newly launched and is handling reports of unlawful receipts.

Since the launch of the Center, a total of 12,170 cases of fraudulent receipt of public subsidy were received, of which 12,031 cases (98.9%) were handled, and 4,023, representing 33.4% of the 12,031 handled cases, were referred to investigative and supervisory agencies.

<Table 3-9 > Reports received and handled (as of Dec. 31, 2023)

(unit : No. of cases)

Year	Reports received	Reports handled			
		Total	Referred	Forwarded	Closed
Total	12,170	12,031	1,680	2,343	8,008
2023	1,600	1,532	58	319	1,155
2022	1,467	1,520	13	433	1,074
2021	1,598	1,639	62	575	1,002
2020	1,187	1,205	299	313	593
2019	1,537	1,527	321	225	981
2018	1,446	1,428	265	227	936
2017	960	892	168	66	658
2016	593	582	192	22	368
2015	861	865	198	64	603
2014	776	740	103	78	559
2013	145	101	1	21	79

Of the 4,023 cases referred/forwarded, investigations have been completed on 3,469 cases, resulting in findings of alleged improper payments in 2,485 cases, and KRW 163 billion in improper payments were recovered and returned.

<Table 3-10 > Suspicion confirmed in referred/forwarded cases (as of Dec. 31, 2023)

(unit : cases)

Referred and forwarded	Investigation completed (result notified)	Suspicion confirmed		Under investigation by investigative agency
		Suspicion confirmed	Acquitted	
4,023	3,469 (Restitution of KRW 163 billion decided)	2,485 (71.6%)	984 (28.4%)	554



Chapter 2.

Effective Protection and Reward for Whistleblower

Section 1 Strengthening of the Whistleblower Protection and Reward System and Improvement of Awareness

The ACRC amended the 「Public Interest Whistleblower Protection Act」 (March 2023) so that citizens can report acts of public interest violations with confidence and receive reliable protection and support from the state even after reporting. The main amendments include, first, that monetary rewards can be paid not only when national and local governments recover their income, but also when public institutions such as public corporations and organizations recover. Also, "Enforcement Decree of the Public Interest Whistleblower Protection Act" was amended to increase the percentage of public interest monetary rewards for reporting (4-20% → 4-30%). Second, the monetary reward for reporting of public interest violation and fraudulent claims of public funds has been increased to KRW 500 million. This aligns with the monetary rewards for reporting in the areas of corruption, anti-graft, and conflicts of interest. Third, legislation is underway to add 19 laws that are in the public interest and have a high need for whistleblower protection to the scope of public interest.

Currently, the ACRC is working on legislation to improve the protection and support system for whistleblowers in the five anti-corruption laws (the ACRC Act, the Whistleblower Protection Act, the Anti-Graft Act, the Public Fund Recovery Act and the Conflict of Interest Prevention Act) operated by the ACRC to ensure that the level of protection and support is the same regardless of the law.

In October 2018, the ACRC introduced the "Non-Real Name Proxy Reporting System," which allows whistleblowers to file a report in the name of a lawyer, not his or her name, without

worrying about their identity being exposed. In particular, the Commission operates a 100-member “Non-identity Proxy Report Advisory Lawyer Group” to provide free assistance to whistleblowers who may face penalties for reporting.

In order to expand lawyers' participation in the non-real name reports by proxy system, the ACRC cooperated with the Korean Bar Association to recognize non-real name reports by proxy as a public interest activity of lawyers. In addition, the ACRC appointed an additional group of advisory lawyers to the non-real name reports by proxy system (50 lawyers in July 2023) and made efforts to revitalize the non-real name reports by proxy system through various means such as policy meetings, online and offline publicity, and education.

In 2018, the ACRC declared December 9, the UN-designated “World Anti-Corruption Day,” as “Public Interest Whistleblowing Day” to raise the self-esteem of whistleblowers and promote positive awareness of whistleblowing and celebrated the 5th anniversary of Public Interest Whistleblowing Day in 2023. At the commemorative ceremonies held simultaneously online and offline, the ACRC awarded commendations to organizations that actively cooperated and participated in the protection and support of whistleblowers. The ACRC also presented inspiring examples of their experiences in protecting and supporting whistleblowers, and provided training on the whistleblower protection and support system.

In the process of handling reports received in the form of complaints, there are problems in which the confidentiality of the identity of the complainant is not guaranteed. Therefore, the ACRC provided in-depth, region-specific prevention training to a total of 1,592 representatives of various levels of institutions in six regions. The training included an introduction to the major cases of identity leakage that occurred during the processing of complaints and how to prevent identity leakage of complainants and deal with it in the field.

Section 2 Protection of Corruption and Public Interest Whistleblowers

Corruption and public interest whistleblowers may face a lot of challenges in continuing their jobs following their reports. Therefore, it is necessary to create an environment where

anyone can report with confidence through active whistleblower protection and effectively prevent the occurrence of corruption and violation of public interests. The types of protection for whistleblowers include ensuring compliance with confidentiality obligations that prohibit the disclosure or publicizing of a whistleblower's personal information, preventing the whistleblower from being penalized for making a report, or reversing any penalties that have already occurred.

The reporting subjects that are eligible for whistleblower protection are as follows: First, the reporting subjects include acts as stipulated in Article 2 (4) of the ACRC Act and violations of the Code of Conduct for Public Officials under Article 67 of the same Act. To receive protection, a public interest whistleblower must report an act of corruption to the ACRC or the public organization to which the respondent belongs, or the public organization, etc. supervising organization, group, or enterprise to which the respondent belongs and submit a written statement containing his/her personal information, intention, and reasons for reporting, as well as evidence of the acts of corruption. In addition to the whistleblower, a cooperator who assists in an audit, investigation, or inquiry into a report by providing statements, testimony, or other materials in connection with the report is also protected. However, if the whistleblower knew or could have known that the content of the report was false, he/she is not entitled to protection.

Acts of public interest violation subject to reporting are acts detrimental to the public health and safety, the environment, consumer interest, fair competition, and public interest equivalent thereto as defined in Article 2(1) of the Public Interest Whistleblower Protection Act, which are subject to administrative disposition such as penalty or cancellation of license or permission or injunction, etc., according to 474 applicable laws (as of Feb. 6, 2024).

Any person who reports, petitions, informs, accuses or complaints that a violation of the public interest has occurred or is likely to occur, or provides an investigation clue of a violation of the public interest to an administrative agency or supervisory agency that has the authority to guide, supervise, regulate, or investigate an act detrimental to the public interest, an investigative agency, the ACRC, or a representative of the organization that

commits an offense detrimental to the public interest can be protected as a whistleblower. Additionally, a person who makes a statement, testifies, or provides information in an examination, investigation, or lawsuit regarding a public interest whistleblowing case, or an investigation, or lawsuit, etc. concerning the protection of the public interest whistleblower is eligible for the same protection. However, reporting persons are not protected if the persons knew the report was false, or if the report was made for a fraudulent purpose, such as to solicit money or employment preferences.

From 2011 to 2023, there were a total of 1,796 handled cases in which corruption and public interest whistleblowers or their cooperators requested protection. The rate of acceptance of protection requested by corruption reporters reached 66.0% and by public interest whistleblowers reached 56.4%.

<Table 3-11> Corruption and public interest reporters protection by year

(unit : cases)

Year	Protection of corruption reporters						Protection of public interest reporters					
	Total	Guarantee of position	Protection of personal safety	Confirmation of details on identity disclosures	Temporary suspension	Exemption of liability	Total	Guarantee of position	Protection of personal safety	Confirmation of details on identity disclosures	Temporary suspension	Exemption of liability
Total	796	563	43	148	31	11	1,000	501	91	233	55	120
2011	11	11	-	-	-	-	6	2	-	2	2	-
2012	27	19	2	6	-	-	11	5	3	1	1	1
2013	27	20	4	3	-	-	17	13	1	2	-	1
2014	26	17	3	6	-	-	17	3	2	10	1	1
2015	22	19	3	-	-	-	16	9	1	4	2	-
2016	5	5	-	-	-	-	20	12	1	3	2	2
2017	17	14	1	2	-	-	34	19	2	7	1	5
2018	51	33	-	15	3	-	61	33	8	10	3	7
2019	123	82	6	23	12	-	147	76	17	35	8	11
2020	129	96	6	21	6	-	156	79	13	37	6	21
2021	118	82	4	27	5	-	169	78	9	45	12	25
2022	132	85	7	30	4	6	157	90	8	30	8	21
2023	108	80	7	15	1	5	189	82	26	47	9	25

Section 3 Reward for Corruption and Public Interest Whistleblowers

The reward system for whistleblowers is to provide monetary rewards to whistleblowers who have contributed to the promotion of the public interest or have directly resulted in the recovery or increase of revenues or decrease in public expenses. The reward system for whistleblowers is a system that provides monetary rewards to whistleblowers who have contributed to the promotion of the public interest or have directly resulted in the recovery or increase of direct income or reduction of costs. It serves as an effective means of preventing corruption and public interest violation by incentivizing the voluntary participation of individuals who take courageous actions in the public interest, despite various risks.

1. Monetary Award System for Whistleblowers

If the report has significantly contributed to the promotion of the public interest, the ACRC itself or other public institutions may recommend rewards for the whistleblower in accordance with the Awards and Decorations Act, and when certain criteria for rewards are met, the Commission may pay monetary awards of up to KRW 500 million for corruption whistleblowing and monetary awards of up to KRW 200 million for public interest whistleblowing.

2. Monetary Reward System

Unlike monetary awards, monetary rewards are paid upon the application of the whistleblower if there is a direct recovery of revenue by a public institution as a result of the report, and the rewards can be paid up to KRW 3 billion.

<Table 3-12> Annual payment of rewards

(unit: cases, KRW 1,000)

Year	Corruption reporters			Public interest reporters		
	Cases	Benefits incurred*	Rewards paid	Cases	Benefits incurred*	Rewards paid
14	30	6,878,647	619,347	657	2,239,585	397,340
15	29	28,770,531	1,426,658	511	1,988,446	379,997
16	90	23,997,537	2,275,033	2,476	8,344,742	1,603,578
17	113	26,539,641	2,108,374	1,710	11,198,923	1,976,511
18	166	36,836,590	3,114,994	277	66,077,269	2,213,658
19	197	28,364,346	2,312,974	211	22,254,652	1,534,593
20	238	46,003,611	3,842,099	249	25,258,924	1,560,901
21	485	40,862,696	3,397,868	138	10,312,828	811,290
22	480	17,922,028	2,863,390	99	48,536,415	2,255,828
23	602	40,582,871	4,085,784	44	14,980,114	783,812
	2,430	296,758,498	26,046,521	6,372	211,191,898	13,517,508

* The value of the recovered or increased revenues of the State or local governments through a report. The amount of rewards is calculated based on it.

3. Relief Funds System

Relief funds may be provided to cover expenses incurred in physical and mental treatment, moving service or litigation procedures, and the amount of lost wage during the period of disadvantageous measures faced by the whistleblower, cooperator or others in connection with the report.

4. Key Cases

A. Monetary rewards for reporting suspected unlawful receipt of subsidies for employee retention

A whistleblower reported a business that illegally received subsidies for employee retention during COVID-19 by falsely claiming that employees were on leave even though they were

working normally. It was confirmed that the business illegally received over KRW 350 million in subsidies from the Ministry of Employment and Labor, and KRW 93 million was paid to the whistleblower in monetary rewards.

B. Monetary rewards paid to those who reported suspicion of unlawful receipt of the youth digital job project subsidy

A whistleblower reported that OO company was assigning employees to non-IT-related tasks despite receiving a 'youth digital job project subsidy'. As a result of the report, the unlawful receipt amount of KRW 15 million was recovered, additional monetary sanctions of KRW 70 million were collected, and monetary rewards of KRW 26 million were paid to the whistleblower.

C. Monetary rewards paid to those who reported suspicion of unlawful receipt of the research and development expenses

A whistleblower reported a company for illegally receiving research and development funds. The company received government funding for research and development under the guise of purchasing equipment for research, but in reality, it borrowed the equipment instead of purchasing it. The report resulted in the recovery of KRW 570 million in government subsidies, and the whistleblower was awarded KRW 109.4 million in monetary rewards.



Chapter 3.

Promotion of the Public Fund Recovery System

With the expansion of public funds and the continuous occurrence of cases involving fraudulent claims and receipt of public funds¹⁾, the ACRC pushed for the establishment of a general law regarding the recovery of and sanctions on the false claim of public funds. As a result, the Act on the Prohibition of False Claims for Public Funds and Recovery of Illicit Profits ("Public Funds Recovery Act") was enacted on April 16, 2019, and finally came into effect on January 1, 2020.

The Public Funds Recovery Act is mainly regarding four types of false claims of public funds: claiming public fund payments such as subsidy, reward, and contribution without legitimate qualifications; claiming excessive amounts of such payment; using the fund for a purpose or usage other than specified purposes; and falsely receiving such funds. The Act stipulates that the administrative authority should impose and collect an additional monetary sanction of up to five times the value of the relevant illicit profits where there exists such a false claim.

Under the Act, competent administrative authorities should announce a list of illegal beneficiaries who have falsely claimed large amount of public funds or who have committed false claim of public funds several times. The ACRC is entitled to the inspection of the progress of the public institutions' recovery of falsely-claimed public funds and imposition of additional monetary sanctions. The Act also requires the Commission to establish strict protection measures for those who report such false claim cases such as guarantee of their positions and protection of personal safety, to promote active reporting of false claims of public funds and pay them monetary rewards.

1) From 2020, when the Public Funds Recovery Act was enforced, to the first half of 2022, the ACRC examined the actual situation of each administrative agency's recovery, etc. recovering KRW 182.2 billion.

The ACRC is pursuing an amendment to the Public Funds Recovery Act to ease regulations and address loopholes in fraudulent payments. The following are the main contents of the amendment: (1) in the case of mistaken payments that are not attributable to the unlawful beneficiary, the interest charge is exempted upon repayment; (2) excluding national and public schools as well as central administrative agencies and local governments from unlawful beneficiary; (3) imposing interest by applying the Public Funds Recovery Act when other laws have provisions for recovering underpayments but do not have provisions for recovering interest; (4) the size of the reduction was reduced from a full exemption of additional monetary sanctions after recognized by the administrative office when voluntarily reporting a fraudulent claim to a 50% reduction.; and (5) adding a new provision on criminal punishment for fraudulent claimants (false claim: imprisonment for up to 3 years or a fine of up to KRW 30 million, and overbilling: imprisonment for up to 1 year or a fine of up to KRW 10 million). The amendment to this Act was passed by the National Assembly's Political Affairs Committee in December 2023, and the revision is scheduled to be completed in 2024.

Since the enforcement of the Public Fund Recovery Act in 2020, the ACRC has regularly conducted inspections on the fraudulent receipt of public funds, including government grants from central administrative agencies, local governments, and local education autonomous entities. As a result, the amount of recoveries and additional monetary sanctions imposed have been gradually increasing.

<Table 3-13> Result of inspections on the status of recovery of public funds, imposition of monetary sanctions, etc.

(unit : KRW million)

Year	Recovery	Monetary sanctions
2020	45,425	263
2021	95,473	9,855
2022	114,988	18,563
First half of 2023	41,792	19,997
Total	297,678	48,678

The ACRC, in its fourth year of enforcement of the Public Fund Recovery Act, sought to strengthen the capacity of administrative agencies to prevent fraudulent receipt through customized training and consulting with agencies of various levels. The ACRC conducted regional workshops for scheme operators, project managers, and others on a quarterly basis in 2023. Online training tailored for each type of agency was provided to create an operational foundation and enhance understanding of the public funds recovery system for persons in charge of central administrative agencies, metropolitan and lower-level local governments, offices of education, and public service-related organizations. In addition, the ACRC continued to promote institutional consulting for agencies of various levels, including administrative agencies that have a poor track record of imposing sanctions, as a result of fact-finding inspections, and made efforts to strengthen the capacity of the field by sharing weak areas and transferring effective inspection methods.

The Public Funds Recovery Division conducts surveys to identify vulnerable areas of frequent fraudulent receipts and problems in the field and prepare measures to eradicate illicit profits. In 2023, a vulnerable sector survey was conducted on 235 local governments that pay fuel subsidies and agricultural subsidies. As a result, KRW 10.1 billion was recovered from 203 local governments with inappropriate sanctions and additional monetary sanctions were recommended. In addition, in order to eradicate fraudulent receipts, which often occur in the fuel subsidies and agricultural subsidies sectors, the ACRC worked with the relevant ministries to improve the system to prevent leakage of public funds such as strengthening linkages between related systems to check the status of illegal receipts in subsidy-related systems, etc.

To ensure the stable establishment of the public fund recovery system, the ACRC intends to strengthen education and outreach efforts. The Commission plans to lead efforts to recover illicit profits from agencies of various levels (central ministries, local governments) by inspecting sanctions against fraudulent receipt of public funds. In addition, on the occasion of the fifth anniversary of the Act's enforcement, the ACRC plans to focus its efforts on revising the Act by actively discovering the deficiencies that have appeared in the operation of the system and those that need to be supplemented.



Chapter 4.

Operation of the System to Restrict the Employment of Public Officials Dismissed for Corruption Charges

Public officials who have rightly resigned, or have been dismissed or removed from office for corrupt acts in connection with their duties during the term of their offices are prohibited from getting employment at public institutions or for-profit companies closely related to the department or institution to which they belonged from five years before their resignation, for five years after the date of resignation. The employment restriction system for public officials dismissed for corruption was introduced in the Corruption Prevention Act in 2001, and the scope of individuals and institutions subject to the employment restriction was significantly expanded in accordance with the revision of the applicable law in March 2016. The ACRC identifies violators employed in restricted institutions by conducting regular inspections on the employment status of public officials who have been dismissed for corruption and reviewing rule violations of those who got employed.

Over the past six years (2018-first half of 2023), a total of 1,306 public officials were dismissed for corruption. Among them, the most common type of corruption was a receipt of money, entertainment, or other valuables, with 544 cases, followed by 274 cases of embezzlement and misappropriation of public funds, 78 cases of abuse of authority or dereliction of duty and 54 cases of document forgery or counterfeiting. Plus, 356 were dismissed for other reasons (leaking official secrets and violation of statutes related to budget and finances).

<Table 3-14> Reasons for dismissal of public officials

(unit : persons)

Type of corruption	'18	'19	'20	'21	'22	'23 (first half)	Total
Receipt of money, entertainment	159	129	91	72	70	23	544
Embezzlement or misappropriation of public funds	45	65	49	53	43	19	274
Abuse of authority or dereliction of duty	15	15	12	20	12	4	78
Document forgery or counterfeiting	12	11	9	10	8	4	54
Others	60	90	55	59	69	23	356
Total	291	310	216	214	202	73	1,306

In inspections on the employment of former public officials dismissed for corruption, the Commission detected 41, 63, 46, 53, 34 and 14 violators of the employment restriction provision in 2018, 2019, 2020, 2021, 2022, and the first half of 2023, respectively. For those caught for illegal reemployment, the ACRC requested their former organizations to take prosecution or precautionary measures to prevent a recurrence, while for those who are still working, the ACRC requested taking measures to terminate their employment or dismiss them.

This is a three- to four-fold increase from 16 individuals who were detected in the inspection in 2017. This was attributable to the amendment to the Corruption Prevention and the ACRC Act in September 2016, which expanded the scope of institutions subject to employment restrictions on former public officials. (Among the violators of the employment restriction provision, the number of those who were hired by entities related to their former public duties was 2 in 2015, 3 in 2016, 11 in 2017, 31 in 2018, 40 in 2019, 29 in 2020, 32 in 2021, 17 in 2022, and 11 in the first half of 2023).

Starting from the inspection conducted in 2019, the ACRC reviewed the data on public officials' other incomes -a category including advisory fees, etc.- which is provided by the National Tax Service and applied an expanded concept of employment to retired public officials subject to employment restriction. As a result, 4 violators of the employment restriction rule were detected in the 2019 inspection, 5 in 2020, 9 in 2022 and 14 in 2023. As such, the ACRC made efforts to address the loopholes that existed within the employment restriction system.

Employment in violation of the employment restriction system may result in penalties. However, there have been cases of violations due to unawareness of this system as guidance on this system is not mandatory.

With the amendment of the ACRC Act (promulgated on January 4, 2022, and enforced on July 5, 2022), the head of a public institution is required to provide a prior notice to public officials dismissed for corruption in order to prevent them from being unaware of the system and working at an employment restricted institution in advance.

In addition, the ACRC Act specifies cases where a person has received probation, including not only those who are on probation but also those whose probation period has expired, and clarifies that there is controversy over whether "public institutions" include national and public schools among those who are restricted from working. Also, the starting point of the work restriction period for fines and probation has been specifically revised to specify the starting point of the work restriction period for each type of sentence such as the date of finalization of the sentence, to clarify the criteria for applying the law.

In 2023, the ACRC conducted promotions and education on the 2022 amendments listed above to ensure that public institutions at all levels are aware of them.

In the future, the ACRC plans to carry out preventive activities in various ways to prevent the violations of employment restriction regulations. To this end, public institutions at all levels

will be required to inform persons dismissed for corruption, etc. of the employment restriction system without delay.

The ACRC is considering a number of ways to identify persons dismissed for corruption who are not on the list, including identifying those who are subject to pension restrictions due to dismissal or criminal penalties. This will ensure that in the future, public institutions will be more thorough in identifying and notifying the ACRC of persons dismissed for corruption, including any changes to the original disciplinary action.

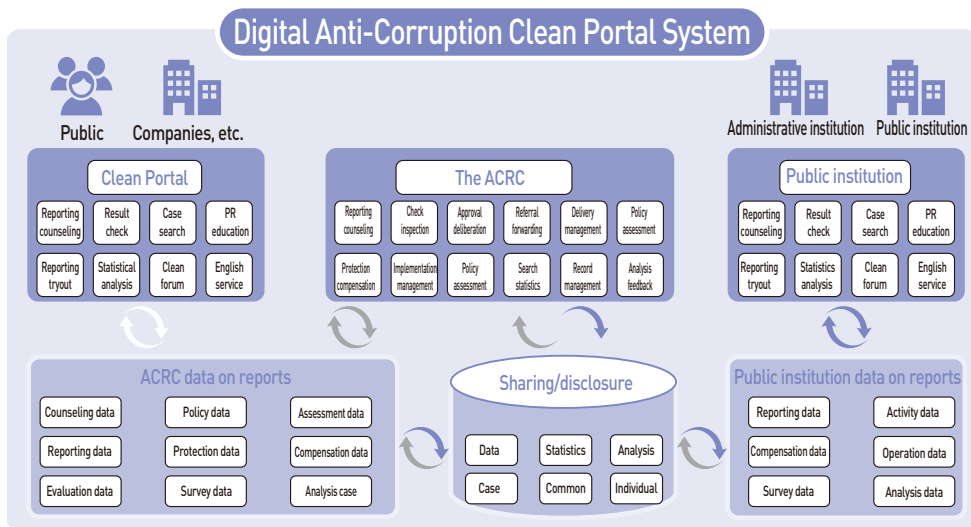
The ACRC will also strengthen employment fact-finding inspections of persons dismissed for corruption, including in sectors with high potential for public-private ties, and will conduct in-depth reviews of violations, including the relevance of work between the organization where the person was employed before leaving and the organization where the person is reemployed.



Chapter 5. Innovation of Anti-Corruption Work by Advancing Clean Portal System

The Clean Portal_Corruption and Public Interest Violation Reporting System is a comprehensive anti-corruption information platform that allows people to conveniently make online corruption reports and easily search for necessary anti-corruption information. In 2018, the ACRC completely overhauled its corruption reporting system, known as the Corruption Prevention System, which had been in operation since 2003, to provide a one-stop service for anti-corruption work procedures, ranging from customized reporting for different types of users to applications for protection and rewards. This also led to the establishment of a common platform for anti-corruption officers to handle relevant tasks promptly and accurately by supporting the sharing and disclosure of anti-corruption information.

○ [Figure 3-1] Digital Anti-Corruption Clean Portal System



In 2020, the existing 'National Integrity Information System' was renamed 'Clean Portal_Corruption reporting system' to make the public clearly aware of the functions of the Clean Portal, and a standardized reporting system was disseminated to public institutions to provide convenience to the public. As of December 2023, a total of 1,122 organizations use the Clean Portal, including 47 central administrative agencies, 243 local governments, and 832 public service-related organizations.

In addition, an analytical foundation has been laid to enable the ACRC and public institutions to utilize intelligence and information technology in their anti-corruption work based on the establishment and dissemination of the Clean Portal system and the anti-corruption information accumulated therefrom.

In line with the enforcement of the Conflict of Interest Prevention Act on May 19, 2022, the ACRC opened the service which enables mandatory reporting by public officials and violation reports by the public. As of December 2023, 2,093 institutions are using the system.

In addition, as the scope of non-real-name proxy reporting has been expanded, the ACRC has enhanced the convenience of reporting by enabling the submission of non-real-name proxy reports, which were only accepted offline, through the Clean Portal.

In addition, in 2023, the ACRC transferred its experience in building an anti-corruption Clean Portal to three UNDP countries (Uzbekistan, Mongolia, and Kosovo) and conducted a preliminary research project for the Korea International Cooperation Agency (KOICA) to export the Clean Portal to Colombia.

In the future, the Clean Portal will continue to be stabilized by conducting annual surveys of users to collect their opinions for improvement, conduct maintenance, and continuously improve functions. In the future, the ACRC plans to spread its experience in building and operating the Clean Portal reporting system to the international community.





Part 04

Protecting People's Rights and
interests by Addressing Grievances
with a Focus on Real-Life Problems



Chapter 1. Grievance Petition Handling System

1. Overview of Grievance Petition

Definition

The term “civil petition for grievance” means a civil petition for the redress of a grievance pertaining to matters that infringe the rights of the people, or give any inconvenience or burden to people, due to unlawful, irrational or passive disposition (including factual act and omission) of an administrative agency, etc., or the irrational administrative system. (Article 2(5) of the Corruption Prevention and the ACRC Act)

A. General civil petition and grievance petition

Article 2 of the Civil Petitions Treatment Act divides complaints into a general civil petition and a grievance petition. The Act defines the former while stating that the definition of “grievance petition” is in accordance with the Act on the ACRC Act. A general petition is a legal civil petition applying for authorization, permission, approval, patent, license, registrations, certifications, etc. to administrative agencies, an inquisitive civil petition requesting an explanation of statutes, regulations, or systems, and a recommendatory civil petition requesting the improvement of administrative systems and operations. A grievance petition is a secondary complaint filed by a person who is dissatisfied with the outcome of a general civil petition.

In principle, a grievance petition should be handled by the audit department of the original processing organization or a supervisory body with authority over the matters related to the grievance. However, they may be handled directly by the ACRC as the Commission serves as

the final complaint-handling body within the executive branch.

In addition, unlike the audit department and supervisory body of the original processing agencies, the ACRC as the national Ombudsman, investigates and handles civil petitions through its dedicated unit and authority. The Ombudsman receives grievances from the public regarding public administration, conducts impartial investigations, and issues corrective recommendations or opinions when necessary. It also mediates and arbitrates disputes between citizens and administrative agencies, and improves administrative practices to enhance government trust and public satisfaction.

B. Recommendation of rectification and expression of opinions on unlawful or unjust administrative actions

If there is reasonable ground to believe that a disposition taken as a result of an investigation into a grievance petition is unlawful or unjust, the ACRC recommends the relevant administrative agency to rectify it, and if it is deemed that the argument of a petitioner is based on reasonable grounds, the Commission expresses its opinion to the relevant administrative agency to take corrective action.

C. Recommendation for institutional improvement and expression of opinions on unreasonable laws and systems

If it is deemed necessary to improve laws or regulations, systems, policies, etc. in the course of processing grievance petitions, the ACRC recommends the heads of relevant administrative agencies to make rational improvements or expresses its opinions, thus preventing the same kind of complaints from recurring.

D. Settlement and mediation of grievance petitions between the petitioner and the respondent as a third party

The ACRC acts as a third-party mediator and arbitrator between the petitioner and the respondent to reach an amicable settlement or to mediate and arbitrate public conflicts

involving multiple parties. Especially for a grievance petition that involves more than one person or that is recognized as having a high social impact, the mediation is a form of alternative dispute resolution (ADR)¹⁾

Features of the ACRC grievance process

- Republic of Korea's National Ombudsman
- The final grievance authority in the government
- Performing indirect administrative control functions by making corrective recommendations and expressing opinions
- Help desk for government policies and affairs
- Quick, easy, and flexible processing from a third-party, non-bureaucratic perspective

2. Cooperation, Support, and Training for the Local Ombudsman

As a national ombudsman²⁾, the ACRC supports local government in establishing and operating a Local Ombudsman and provides it with the Commission's know-how and information on handling grievance petitions to help the Local Ombudsman fulfill its role of protecting and promoting the rights and interests of local residents.

3. Comprehensive Evaluation of Civil Service of Administrative Agencies

Every year, the ACRC conducts a comprehensive evaluation of civil service to improve the civil service of local governments, offices of education, etc. and visits each institution to provide consultation on resolving grievance petitions and group conflicts to help improve inadequate civil service practices.

1) Alternative Dispute Resolution: A process of bringing disagreeing parties for dispute settlement with the help of a fair and neutral third party -except for the court- without resorting to litigation

2) Ombudsman: A system that originated and developed in the Nordic countries of Sweden, Finland, Denmark, and Norway. An ombudsman is a person who has been appointed as a representative of the public to monitor whether a public institution is properly fulfilling its statutory responsibilities.



Chapter 2. Receipt and Handling of Grievance Petitions

1. Overview

Receiving, examining, and processing grievance petitions are key duties of the ACRC to protect people's rights and interests. The ACRC examines civil petitions for the redress of a grievance pertaining to matters that violate the rights of the public or give inconvenience or burden to the public, due to the unlawful, irrational, or passive disposition of an administrative agency or the irrational administrative system, recommends corrections or expresses opinions to administrative agencies, and resolves a grievance petition through mediation and settlement.

In 2023, the ACRC received 44,390 grievance petitions and handled 42,581. The acceptance rate indicating that the grievance petitions have been resolved was 28.7%, up 3.0% from the previous year. Grievance satisfaction score also increased by 3.4 points.

<Table 4-1> Receipt and handling of grievance petitions

Category	2021	2022	2023
No. of cases received	56,423	37,739	44,390
No. of cases handled	58,880	37,598	42,581

<Table 4-2> Acceptance rate and satisfaction score of grievance petitions

Category	2021	2022	2023
Acceptance rate	21.1%	25.7%	28.7%
Satisfaction score	72.2points	76.7points	80.1points

2. Current status of recommendation for rectification/ expression of opinions

A. Processing status

The ACRC resolved a total of 517 cases in 2023, including 181 recommendations for rectification and 336 expressions of opinions based on Articles 46 and 47 of the 「Act On The Prevention Of Corruption And The Establishment And Management Of The Anti-corruption And Civil Rights Commission」.

<Table 4-3> Status of recommendation for rectification and expression of opinions

Category	2021	2022	2023
Recommendation for rectification	191	224	181
Expression of opinions	367	368	336

B. Efforts to improve the acceptance rate

The resolution of the ACRC has an “advisory effect” and is not enforceable. This is intended to provide a broad and flexible remedy for people's grievances by complementing litigation, which is a rigid means of compulsory resolution. If the decisions made by the Commission were to have binding forces, it would require strict legal judgments such as litigation, to handle a civil petition, which could undermine the protection of the rights and interests of the public instead. In addition, if a specific factual investigation and logical judgment are

made, most respondents are willing to accept without legal compulsion. Even if they express their intention to refuse, the ACRC continues to persuade them, taking responsible management efforts until the grievance petition is resolved.

For example, the ACRC confirms and inspects the actual status of compliance with recommendations under Article 52 of the ACRC Act, and holds a grievance acceptance cooperation meeting for institutions with a high number of unaccepted cases, aiming to diagnose and analyze the cause of unacceptance and find alternatives, together with administrative agencies such as the relevant institutions and competent ministries. The ACRC will continue to make efforts for the protection of the people's rights and interests by direct and indirect efforts to improve acceptance of corrective recommendations and feedback.



Chapter 3.

Complaint Handling to Increase Public Perception

1. Overview

Since 2003, the ACRC has operated the Onsite Outreach Service which provides counseling services to marginalized areas and vulnerable communities by visiting them directly, and has resolved regional and class inequalities by counseling and resolving grievances on-site.

From 2008 to 2023, the Onsite Outreach Service visited 1,087 times to the local governments (si/gun/gu) and consulted 28,780 grievances. Through active coordination and mediation, it resolved more than 50% of all grievances on-site over the past 5 years. And last year, the cumulative number of on-site resolutions reached 11,047, proving that it is being utilized as a means of resolving grievances for the people.

* On-site resolution rate: (2019) 50.4% → (2020) 51.8% → (2021) 52.8% → (2022) 55.7% → (2023) 58.6%

Since 2018, the ACRC has operated a dedicated Business Complaint Team to more actively help small and medium-sized enterprises and micro-enterprises to remedy their rights. In September 2023, the ACRC established the "Grievance Complaint Special Investigation Division," which enables the ACRC to respond quickly to cases with high social impact and complex stakes, such as in the economic and safety sectors, that require a quick response. In particular, the ACRC has been improving the satisfaction level of grievance resolution by enhancing the vitality of business activities such as continuously holding an 'on-site meeting for business grievance' to discover and proactively resolve the difficulties and grievances of SMEs and small business owners.

※ No. of meetings held : (2018) 16 → (2019) 12 → (2020) 7 → (2021) 12 → (2022) 13 → (2023) 12

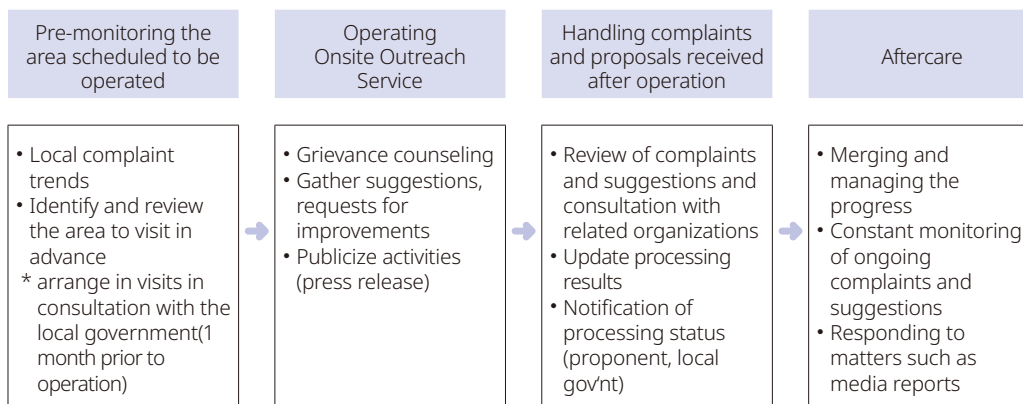
2. Onsite Outreach Service for Eliminating the Blind Spots in People's Rights and Interests

A. Operation and Role of the Onsite Outreach Service

The Onsite Outreach Service is a system that provides consultation and receives civil complaints. It is designed for the ACRC to visit island, remote and rural areas whose residents have difficulty filing civil petitions online due to difficulty in using the internet or visiting the ACRC due to their livelihood as well as people in the blind spots of welfare such as senior citizens , marriage immigrants, etc. It also serves as a communication channel between the people and the government by identifying civil complaints, collecting various local voices through meetings and reflecting them in policies.

Among the complaints filed at the Onsite Outreach Service, those that can be settled on the spot are resolved immediately by coordinating the disagreement between the civil petitioner and the administrative agency concerned while those that require further investigation are submitted as grievance petitions to the ACRC, and the Commission investigates and resolves them according to the procedure. In addition, policy issues and system improvement requests are resolved through consultation with relevant administrative agencies, and the processing status is notified to the petitioner and the administrative agency in order to resolve inconveniences of the people.

<Table 4-4> Operation and Grievance Resolution Procedure for Onsite Outreach Service



B. Operational Performance of the Onsite Outreach Service

The ACRC operated the Onsite Outreach Service 104 times in 2023, counseling a total of 2,264 complaints, of which 1,326 cases were resolved on-site or provided with guidance on how to resolve them. In addition, the ACRC received grievance petitions and sought solutions to issues that were difficult to resolve on-site because they required additional actions by administrative agencies, such as securing budgets, etc.

<Table 4-5 > Operational Performance of the Onsite Outreach Service

(unit : cases)

Category		Total	'03.~ '07	'08.~ '12	'13.~ '17	'18	'19	'20	'21	'22	'23
Frequency (numbers)		1,087	55	178	292	84	101	78	91	104	104
Consultation record	Total	28,780	1,543	6,441	8,928	2,163	2,519	1,511	1,482	1,929	2,264
	On-site solution	11,047	-	1,206	3,575	1,032	1,269	782	782	1,075	1,326
	Consultation assistance	13,636	1,002	4,353	4,193	891	1,039	519	494	555	590
	Complaint submission	4,097	541	882	1,160	240	211	210	206	299	348

Since 2012, the Onsite Outreach Service has been operating as a one-stop comprehensive counseling channel for citizens to consult and resolve their daily inconveniences in collaboration with related organizations³⁾ such as the Korea Legal Aid Corporation, the Korea National Council on Social Welfare and the Small Enterprise and Market Service .

[Operation of the Onsite Outreach Service]



Regional Onsite Outreach Service
in Uijeongbu-si (15 March, 2023)



Tailored Onsite Outreach Service
in Andong-si (29 March, 2023)

C. Way Forward

The Onsite Outreach Service will be continued by visiting all corners of the country to resolve complaints from marginalized areas and vulnerable groups. In addition, the Onsite Outreach Service will do its best to solve the business difficulties of small business owners in small and medium-sized cities in the countryside, which are experiencing economic difficulties due to population decline, high prices and high interest rates, and the difficulties of young people in job seeking and starting a business.

3) Collaborative organizations: Ministry of Employment and Labor, Korea Employment Information Service, Korea Legal Aid Corporation, Korea Council for Social Welfare, Korea Consumer Agency, Korea Land and Geospatial Information Corporation, Korea District Heating Corporation, Korea Financial Consumer Protection Agency, Small Enterprise and Market Service, Credit Recovery Committee

3. On-Site Meeting for Business Grievance

The ACRC has been operating the 'on-site meeting for business grievance' to provide practical support to companies that reflects the on-site voices of the people. To this end, the ACRC visits companies, SMEs, and small business owners located in industrial and agricultural industrial complex across the country to identify their grievances and difficulties, and seeks multi-dimensional solutions with relevant organizations.

In 2023, 12 on-site meetings for business grievance were held, and a total of 136 complaints were received, 74 of which were resolved by taking necessary measures through investigations by related organizations or by providing guidance on related systems.

<Table 4-6> Operation status of on-site meeting for business grievance in 2023

Date	Target	Date	Target
28 Jan	Small and micro-enterprises in the Jeonnam region	20 Jul	SMEs in industrial complexes in Yeosu area
21 Feb	Small business in the high-tech industry in the Gyeonggi region	14 Sep	Agricultural corporations and micro-enterprises in the agricultural product sector
24 Feb	Companies located in Mipo and Onsan industrial complexes in Ulsan region	22 Sep	Manufacturing companies in the Gyeonggi region
29 Mar	Precious metals company located in Jongno, Seoul	27 Oct	Port facility-related companies located in Yeosu, Jeollanam-do
2 May	Companies in the tourism industry in the Yeosu area	10 Nov	Companies located in industrial complexes in the Busan area
23 Jun	Dongdaemun's fashion micro-enterprises	20 Dec	Companies located in industrial complexes in the Gangwon region

In order to support the establishment of a strong growth environment for SMEs, small business owners, etc. and to enhance the vitality of corporate activities, the ACRC will continue its efforts to resolve various difficulties in a timely manner through collaboration with relevant ministries, and guide businesses to government policies that meet their needs.



Chapter 4. Efforts to Further Protect People's Rights and Interests

1. Overview

As mentioned earlier, a grievance petition is a secondary complaint filed by a person who is dissatisfied with the outcome of a general civil petition (court, inquiry, suggestion, etc.). Here, the term "secondary" is not a numerical indication of a sequence or order but it is used to signify dissatisfaction or objection, and the secondary complaint itself may be filed several times. At this point, the petitioner's dissatisfaction is at its peak, so the investigators of the ACRC are simultaneously tasked with resolving the grievance and improving the satisfaction level.

Thus, the ACRC is making several efforts to address this challenge: first, the Commission operates a mediation system to resolve collective complaints that are difficult to resolve due to the involvement of multiple agencies and complex interest, and that take a long time to resolve even if resolved in a professional manner, and continuously compensates for institutional deficiencies found in the process.

Second, the ACRC supports the establishment of local ombudsmen to promptly and fairly resolve complaints arising from local governments, and for those that have already been established, to revitalize their operations.

Third, the ACRC conducts a 'comprehensive evaluation of civil service' for local governments and offices of education every year to strengthen the capacity of each organization to handle grievance petitions and improve the quality of public service.

Lastly, to improve the quality of complaint handling by each organization and the ACRC

investigators, the ACRC continues to conduct capacity-building training, sharing resolved complaint cases and disseminating methods for handling unusual and repeated complaints.

2. 'Collective Complaints Mediation' System to Resolve Complex Conflicts Amicably

A. Progress

In our society, there is an increasing awareness of people's rights, and a maturing perception of civil society participation, along with rapid economic growth. As a result, public conflicts with complex interests and significant scale are gradually intensifying. This has led to the filing of more than 300 collective complaints to the ACRC each year.

The ACRC actively utilizes the mediation system as a policy tool to promptly and fairly resolve grievances that involve a large number of people or have a significant social impact, effectively resolving various types of public conflict.

In the past, there were many simple types of collective civil petitions involving conflicting interests between a single administrative agency and a single village or group but in recent years, there has been an increase in the number of "complex disputes" involving multiple agencies such as the central government, local governments, and public institutions. These disputes not only occur between residents and administrative agencies but also involve conflicts between residents themselves and between administrative agencies.

The 'number of mediation resolutions' and 'mediation resolution ratio compared to the number of cases received' have been on a declining trend for the past three years, but increased significantly in 2023. This is a result of the ACRC's efforts to focus its organizational capacity on coordinating and resolving collective grievances, including the establishment of a dedicated collective grievance investigation team in March 2023 and the assignment of veteran investigators with extensive experience and know-how to the team.

<Table 4-7> Progress in resolving grievance complaints through mediation

Category	'11	'12	'13	'14	'15	'16	'17	'18	'19	'20	'21	'22	'23
Receipt of collective complaints	285	361	362	241	255	242	216	227	264	299	310	317	384
No. of cases resolved through mediation	24	42	43	54	65	72	76	65	47	53	41	33	63
Rate of resolution through mediation	8.4	11.6	11.9	22.4	25.5	29.7	35.2	28.6	17.8	17.7	13.2	10.4	16.4

Collective civil petitions tend to arise from conflicts of interest among parties in the pursuit of public interest projects, budgetary limitations of relevant organizations, and institutional limitations imposed by laws and regulations, rather than from unlawfulness or unfairness of an administrative agency's decision. Thus, there are considerable difficulties in resolving them through a conventional grievance-handling method. Therefore, it can be said that the mediation of the ACRC is firmly established as an alternative means of dispute resolution that seeks optimal agreement through sincere communication and compromise among the parties involved.

In response to increasingly complex and diverse collective civil complaints, the ACRC is strengthening practical consultations by conducting more proactive field investigations, persuading stakeholders, and organizing a mediation council consisting of relevant organizations and experts. Especially, the chairperson and members of the ACRC are doing their best to come up with win-win mediation solutions by visiting the sites and listening to residents' grievances. It also distributes casebooks on good solutions, mediation systems and their effects, and is also focusing on strengthening publicity such as media reports. This is expected to build public trust in the mediation system, resulting in an increase in the number of collective civil complaints requiring mediation and prompt resolution by the ACRC, thereby fostering a virtuous cycle.

B. Major cases of on-site mediation of collective civil complaints

A representative example of a collective complaint mediation case resolved in 2023 was the "Demand for the prompt completion of the Yeongju Multipurpose Dam, which was delayed

due to the restoration of cultural properties". Although the Yeongju Multipurpose Dam, located in Yeongju City, Gyeongsangbuk-do, was completed in 2016, the dam's completion was delayed by seven years due to delays in the relocation and restoration of cultural properties included in the dam construction project. In April 2023, four months after the complaint was filed, the issue was resolved through mediation.

The case was a large-scale collective complaint filed by 33,433 petitioners, and the residents wanted the dam to be completed as soon as possible so that the city of Yeongju could start promoting the residents' desired projects such as tourism around the dam. On the other hand, the Ministry of Environment, which has the permitting authority, maintained its position that a construction permit could be granted only after the cultural heritage restoration project was completed. However, waiting for the cultural property restoration project to be completed would delay the completion of the dam for a considerable period of time, causing the residents' dissatisfaction and conflict to continue to escalate.

The ACRC held several working-level meetings with the complainants, the residents of Yeongju City, and the relevant organizations including Ministry of Environment, Korea Water Resources Corporation, Gyeongsangbuk-do and Yeongju-si, etc. to resolve the conflict. The ACRC was able to convince the Ministry of Environment to create a mediated plan that detailed the roles and responsibilities of each agency to ensure that the cultural heritage restoration project would continue once the dam was completed. According to the settlement agreement, ▲ Yeongju-si and Korea Water Resources Corporation agreed to transfer the cultural property relocation and restoration project to Yeongju-si after the settlement, ▲ Gyeongsangbuk-do and Yeongju-si agreed to proceed with the transferred cultural property relocation and restoration project without any disruption, and ▲ the Ministry of Environment agreed to proceed with the administrative procedures for the completion authorization.

The ACRC's active mediation resolved a collective complaint that had not been resolved for seven years due to differences in positions between the central government and local governments, and the residents' desire to revitalize the local economy was resolved.

	
Yeongju Multi-purpose Dam	On-site mediation meeting for collective complaints of 'Demand for the prompt completion of the Yeongju Multipurpose Dam, which was delayed due to the restoration of cultural properties' [9 Aug, 2023]

The second case is a collective complaint demanding 'maintenance and opening of Anheung Castle in Taeon within the military installation protection zone'. This is an example of how mediation resolved a highly problematic situation in which two values clashed: maintaining a military installation protection zone for national security and opening cultural assets for local residents.

Anheung Castle, a state-designated cultural heritage located in Taeon, South Chungcheong Province, was located within the Anheung Center of the Agency for Defense Development and had been poorly preserved and maintained. The residents wanted to open Anheung Castle to the public in order to boost tourism in the Taeon region, but the Agency for Defense Development's designation as a military installation protection zone made it difficult to do so. In March 2023, the residents approached the ACRC for help in solving the problem.

The ACRC conducted dozens of rounds of consultations, working-level meetings, and on-site inspections with relevant organizations, and came up with a mediated plan that was acceptable to all parties. The main idea was to maintain the military installation protection zone around Anheung Castle, but open Anheung Castle to the public. ▲ The Governor of Taeon-gun, in consultation with the Agency for Defense Development, decided to confirm the scope of opening of Anheung Castle by a set deadline, renovate Anheung Castle, and relocate security facilities. ▲ The Agency for Defense Development discussed with Taeon-gun to confirm the scope of opening and decided to actively cooperate with Taeon-gun's

Anheung Castle opening project. Last but not least, ▲ The Administrator of the Cultural Heritage Administration agreed to actively cooperate and support the excavation, restoration, maintenance, and preservation project of Anheung Castle in Taean-gun, as Anheung Castle is a state-designated cultural heritage.

Through this mediation, Anheung Castle, which had been enclosed in barbed wire since 1976, was opened to the public for the first time in 50 years, providing an opportunity to revitalize the local tourism industry. Above all, it is significant that the military installation protection zone was maintained for national defense security, but the cultural property was opened to the public to enjoy cultural assets and develop the local tourism industry, thus creating a win-win solution for both sides that had been in sharp conflict.



The ACRC Chairperson visited Anheung Castle in Taean (Sep, 2023)



On-site mediation meeting for collective complaint of 'Demand for maintenance and opening of Anheung Castle in Taean within the military installation protection zone' (21 Sep, 2023)

The third case is a collective complaint demanding 'livelihood measures for the residents of the flooded area of Seomjin River'. A total of six organizations, including the Ministry of Environment, were involved, and the complaint, which had been difficult to resolve, was resolved through mediation.

The residents of ○○ Village in Imsil-gun, Jeollabuk-do have been farming the land around the village, but in 1965, the Seomjin River Dam project submerged most of the village's agricultural land. In 2007, the Seomjin River Dam redevelopment project reclaimed some of the remaining agricultural land. Since the dam was built, some of the land used for agriculture has been flooded five times due to rising dam levels. With the continuous loss of

agricultural land and flooding damage, the recent redevelopment project of the Seomjin River Dam has put the remaining agricultural land at risk of being submerged again. Therefore, the residents filed a complaint with the ACRC in October 2022, requesting that the ACRC take measures to protect their livelihoods from the submerged agricultural land.

The ACRC considered various options to ensure that the villagers would not lose any more farmland and held a mediation meeting on March 2, 2023, attended by representatives of the villagers and relevant agencies. According to the mediated measures, ▲ The Minister of Environment and the head of the Yeongsan River Basin Environmental Office have decided to exclude agricultural land that will be submerged by the Seomjin River Dam redevelopment project from the dam's reservoir and river zone. After all the administrative procedures are fulfilled, the abandoned river channel will be handed over to the Jeollabuk-do province so that the province could use it for the benefit of its residents. ▲ Jeollabuk-do province and Imsil-gun have established conditions for the transfer of the abandoned river channel, including land management and eco-friendly farming methods through leasing, and Jeollabuk-do province will sell the abandoned river channel received from the Ministry of Environment back to Imsil-gun. ▲ Korea Water Resources Corporation has agreed to actively cooperate in a dredging project to reclaim abandoned river channels so that they can have soil suitable for farming.

This mediation is significant because it provides a stable livelihood for the people whose ancestral farmland has been shrinking due to national development projects, and whose remaining farmland is at risk of being submerged.



Onsite mediation meeting for collective complaint of "demand for livelihood measures for the residents of the flooded area of Seomjin River" (March 2, 2023)

3. Invigoration of Local Ombudsman to Strengthen the Rights and Interests of Local Residents

The ACRC recommends the establishment of a Local Ombudsman, an independent complaint-handling body with expertise to promptly and fairly resolve grievances against local governments and their affiliated organizations.

The legal grounds for the establishment of the Local Ombudsman were prepared by the Act on the Establishment and Operation of the Local Ombudsman enacted in 2005. As of December 2023, 80 local governments (10 metropolitan and 70 basic) were operating the Local Ombudsman.

The ACRC established the "Regulations on the Operation of the National Council of the ACRC" to strengthen mutual cooperation with each local ombudsman across the country and laid the institutional foundation. Accordingly, the first national council of the ACRC was held in March 2021, and councils were held annually until the fifth in 2023. The council continues to promote linkage and exchange activities, including discussions on policies, systems, and mutual cooperation plans to support the invigoration of local ombudsmen.

In addition, customized consulting was provided to institutions without a local ombudsman, and for institutions with a local ombudsman, training and regional consultations were held periodically to strengthen their capacity to handle complaints. Efforts to establish and invigorate local ombudsmen have been ongoing.

4. Provision of Civil Service that Satisfies th Public

The ACRC, in collaboration with the Ministry of the Interior and Safety, conducts a "comprehensive evaluation of civil service" every year to check and inspect the handling of civil complaints at various levels of agencies in order to improve the quality of public services provided by administrative agencies.

In 2023, a total of 306 organizations were evaluated, including 46 central administrative

agencies, 243 local governments, and 17 offices of education, and the evaluation indicators were as follows

<Table 4-8> Evaluation indicators of the 「2023 Comprehensive Evaluation of Civil Services」

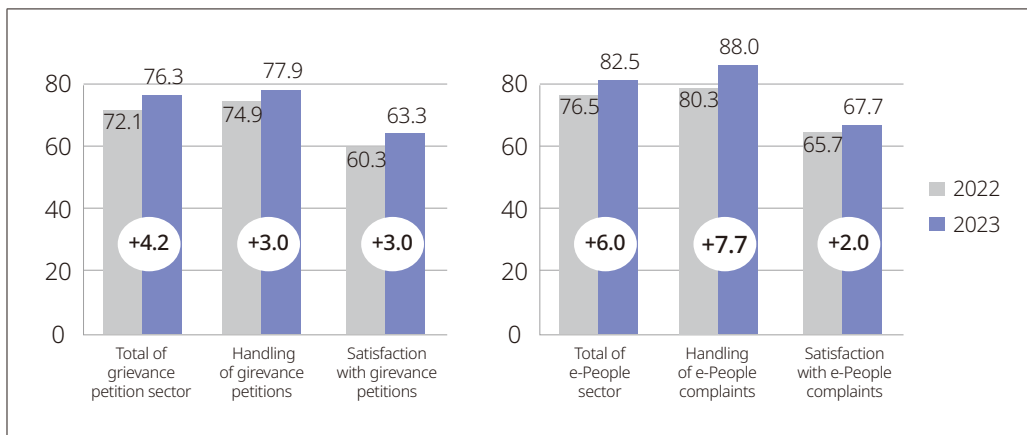
Evaluation areas	Evaluation items (5)	Evaluation indicators	Evaluator
Civil complaint administration activities	Handling of grievance petitions	1) Efforts to handle grievance petitions 2) Efforts to resolve grievance petitions 2) Management and inspection of grievance petition handling 3) Activation of local ombudsman	The ACRC
	Handling of e-People complaints	1) Speed of handling complaints 2) Fidelity of response to civil complaints 3) Appropriateness of handling complaints 4) Efforts to reflect public participation	
	Operation of civil complaints system	1) Provision of civil complaint information and operation of civil complaint laws 2) Confirmation/ inspection of complaint processing and training on personal information 3) Civil complaint administration and institutional improvement 4) Reorganization of civil complaints and reduction of required documents 5) Prompt processing of statutory civil complaints within a set period of time	Ministry of Interior and Safety
Management basis for civil complaint administration	Civil complaint administration strategy and system	1) Suitability of establishing civil complaint administration plan 2) Performance of civil complaint administration by the head of an agency 3) Civil complaint administrative management organization 4) Implementation of social value	
Civil complaint handling performance	Satisfaction	1) Satisfaction with legal complaints 2) Satisfaction with e-People complaints 3) Satisfaction with grievance petition	Common

In 2023, the overall average score of the 「comprehensive evaluation of civil service」 was 82.8: 87.6 for central administrative agencies, 85.9 for metropolitan municipalities, 77.6 for basic local governments, and 90.6 for provincial offices of education.

The average score for the sectors covered by the ACRC was 76.3 (4.2 ▲) for grievance petitions and 82.5 (6.0 ▲) for e-People complaints, both of which improved from 2022.

In particular, the satisfaction with grievance petitions (63.3 points, 3.0 ▲) and the satisfaction with e-People (67.7 points, 2.0 ▲), which were surveyed among complainants, improved year-on-year, showing the effectiveness of the customer service improvement.

<Table 4-9> The evaluation result of the sectors covered by the ACRC



The ACRC publishes the results of its annual comprehensive evaluation of civil service in the media to encourage voluntary efforts by administrative agencies to improve their civil service, and actively supports the strengthening of their capacity to handle civil complaints by providing rewards to outstanding agencies and consulting services to those that are not up to par.

In fact, of the 42 organizations that received customized consulting in 2023 due to underperformance in their 2022 assessment, a total of 35 (85.7%) saw their rankings increase by an average of 12 or more positions.

The ACRC will continue to thoroughly review the current state of civil service provision to ensure that administrative agencies at all levels provide high-quality civil service, and will continue to provide consulting to improve the quality of public service.

5. Training for Strengthening the Capacity to Handle Grievance Petitions

The ACRC provides annual complaints capacity-building training to public officials at various levels in agencies to improve the quality of public service and broaden their understanding of grievance petitions and protection of rights and interests.

The training for strengthening the capacity to handle grievance petitions for agencies at all levels consists of one basic course and three specialized courses. Training is provided in a variety of ways, including regional training, nationwide training, and training in conjunction with training institutes taking into account the effectiveness of the training and the convenience of the training demanders.

<Table 4-10> Training course to strengthen capacity for handling grievance petitions

Category	Course Name	Target
Basic course	① Basic course for handling grievance complaints	Newcomer, civil affairs worker
Advanced course	② Professional investigation course by grievance complaint field	Investigation team leader, middle manager
	③ Collective grievance complaints and public conflict course	
	④ Local ombudsman course	City committee members, secretariat staff

The ACRC also provides on-the-job training on laws and investigative techniques to new and transferred investigators to improve their work skills. In order to proactively respond to the increasing number of large-scale collective complaints and social conflicts, the ACRC also provides outsourced training to the Korean Commercial Arbitration Board and the Korea Institute of Public Administration to cultivate a higher level of mediation expertise and conflict management capabilities.

<Training for strengthening the capacity to handle grievance petitions>



6. Planned Investigation through Analysis of Frequent Civil Complaints

The ACRC strives to fundamentally eliminate and address grievance triggers by identifying grievances that are repeatedly raised every year and improving and reorganizing related policies and systems through special investigations such as in-depth analysis of complaints, consultations with related organizations, and onsite investigations.

Key examples of planned investigation

(1) Strengthening screening procedures for an injury in the course of performing duty and disease in the course of performing duty for social service personnel

• Main Content

The system in which the department in charge of the service organization alone determines whether a social service personnel is injured in an accident while performing their duties or commuting to and from work lacks fairness and expertise, and is burdensome for public officials. Therefore, a plan has been put in place to involve experts, local military authorities, and external judges in the process of determining whether the injury is in the course of performing duties.

→ Increase impartiality and professionalism in determining an injury in the course of performing duty and disease in the course of performing duty for social service personnel

(2) Take steps to prevent falling victim to phishing scams using precious metals trading

• Main Content

Cash withdrawals for bank transfer transactions of KRW 1 million or more will be restricted for 30 minutes. As new phishing scams that exploit gold transactions to quickly steal money from victims are on the rise, improvements have been made to prevent damage. As a result, in the case of a precious metal transaction using bank transfer, if the depositor and the on-site buyer are different, the seller of the precious metal will be required to check the on-site buyer's identification card to secure the name and resident registration number, and to call the depositor directly.

→ Helping to prevent victims of new phishing scams using precious metals trading and eradicate voice phishing

(3) Improving unreasonable business compensation standards for tenants, such as unauthorized structures

• Main Content

Unlike general business compensation, business losses are compensated when a business is registered under the provisions of the Value-added Tax Act, as a special exception for businesses that lease unauthorized buildings. In connection with this regulation, the requirement for business registration was deleted and a new regulation was established on how to prove the actual business facts when compensating business losses for business operators who lease buildings.

→ Improved criteria for reasonable sales compensation, including eliminating blind spots where actual sales are excluded from compensation.

(4) Take steps to improve pedestrian safety and convenience

• Main Content

The popularization and diversification of transportation methods such as scooters have changed the walking environment, resulting in a steady increase in safety accidents while pedestrians are walking and crossing sidewalks. Therefore, the standards for lowering the curb of crosswalks and detailed standards for the minimum effective width of sidewalks have been established, and improvement measures such as legislating the standards for installing street trees so that the right of way is not restricted due to the installation of facilities such as street trees have been prepared.

→ Contribute to alleviating traffic inconvenience and securing the safety of people with disabilities who have difficulty walking due to narrow sidewalk widths and obstacles such as curb stones at crosswalks, street trees, etc.



Part
05

Handling Administrative Appeals
in a Fair and Prompt Manner



Chapter 1. Administrative Appeals System

Section 1 Overview of the Administrative Appeals System

1. Key Features of the Administrative Appeals System

Administrative appeals serve two main purposes: redressing the rights and interests of the people and controlling autonomous administration. The redress of rights and interests refers to protecting the rights and interests of individuals who have been infringed upon by unlawful or unjust administrative actions, and autonomous administrative control refers to ensuring the legality and rationality of administrative actions by allowing administrative agencies to self-correct.

The Administrative Appeals Act stipulates that “The purpose of this Act is to relieve citizens from the infringement of rights or interests caused by any illegal or unjust disposition or omission of public power by administrative agencies through the administrative appeals procedures, thereby achieving a due operation of administration,” indicating that the purpose of the administrative appeals system is to remedy rights and control autonomous administration.

2. Characteristics of the Administrative Appeals Commission

The administrative appeals commission is a consensual appellate body authorized to review and make a ruling. It has the characteristics of a reviewing and ruling body that judges and makes a ruling on a claim of the disputing parties from a third party's perspective through various evidence investigations and review of related laws.

The administrative appeals commission adopts a resolution with the attendance of a majority of its members and by the concurring vote of a majority of those present. To maintain the objectivity and impartiality of the members, the commission is required to have non-public officials such as lawyers and professors as its non-standing members.

The Administrative Appeals Act requires the establishment of an administrative appeals commission independent from the administrative disposition issuing institution to ensure a fair and objective review. In addition, it applies various judicial procedures in review and ruling such as intervention in appeals, the disqualification of, challenge to, and voluntary refrainment by members, appointment of agents, and examination of evidence, and grants the commission the authority to independently make a rule.

3. Types of the Administrative Appeals Commission

The administrative appeals commission is divided into three types: the Central Administrative Appeals Commission (CAAC) established under the ACRC; an administrative appeals commission established under the jurisdiction of a Mayor/Provincial Governor of the 17 metropolitan governments; and other administrative appeals commissions.

Established under the umbrella of the ACRC, the CAAC deliberates and rules on appeal cases related to the disposition or omission of the agencies below:

- Heads of state administrative agencies, or their subordinate administrative agencies,
- Special Metropolitan City Mayors, Metropolitan City Mayors, the Special Metropolitan Autonomous City Mayor, Provincial Governors, and the Special Self-Governing Province Governor,
- Superintendents of education or the Assembly of the Special Metropolitan City, Metropolitan Cities, the Special Metropolitan Autonomous City, Provinces or the Special Self-Governing Province,
- Other administrative agencies jointly established by the State, local governments, public corporations, etc.

The CAAC consists of no more than 70 members, including one chairperson and its standing members not more than four (currently 3 persons). Its Chairperson is one person, from among the vice chairpersons of the ACRC, and where the Chairperson is absent or is unable to perform his/her duty because of inevitable circumstances, or where he/she deems it necessary, a standing member (in order of seniority of service as a standing member, and in cases of equal seniority of service, in order of their age) should act on the Chairperson's behalf. The meetings of the CAAC should be attended by 9 persons, including the Chairperson, standing members, and non-standing members designated by the Chairperson for each meeting. The CAAC should adopt a resolution with the attendance of a majority of the members and by the concurring vote of a majority of those present.

The municipal or provincial administrative appeals commission is established under the jurisdiction of a Special Metropolitan City Mayor, Metropolitan City Mayors, the Special Metropolitan Autonomous City Mayor, Provincial Governors, or the Special Self-Governing Province Governor to deliberate and make a ruling on an appeal filed against the disposition or omission by administrative agencies under the jurisdiction of a Si (City), Gun (County) or an autonomous Gu (District) located under the jurisdiction of a city or province, its subordinate administrative agencies, or the Assembly of a city, county or autonomous district, or an administrative agency jointly established by at least two local governments and a public corporation, etc. under the jurisdiction of a city/province. It is a board-style administrative agency like the CAAC.

In addition to the CAAC and the 17 Municipal or provincial administrative appeals commissions, there are other administrative appeals commissions subject to the Administrative Appeals Act under the jurisdiction of the 17 municipal/ provincial education offices, 6 high prosecutors' offices, 4 regional corrections headquarters, the Board of Audit and Inspection, the National Intelligence Service, the Office of the President, the Korea Communications Commission, the National Assembly Secretariat, the Office of Court Administration, the Constitutional Court Secretariat, the National Election Commission Secretariat, and the National Human Right Commission of Korea.

Lastly, the Administrative Appeals Act prescribes in Article 4(1) that if it is necessary given the extraordinary and exceptional nature of a specific case, other acts may provide for a specialized administrative insubordinate procedure that substitutes an Administrative Appeal under the Act, or for any exceptional case of the administrative appeals procedure under the Act. Some of the leading examples include administrative appeals related to taxation, patents, land expropriation and use, dispositions on personnel affairs, unfair labor practices, and a range of insurance benefits including national health insurance benefits.

Section 2 Operation of the Administrative Appeals System

1. Active and Warm-hearted Approaches

The ACRC promoted the introduction of the court-appointed defense counsel system, which allows an appellant, who is unable to appoint a representative due to his/her financial difficulties, to request the administrative appeals commission to appoint a public defender, and where the Chairperson of the commission appoints the appellant's defense counsel to represent him/her in the appeal for free. Those who are eligible to apply for the appointment of a public defender are basic livelihood security recipients, basic pension recipients, single-parent family support recipients, disabled pension recipients, North Korean defectors, and other persons who are recognized by the chairperson of the administrative appeals commission as having difficulty in appointing a representative due to their financial capabilities.

In 2021, the CAAC lowered the income cap for individuals eligible for a court-appointed defense counsel from KRW 2.7 million to KRW 3 million per month. The Commission also expanded the eligibility to include small-business owners whose sales are KRW 400 million or less, so that the rights and interests of the less privileged can be better protected.

As the responsiveness of public administration weakens in a rapidly changing modern

society, disputes of various types and sizes between the public and administrative agencies are rapidly increasing. But administrative appeals have shown certain limitations as a system for resolving public conflicts by the administration itself, with a structure in which only one of the appellant and appellee can obtain satisfaction.

In response, the ACRC promoted the amendment of the Administrative Appeals Act, which introduced a mediation system for administrative appeals in order to facilitate prompt and fair resolution of appeals within the boundaries of the parties' rights and powers. The amendment to the Administrative Appeals Act was promulgated in October 2017, and the mediation system has been in effect since May 1, 2018. In 2023, the CAAC resolved 15 administrative appeals cases through mutual agreement between the parties involved.

2. Engagement and Cooperation with Agencies Related to Administrative Appeals and Enhancement of Employee Competence

To enhance understanding of administrative appeals and strengthen professional expertise, the ACRC has provided training to officials in charge of administrative dispositions with a focus on the introduction of the administrative appeals system, case handling procedures, and major reversals.

In 2022 and 2023, the ACRC and the Korean Bar Association jointly held the “Administrative Appeals Academy.” The purpose of this academy was to strengthen the rights and remedies function of the administrative appeals system and promote the system by helping lawyers involved in representing administrative appeals and those interested in the system perform their work smoothly. The academy provided lectures on various aspects of the administrative appeals system, including general information, retrial cases, and administrative appeals practices for lawyers registered with the Korean Bar Association.

In addition, the ACRC conducted administrative appeals professionals training for relevant public officials from municipal and provincial administrative appeals commissions and major disposition issuing institutions to educate them on the administrative appeals system in general and how to write responses as well as how to use systems to improve their work

capabilities. The ACRC plans to strengthen non-face-to-face professional training and enhance the effectiveness of the training program in order to improve the practical utilization of the system among officials in charge and promote the practical relief of the public's rights and interests.

In 2023, the ACRC conducted administrative appeals professionals training for relevant public officials from municipal and provincial administrative appeals commissions and major disposition issuing institutions to educate them on the administrative appeals system in general and how to write responses as well as how to use online systems to improve their work capabilities. The ACRC also provided consulting services to the Health Insurance Dispute Mediation Committee, and the Administrative Appeals Commission of the Corruption Investigation Office for High-ranking Officials, among others, to impart know-how on how to operate committees comprised of a small number of staff. The ACRC plans to strengthen professional training and enhance the effectiveness of the training program in order to improve the practical utilization of the system among officials in charge and promote the practical relief of the public's rights and interests.



Chapter 2. Performance of the Central Administrative Appeals Commission

In 2023, 30,896 administrative appeals were filed with the CAAC, up 9,429 from the previous year: an increase of 9,756 in general cases, a decrease of 47 in patriots/ veterans' cases, and a decrease of 282 in driving cases. Meanwhile, the number of cases processed was 27,887, an increase of 6,728 from the previous year. Of these, an increase of 7,247 in general cases, a decrease of 196 in veterans' cases, and a decrease of 323 in driving cases.

As shown above, the number of cases received and processed increased compared to 2022, primarily attributed to a rise in the number of substantial and repetitive general cases.

<Table 5-1> Receipt and handling of appeal cases over the past 8 years

(unit : No. of cases)

Year	Receipt	Deliberation·Resolution				Acceptance rate (%)	Withdrawal · Transfer
		Total	Acceptance	Rejection	Dismissal		
2016	26,730	26,080	3,901	19,315	2,864	16.8	1,699
2017	27,918	25,775	3,584	19,105	3,086	15.8	1,307
2018	23,043	25,153	3,814	18,928	2,411	16.8	1,401
2019	24,076	21,534	1,567	14,166	5,801	10.0	1,271
2020	22,367	22,727	1,573	16,783	4,371	8.6	1,094
2021	19,229	18,873	1,710	14,892	2,271	10.3	1,140
2022	21,467	21,159	1,468	15,581	4,110	8.6	1,527
2023	30,896	27,887	1,247	15,994	10,646	7.2	1,904

1. Analysis by Type

In 2023, the number of cases filed with the CAAC by case type was 12,332 driver's license cases (39.9%), 17,414 general cases (56.4%), and 1,150 Patriots/ veterans' cases (3.7%).

Among the cases received, driver's license cases account for the largest proportion, which is most likely due to the legal system, which requires that appeals against administrative dispositions of driver's licenses must go through a trial process before filing an administrative litigation, or the transposition system of the administrative decision before the litigation under the Road Traffic Act. Given the fact that the number of administrative dispositions on drivers' license violations of the Road Traffic Act reaches hundreds of thousands, driver's license cases are expected to account for a significant proportion of administrative appeals cases in the future.

<Table 5-2> Receipt of cases by category

(Unit : No. of cases, %)

Category	Driver's license-related cases		Patriots and veterans affairs cases		General cases	
	Receipt	Percentage	Receipt	Percentage	Receipt	Percentage
2021	12,598	65.5	1,134	5.9	5,497	28.6
2022	12,614	58.8	1,197	5.6	7,658	35.7
2023	12,332	39.9	1,150	3.7	17,414	56.4

General cases, which are appeals against dispositions, excluding driver's license cases and veterans' cases, are in various fields such as employment and labor, information disclosure, national defense, legal affairs, land and transportation, various examinations, health and welfare, finance, environment, and culture.

In 2023, the number of cases handled was 14,253, an increase of 7,247 (127%) from the previous year, and the number of dismissals jumped to 10,315 in 2023 from 3,801 in 2022,



which is mainly due to the surge in reckless and repeated administrative appeals filed by certain appellants against various administrative agencies. For this reason, the ACRC is exploring measures to combat frivolous claims that abuse the right to claim.

<Table 5-3> Receipt and handling cases of general cases

(unit : cases)

Category Year	No.of cases received	No.of cases handled			
		Total	Acceptance (rate)	Rejection	Dismissal
2021	5,497(28.6%)	5,465	685(19.7%)	2,795	1,995
2022	7,658(35.7%)	7,006	588(18.3%)	2,617	3,801
2023	17,414(56.4%)	14,253	513(13.0%)	3,425	10,315

Patriots and veterans cases are administrative appeal cases related to the registration of applications for veterans -national veterans, independence patriots, and war veterans- or their bereaved family members under laws related to veterans affairs, and most often disputes the rejection of national veterans' registration by the Ministry of Patriots and Veterans Affairs, its regional offices and branch offices.

<Table 5-4> Receipt and handling of patriots and veterans affairs cases

(unit : cases)

Category Year	No.of cases received	No.of cases handled			
		Total	Acceptance (Rate)	Rejection	Dismissal
2021	1,134(5.9%)	1,218	84(7.3%)	1,071	63
2022	1,197(5.6%)	1,437	163(12%)	1,196	78
2023	1,150(3.7%)	1,241	92(8%)	1,062	87

The acceptance rate of veterans' cases is slightly lower than that of general cases. Most of the veteran-related dispositions such as those on the registration as a national meritorious

person, are made through the decision of the Patriot and Veterans Entitlement Commission (PVEC) under the Ministry of Patriots and Veterans Affairs. The PVEC, which is composed of external experts, makes decisions with their own expertise, especially in the medical field, and objectivity, so it is not easy to determine that the PVECs decision is wrong.

However, to address these shortcomings, the ACRC has appointed experts in various fields as non-standing members and actively utilized external expert advice, to appropriately deliberate whether the requested variance is related to public affairs including medical advisors. The ACRC has also endeavored to ease the burden of proof by not strictly requiring appellants to prove causation but to reasonably infer causation in consideration of all circumstances.

Driver's license cases are administrative appeals against the suspension or revocation of a driver's license due to violations of the Road Traffic Act, and each year, about 130,000 dispositions are issued, leading to a large number of similar appeals. These cases are often referred to as livelihood cases since driver's licenses are often crucial for employment or as a means of livelihood for the appellants. In addition, compared to general cases and veterans' cases, drivers' license cases involve a larger number of appeals but they typically lack complexity and have relatively straightforward facts, such as drunk driving.

<Table 5-5> Receipt and handling of driver's license-related cases

(unit : No. of cases)

Category Year	No.of cases received	No.of cases handled			
		Total	Partial acceptance (rate)	Rejection	Dismissal
2021	12,598[65.5%]	12,190	941[7.9%]	11,026	223
2022	12,614[58.8%]	12,716	717[5.7%]	11,768	231
2023	12,332[39.9%]	13,393	642[5.3%]	11,507	244

Driver's license cases accounted for 40% of all cases, and the acceptance rate remained at around 17% until 2018. However, due to the increase in social damage caused by drunk

driving and a change in public perception of drunk driving, there has been a growing demand for stronger punishment for drunk drivers and those who cause drunk driving accidents. Consequently, the Road Traffic Act was partially amended on December 24, 2018, and enforced on June 25, 2019, strengthening the standards for blood alcohol content while driving under the influence and extending the period of disqualification for a driver's license related to drunk driving. As a result, the acceptance rate has significantly dropped since 2019, and this downward trend continues.

2. Processing Period and Oral Hearings

According to Article 45 of the Administrative Appeals Act, a ruling on a case should be made within 60 days from the date on which the appellee or the commission has received a written appeal. Where unavoidable circumstances arise to the contrary, the chairperson of the administrative appeals commission may extend the period for another 30 days *ex officio* to make sure that the case is handled within 60 days, and 90 days at the latest.

In practice, the CAAC has been handling some cases beyond the statutory time limit every year due to the consistent growth in case numbers and lack of manpower. To address this problem, the Commission has made efforts to shorten the ruling period in various ways. These include improving internal work processes, intensively managing long-pending cases, training staff to enhance their expertise, and urging disposition issuing institutions to adhere to the time limit for submitting responses. As a result, the average ruling period in 2023 decreased by 15.7 days compared to 2022.

On the other hand, in general cases with high complexity and difficulty, the appellee's reply is often submitted beyond the statutory period of 10 days. Recognizing this issue, the ACRC, together with the National Assembly, sought ways to ensure that the appellee complies with the deadline for submitting a response, and consequently proposed an amendment to the Administrative Appeals Act in 2020, which is currently pending before the National Assembly. The proposed amendment contains a provision that allows the commission to ex

officio set a hearing date and resolve the case if the appellee fails to submit a response to the commission's request.

The ACRC is committed to taking multiple approaches to further reduce the ruling period as promptness is equally important as fairness in handling appeal cases.

<Table 5-6> Yearly breakdown of the handling period

(unit : No. of cases)

Year	Total number of cases handled	Average ruling period (days)	Within the statutory period		Over the statutory period
			Within 60 days	61~90 days	Over 90 days
2021	18,873	81.50	13,027 (69.0%)	1,681 (8.9%)	4,165 (22.1%)
2022	21,159	75.83	13,570 (64.1%)	2,677 (12.7%)	4,912 (23.2%)
2023	27,887	60.11	19,616 (70.3%)	3,445 (12.4%)	4,826 (17.3%)

The review of an administrative appeal is made orally or in writing. In an oral hearing, the involved party appears before the commission and testifies. Compared to a review based on documents, oral hearing provides a more vivid impression and allows for a better visualization of the subject matter. It is also easier to establish facts and identify inconsistencies through spontaneous questions and answers. The oral review provides an opportunity to directly identify the issue at hand and help facilitate the understanding of what is in dispute. This is why oral review is commonly used in trials or official litigation procedures.

In August 2023, the Central Administrative Appeals Commission established a “Specialized Agenda Committee” to revitalize oral hearings, which had fallen sharply during the pandemic. In 2023, the Central Administrative Appeals Commission held a total of 101 oral hearings, an increase of 36 compared to 2022. The ACRC also established a video conference system between the Seoul and Sejong offices in case it is difficult to attend oral hearings due to physical distance.

The Central Administrative Appeals Commission plans to continue to increase the number of oral hearings to strengthen the procedural rights of the parties and increase the effectiveness of case hearings.

3. Suspension of Execution and Provisional Disposition

The Administrative Appeals Act stipulates that an administrative appeal should not undermine the effects of a disposition or its execution, or continuation of proceedings¹⁾. If the commission deems that it is urgent to prevent the appellant from suffering a serious loss that may occur, it may decide to suspend the execution, ex officio, or upon request by the concerned party.

While the suspension of execution plays an important role in protecting people's procedural rights, it has intrinsic limitations as it is designed, by nature, to passively maintain the state prior to the disposition in question. This makes it difficult to address violations of rights and interests caused by a disposition of refusal or omission. For this reason, the Administrative Appeals Act contains provisions on provisional disposition to better protect the rights and interests of people that cannot be adequately addressed through suspension of execution alone.

If there is a decision by the commission to suspend execution, the disposition subject to judgment shall be suspended until a decision is made by the administrative appeal, and if there is a decision, the decision to suspend execution shall lose its effect.

However, from 2023, the period of suspension of execution has been extended to 30 days from the date of ruling. This is to prevent a gap in remedies that may occur after the main decision of the administrative appeal and until the filing of an administrative litigation.

1) <Administrative Appeals Act> Article 30 (Suspension of Enforcement) ① No appeal shall affect the effect of disposition or execution thereof, or continuation of the proceedings.

A provisional disposition may be issued when it is strongly suspected that a disposition or omission is unlawful and unjust, and thus, it is necessary to prevent a serious disadvantages or urgent danger that might occur to the concerned party to whom a provisional status is granted. It can be filed if the concerned party is unable to obtain the desired outcome through suspension of execution.

<Table 5-7> Filing and handling outcomes for suspension of execution

(unit : cases)

Handling Year	No.of cases filed	Handling outcome			Ex officio suspension of execution	Withdrawal/ Transfer
		Acceptance [rate]	Rejection	Dismissal		
2021	1,660	150(11.1%)	1,206	88	169	63
2022	1,759	110(7.1%)	1,446	47	148	58
2023	1,336	119(10.8%)	982	40	177	65

<Table 5-8> Filing and handling outcomes for provisional disposition

(unit : cases)

Handling Year	No.of cases filed	Handling outcome			Ex officio suspension of execution	Withdrawal/ Transfer
		Acceptance	Rejection	Dismissal		
2021	51	2(6.5%)	29	14	-	9
2022	41	-	28	6	1	9
2023	37	-	21	12	4	3

4. Key cases of Administrative Appeals

A. [2023-20655] Request for confirmation of invalidity of father subsidy recovery disposition

[Issue in a case]

Whether maternity leave benefits fall within the scope of the special case-applied period

[Case Overview]

The applicant applied for the subsidy for fathers taking care of their children (hereinafter referred to as the 'subsidy in this case') to the respondent on April 18, 2022. However, the respondent received back the KRW 890,000 subsidy in this case paid to the applicant during the special case-applied period of the maternity leave benefits* on August 8, 2023.

* Period of payment of 100% of regular monthly wage

[Summary of Decision]

It is not advisable to extend or interpret the provisions of Article 4-1 of the Father Subsidy Ordinance to Article 95-3 of the Enforcement Decree Of The Employment Insurance Act simply because Article 95-3 of the Act provides for a special case-applied period of maternity leave benefits (3 months), as does Article 95-2.

Article 4-1 of the Father Subsidy Ordinance, which is the basis for the disposition of this case, only stipulates that the subsidy in this case will be provided from the fourth month of maternity leave to those who are eligible for maternity leave benefits under Article 95-2 of the Enforcement Decree of the Employment Insurance Act (who are determined to receive 100% of the monthly regular wage), but does not stipulate the provisions of Article 95-3 of the Enforcement Decree of the Employment Insurance Act.

Therefore, the applicant was provided with maternity leave benefits pursuant to Article 95-3 of the Enforcement Decree of the Employment Insurance Act. Nevertheless, it would be unlawful and unjust to apply the provision to Article 4-1 of the Father Subsidy Ordinance to recoup the subsidy in this case that has already been paid to the applicant.

B. [2023-2615] Request for reversal of denial of registration of persons of distinguished service to the State

[Issue in a case]

Whether an emergency call for inspection of public discipline while serving in the military constitutes the performance of duties or training that are directly related to the defense and security of the nation.

[Case Overview]

The applicant was injured in a car accident while responding to an emergency call for inspection of public discipline while serving in the military and applied to the respondent for registration as a person of distinguished service to the State. The respondent registered Mr. A as a person eligible for veteran's compensation in July 2019, recognizing him as a soldier or police officer injured in a disaster during training related to the performance of ordinary duties.

The applicant applied for re-registration of persons of distinguished service to the State in April 2022, requesting to change the name to soldier or police officer due to a wound in the course of performing duties, but the respondent denied the registration.

[Summary of Decision]

In general, the convening of a 'crisis response organization' is usually convened in the event of a military threat or crisis, so it is reasonable to consider it as an exercise directly related to the defense and security of the State. Furthermore, the applicant was injured in a car accident while traveling to the emergency convening exercise destination and therefore falls under the requirement of persons of distinguished service to the State. Therefore, the respondent's refusal to register the applicant as a person of distinguished service to the State is unlawful and unreasonable.

C. [2023-2932] Request to cancel a warning against a taxi driver

[Issue in a case]

Determine whether the denial of boarding was justified, and whether there was discrimination in passenger service.

[Case Overview]

The applicant did not board a passenger who received a Kakao priority dispatch call at Itaewon Station on September 3, 2022 at around 02:46 because the passenger who was already on board requested an extension to his destination.

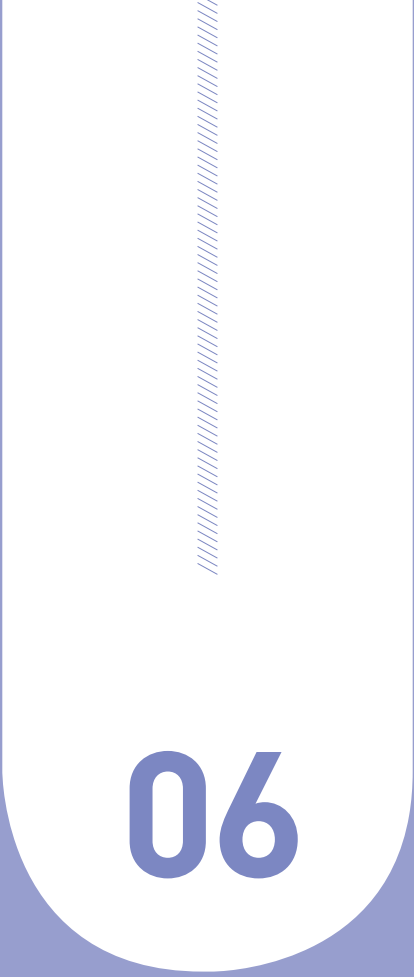
The respondent issued a warning to the applicant on December 28, 2022 for violating Article 16 of the Act On The Development Of Taxi Transportation Business by refusing to take passengers after confirming a Kakao priority dispatch call on September 3, 2022 at around 02:46 and selecting and picking up long-distance passengers at around 03:17.

[Summary of Decision]

The applicant was found to have a legitimate reason for refusing to take passengers in this case. The applicant received a Kakao priority dispatch call at around 02:46 on the day of the incident, before it had almost arrived at its destination, Itaewon, at around 02:51 after picking up passengers who were already in the car at 02:24. After the first payment was made at 02:51, the taxi resumed operation immediately, and after the second payment was made with the same card at 03:08, the taxi resumed operation at 03:17 after the car was driven without passengers for about 9 minutes.

The fact that the first and second payments were made with the same card suggests that the passenger who made the first and second payments for the taxi fare was the same person. The applicant's claim that the original passenger refused to get off the taxi at the first payment location (near Itaewon) because he wanted to change his destination seems credible.

It is also difficult to conclude that the taxi was discriminating against passengers when it resumed operation at 03:17 after it had finished serving the existing passengers at 03:08 and the taxi was without passengers for the next 9 minutes.



06

Building up Policy Feedback through
Engagement with the Public



Chapter 1. Citizen-Centric Communication System

Under the slogan of “No voice left unheard,” the ACRC launched the integrated government-citizen communication portal called “e-People” that combines all of the public communication channels previously operated separately by individual administrative agencies for handling of civil complaints, public proposals, and policy participation.

Starting with the integration of such systems of 7 central government agencies in August 2005, the Commission continued to integrate public service systems of all central government agencies in July 2006, and then combined systems of local governments and major public institutions in February 2008. This laid the foundation for an integrated system of public service. As part of the e-government development project with a total budget of KRW 10 billion, the ACRC utilized cutting-edge information technologies to establish an upgraded e-People system with improved user convenience and work efficiency starting from August 2018. The e-People system was officially launched in February 2020, and as of the end of 2023, it is being used by 1,163 agencies and institutions. The number of complaints processed through e-People in 2023 amounted to 12.37 million.

1. Operation of the Civil Petition System

The ACRC provides training and consultation on how to process civil complaints on the e-People system to improve the capability of public institutions in addressing civil complaints. It is also working to make sure that administrative agencies handle civil complaints in a proper manner by conducting inspections and evaluations on complaint services on the e-People system every year to identify the level of complaint handling and manage the quality of the services.

In 2023, 47 of the public administrations using the e-People were selected to receive customized consulting to improve their civil service. As a result, their scores in the e-People category of the public administrations that received consulting from the comprehensive evaluation of civil service improved by an average of 9.2 points in 2023, and 33 of them improved their ranking.

In addition, in order to address the practice of civil complaint tossing or ping-ponging between administrative institutions, the ACRC introduced the “Pending Complaint Mediation System” in 2015. Moreover, the Commission has been conducting continuous inspections and monitoring, and shortened the period for updating the classification criteria for civil petitions (from bimonthly to monthly), making efforts to stabilize the system. As a result, the proportion of civil petitions transferred three or more times significantly decreased from 0.57% in 2015 to 0.12% in 2023.

<Table 6-1> Ratio of ping-ponging complaints between agencies

Year	2015	2016	2017	2018	2019	2020	2021	2022	2023
Percentage	0.57%	0.49%	0.46%	0.40%	0.31%	0.26%	0.14%	0.15%	0.12%

In addition, the ACRC operates the “Multilingual Petition Service” of e-People. This service, which initially started with English, Chinese, and Japanese in June 2008, currently supports 14 languages. The Multilingual Petition Service ensures that if overseas Koreans and foreigners living in Korea file a civil petition in their native language, the relevant government institution processes the petition and translates the outcome into the requested language to notify the petitioner. The system is fulfilling its purpose of facilitating international cooperation based on complaints processing in this globalized world, and the government obtained a national patent for the Multilingual Petition Service in 2014 in recognition of its innovativeness.

<Table 6-2> Commencement point of complaint services in foreign languages

Commencement	Jun. 2008	Dec. 2009	Jun. 2010	Nov. 2010	Feb. 2011	May 2011	Sep. 2011	Nov. 2011	Dec. 2012	Nov. 2013	Jun. 2016
Language	English Chinese Japanese	Vietnamese	Mongolian	Indonesian	Thai	Uzbek	Bengali	Cambodian	Sinhalese	Nepali	Russian Burmese

2. Foundation for Public-Private Cooperation Online

'e-People's Citizens' Proposals' provides a platform through which the public can make proposals to improve the quality of administrative services and suggest ideas to address inconveniences they face in daily lives so that the government can provide better services. Such proposals can be submitted both online and offline, and they are shared among agencies across the government. This enables proactive delivery of public services that prioritizes the needs of the people. In addition to the yearly inspection of the proposals from the public, the ACRC is monitoring key performance indicators of each agency on a quarterly basis and provides them with the inspection results to help them identify their service quality and resolve problems at an early stage.

On March 28, 2016, the ACRC launched People's Idea Box (idea.epeople.go.kr) to collect people's opinions on major policies and programs that directly affect their lives, so that they can be reflected in policies. In 2016, around 16,000 people shared their thoughts on the platform. The number jumped to 791,000 in 2023, which suggests that People's Idea Box has established itself as a Korea's leading channel for people to express their voices on public policy.

<Table 6-3> Public Participation via People's Idea Box

(unit : cases)

Year	2016	2017	2018	2019	2020	2021	2022	2023
No. of participants	16,136	64,338	164,594	231,175	358,597	445,487	525,365	719,113

The idea posted on the official website of People's Idea Box are transformed into government policies after deliberation based on consultation with the concerned agencies and advice from experts. In 2023, the number of ideas submitted to the People's Idea Box that were incorporated into policy by the ACRC or its lead agency totaled 38, an increase of two from the previous year.

- [Figure 6-1] Improvements in Major policies and/or programs based on ideas proposed via People's Idea Box in 2023

Policy Improvement Case ①

Improvement of inconveniences related to certification of alien registration, new design

- (Public opinion) The ID cards issued to foreigners staying in Korea for a long period of time are black and white and small in size, making it difficult to identify them.
- (Reflecting the Ministry of Justice's policy) Secured unity with the resident registration card by printing the photo in color and enlarging the size, and added a QR code for machine reading. (April, 2023.)



Policy Improvement Case ②

Expanding the scope of parking placards for caregivers of people with disabilities

- (Public opinion) In the case of a direct ascendant of a disabled spouse, they often live with the disabled person and act as a guardian, but they are not issued a parking placard for the disabled person.
- (ACRC's recommendation for system improvement) Recommendation for system improvement to include family members living with a person with a disability under the Civil Code to be eligible for the issuance of a parking permit for a guardian. (May 2023)



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The ACRC has also been recruiting a 'public panel' since April 2021 to collect public policy opinions on issues of national concern and social issues. In April 2023, after two years, the number of public panel members exceeded 20,000. In the future, the ACRC plans not only to expand the size of the public panel, but also to reorganize the system so that it can function as a representative sample of the public, thereby improving the representativeness of the surveys in the people's idea box.



Chapter 2. Operation of Government Call Center (#110)

1. Overview

Operated by the ACRC, the 110 Government Call Center offers one-stop service to individuals who dial 110 for inquiries, reports, or recommendations, etc. regarding public services, providing them with consultation, assistance, and appropriate referrals to the relevant agencies.

2. Counseling Services

A. General Situation

The 110 Government Call Center has processed 2,552,476 calls in total. Of the total number of the calls, 2,393,661 calls were consulted and 2,448,059 calls were handled. The number of handled calls is higher than the number of counseling responses because it includes the number of complainant's responses received and the number of additional services provided by calling the complainant by the 110 Government Call Center.

B. Specialized Counseling Services

In June 2015, the Call Center began providing specialized counseling services for cases related to various government agencies: the Ministry of the Interior and Safety, Statistics Korea, the Ministry of Patriots and Veterans Affairs, the Ministry of Food and Drug Safety, the Fair Trade Commission and the Ministry of Culture, Sports and Tourism. The total number of such cases was 821,031.

C. Non-Emergency Call Center

For an efficient call system, emergency calls are now handled by either 112 or 119 systems, whereas non-emergency calls and civil complaint calls are referred to the 110 Government Call Center for counseling convenience. Established in July 2016, the Government Non-Emergency Call Center processed a total of 1,683,707 calls in 2023 alone.

3. Activities

A. Building productive labor-management relations

In line with the government's efforts to improve the quality of public services and promote regular employment, the 110 Government Call Center transitioned its agents to public service positions on February 1, 2021, and established the Personnel Management Regulations for Workers in the Government Call Center and Other Public Service Workers. The ACRC signed a labor-management wage collective agreement in June, 2023. In addition, the Commission contributed to the improvement of agents' job satisfaction by improving the working environment – operation of labor-management consultation council and healing programs for agents, and designation of a Communication Day.

B. Strengthening accessibility and convenience

The 110 Government Call Center is offering counseling services via text messaging as well as on a reservation basis through its official website and mobile web platform. It also utilizes various communication channels to provide efficient and accessible services: “Visual ARS” smart counseling services on smartphones (March 2018); online counseling service via chatting and social media; video counseling in sign language and sign language interpretation service for individuals with hearing impairments; and mobile phone-based counseling via Kakao Talk, a social messaging app.

In collaboration with the Korea Tourism Organization, the Immigration Contact Center, and the Korea Migrants' Center, the 110 Government Call Center also offers translation support services for foreigners.

C. Improving public satisfaction with the Government Call 110 consultation service

Two dedicated staff members regularly conduct satisfaction surveys, and the quality of the counseling service is actively managed by analyzing unsatisfactory cases and providing counselor coaching. In addition, by updating the counseling database and improving the expertise of counselors through periodic training, the counselors are able to answer questions without referring them to other organizations or provide contact information for those organizations, which has led to improved public satisfaction by an increase in the rate of self-closing counseling.

4. Way forward

The ACRC plans to make further efforts to improve the service quality of the 110 Government Call Center. It will provide citizen-centered consultation services by establishing a 'pan-governmental intelligent integrated call center' with a foundation for analyzing the current status of consultation guidance of voice consultation data and returning policies.

In addition, the ACRC will strive to improve the quality of counseling services by operating programs to protect the 110 Government Call Center counselors and improving working conditions. Furthermore, the ACRC will continue to develop diversified publicity to activate the use of the 110 Government Call Center and raise awareness.





Chapter 3. Quality Improvement of Guidance and Counseling for Citizens

The primary mission of the Government Complaints Counseling Center is to listen to the complaints of those who visit the ACRC, help resolve their issues, and provide prompt and accurate guidance and counseling to them, thereby contributing to improving the quality of people's lives and playing a role as a last resort to protect the rights and interests of the underprivileged.

More specifically, it is supposed to help address grievance petitions by providing information about relevant statutes, institutions, and procedures related to various aspects of public services such as permission, authorization, patent, license, approval, designation, recognition, recommendation, examination, inspection, certification, etc. Additionally, the center provides guidance and counseling for measures to address inconveniences and violations of basic rights caused by dispositions of administrative agencies.

The ACRC operates the Sejong Complaints Counseling Center for petitioners who visit its headquarters and those living in and around the Chungcheong region, and a Seoul Complaints Counseling Center at the Government Complaints Counseling Center for those who live in Seoul and the metropolitan areas in Gyeonggi. In addition to the consultations with its grievance petition investigators, the ACRC also ensures that low-income individuals and the vulnerable who lack legal knowledge or face economic difficulties visit the center at any time to receive counseling and guidance on appropriate remedies from expert consultation commissioners (attorneys, certified labor attorneys, and tax accountants) and complaint consultation commissioners (retired public officials with much experience in public administration).

In 2023, the complaint counseling center in Sejong and Seoul delivered a total of 29,394 cases of consultation and guidance services to petitioners.

Located in Sejong City, the headquarters of the ACRC is not easily accessible for those living in Seoul and the metropolitan areas in Gyeonggi to visit in person. To alleviate their inconveniences, the ACRC is providing video consultations between its investigator and the petitioner who visits the Seoul Center. In 2023, a total of 149 video consultations were conducted. Then, the Commission opened the Government Complaints Counseling Center website and has been operating an online consultation service since October 2019.

<Table 6-4> Breakdown of consultation cases by channel

(unit : cases)

Classification	Total	Sejong	Seoul	Online
2023	29,394	1,146	1,974	26,274
Daily average consultation cases	119.0	4.6	8.0	106.4
Consultation by investigators	27,567	975	318	-
Attorneys	1,077	72	1,005	-
Certified labor attorneys	-	-	-	-
Tax accountants	75	9	66	-
Complaint consultation commissioners	675	90	585	-
2022	35,957	1,423	2,666	31,868
Daily average consultation cases	145.6	5.8	10.8	129.0
2021	46,766	1,877	8,136	36,753
Daily average consultation cases	187.8	7.5	32.7	147.6
2020	9,024	3,092	5,932	31,947
Daily average consultation cases	165.3	7.3	29.2	128.8
2019	9,024	3,092	5,932	-
Daily average consultation cases	36.4	12.5	23.9	-

In addition, the ACRC organized various types of joint consultation sessions to address complex complaints, tapping into a pool of experts consisting of public officials working at the agencies in charge, attorneys, tax accountants, and certified labor attorneys. After the launch of the online consultation service in October 2019, out of 128,837 cases, 4.9% (6,295 cases) were addressed through joint consultations, preventing complaint ping-pong and resolving questions of the petitioners all at once.

The ACRC made efforts towards achieving a one-stop resolution by promoting consultation and mediation through the Complaint Counseling Council for complex complaint petitions involving multiple organizations. From the opening of the center in 2019 to 2023, a total of 105 cases have been handled with 69 cases reaching agreement, 36 cases being closed.

Since August 2021, the Government Complaint Counseling Center took over the Outreach Complaint-Handling Bus from the headquarters and has been actively using it for on-site publicity, visits to complaint sites, and on-site operation of the Complaint Counseling Council.

<Table 6-5> Major operating results of Onsite Outreach Service in 2023 (28 times)

Classification	No. of Times	Venue
On-site complaint office at the Seoul Youth Center	6	Gangdong (2.6), Mapo (3.23), Gangbuk (4.14), Eunpyeong (11.15), Yangcheon (7.20), Seongdong (8.28)
On-site promotion for enlisted service members	4	Nonsan Training Center (3.20./4.17./6.19./9.18.)
Support for on-site visit and meetings for complaint counseling	8	Seongnam (2.17), Hanam (2.24/4.26.), Yangyang, Gangwon-do Province (4.6), Anyang (4.18), Seoul Jongno (5.10), Yongin (11.30), Seongnam Pangyo (12.6)
On-site counseling and promotion for local residents	7	On-site promotion of Shinmungo in Memorial Month (6.12), Consultation for local residents near Bukhansan Mountain (5.18./7.7./7.27./9.7./11.7), Complaint counseling and publicity on Armed Forces Day (10.12)
On-site counseling and promotion at universities	2	On-site promotion at Gangseo Univ.(5.11), On-site promotion at Korea National University of Education (5.26)
Support for on-site mediation for grievance petition at headquarters	1	Support for on-site mediation of Urban & Water Resources Complaints Division (3.2)



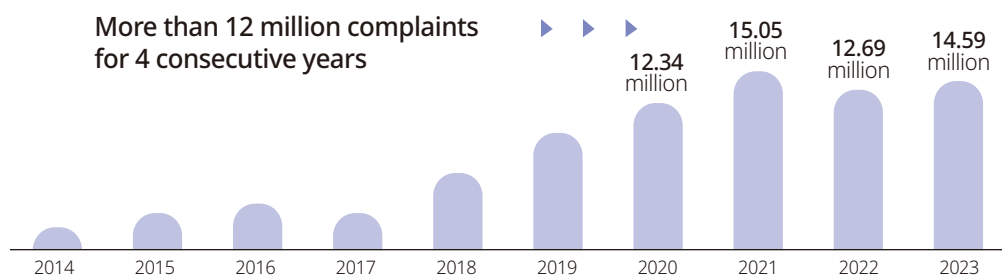
In accordance with the “Regulations on the Operation of Online Civil Participant Portals (Presidential Directive),” written complaints received by the Presidential Secretariat are handled by the Special Complaints Inspection Division of the Government Complaints Counseling Center of the ACRC by registering each relevant agency with the e-People.

There were a total of 19,681 written complaints received by the e-People in 2023. 7,306 requests for relief such as disposition (37.1%), 5,469 requests for investigation/audit/investigation (27.8%), 3,048 other requests (15.5%), 2,835 policy proposals (14.4%), 674 judgment objections (3.4%), 237 requests for pardon and reinstatement (1.2%), 95 requests for exemplary administration (0.5%).

Chapter 4. Policy Improvement Through Analysis of Big Data on Civil Complaints

In 2023, 14.59 million civil complaints were filed against central and local government agencies through the e-People system and local governments' complaint channels. This represents a 15.0% increase compared to the previous year (12.69 million). This means that the public is increasingly expressing their opinions on the policies of administrative agencies, and the utilization of accumulated big data is becoming more important.

◉ [Figure 6-2] Yearly collection of complaint data



Big data analysis of complaints plays an important role in identifying patterns within individual complaints and uncovering problems with the system as a whole. This analysis enables the direct identification of public inconveniences and provides guidance on areas where policies need to be improved. As such, big data analysis of civil complaints is being utilized as a key tool to systematically incorporate “people's opinions” into policy.

1. Analysis of Civil Complaints Data of Various Types

A. Providing information on civil complaint trends through big data monitoring

The ACRC publishes “Voice of the People,” a comprehensive report on complaint trends derived from big data analysis, which offers weekly and monthly complaint trends, the status of complaints by institution, and cases of public inconvenience. The Commission provides it to more than 1,270 public and research institutions and makes it accessible to the public.

In 2023, “Voice of the People” was published 37 times weekly, 11 times monthly, and once annually. Its weekly edition includes not only the trends of complaints during the week but also cases of public inconvenience that are deemed to require fundamental system improvements to prevent the recurrence of the same or similar complaints. The monthly edition provides periodical forecasts of complaints expected to occur at a specific time or to surge or spread and presents trends by organization, region, and major policies for the month.

B. In-depth analysis to resolve public discomfort and support a rebound

The ACRC conducted an in-depth analysis of complaints related to major national policies and social issues, identifies problems and implications, and then provides them to relevant organizations to improve policies and systems that cause such complaints.

The ACRC’s major planned investigation cases are as follows: As issues of animal abuse and abandonment continue to arise, causing social outrage through the media, the ACRC analyzed complaints related to ‘abandoned animals’ raised by the public and recommended requirements for policy improvements to the Ministry of Agriculture, Food and Rural Affairs. Korea Agency of Education, Promotion and Information Service in Food, Agriculture, Forestry and Fisheries as well as local governments were also notified.

In addition, in order to find ways to overcome the population crisis, such as protecting the health rights of prospective parents and supporting childbirth for infertile couples at the national level, the ACRC analyzed civil complaints related to 'health of prospective parents. Requirements for policy improvement were notified to the relevant ministries such as Ministry of Health and Welfare, Ministry of Employment and Labor, Ministry of Gender Equality and Family, and Presidential Committee on Aging Society and Population Policy, etc.

C. Operating a civil complaint forecasting system

Complaint forecasting is a system that helps related organizations prepare for complaints thoroughly in advance by capturing issues that appear periodically at a certain time and notifying them before the damage spreads, or sharing information to pay attention to new and rapidly increasing complaints. That is, the ACRC issues regular and occasional civil complaint forecasts, depending on the frequency of complaints and the time of issuance, and actively informs the public of all forecasts through "Civil Complaint Big Data at a Glance" and social media.

2. Collaboration based on Civil Complaints Data

In 2023, the ACRC made significant milestones in data collaboration with the executive branch, legislature, academia, and public companies. First, Economic punishment regulations were improved through collaboration with the Ministry of Strategy and Finance. The government selected the first (August 26, 2022) and second (March 2, 2023) economic penalty provisions with relatively low protection of legal interests infringed upon by violations, but had difficulty selecting the third project. Accordingly, the Ministry of Strategy and Finance and the ACRC analyzed big data on frequent civil complaints related to economic punishment, discovered economic punishment regulations that are closely related to daily life to be selected for the 3rd task, and prepared improvement plans. As a result, the ACRC discovered 14 punishment provisions for offenses of low criminal severity that put a burden on the economic activities of the general public, such as self-employed

people and micro-enterprises, and included them in the 3rd economic punishment improvement task (46 items). And the contents were announced at the 32nd Emergency Economic Vice Ministers' Meeting. In particular, the improvement of penal regulations, which is a core matter of citizens' rights and obligations, was selected as one of the ACRC's 2023 excellent regulatory innovation cases, which were innovated by leveraging the expertise of each organization.

In addition, since signing a business agreement (June 24, 2020) with Postech Institute for Social Data Science, technology exchange on civil complaint analysis and joint research projects on data analysis have been promoted. In particular, in 2023, a joint workshop was held with Postech to enhance understanding of big data analysis trends and new technologies and strengthen data-based administrative capabilities.

Besides, a technology exchange council was held with private specialized research institutes to identify trends in new technologies for big data analysis and apply them to civil information analysis systems. The ACRC was selected as a government competition project after conducting technology exchange research with specialized research institutes to introduce new AI technology that can clearly identify the intent of 12 million civil complaint data per year.

3. Operation of the Complaint Data Analysis System and Opening up of Public Data

A. Operation of the 「Complaint Data Analysis System」

The complaint data analysis system collects a vast amount of complaint data from major complaint channels in Korea, including the e-People system (1,163 organizations integrated and linked as of Dec. 2023) and individual channels of the local governments. The ACRC provides support for the operation and management of the system, training, and consulting so that each administrative and public institution can monitor and analyze its own complaints using the complaint data analysis system.

B. Operation of the website, 「Civil Complaint Big Data at a Glance」

In “Civil Complaint Big Data at a Glance,” which was reorganized in 2020 to align with the new features of the next-generation complaint data analysis system, the results of data analysis are presented in various visual formats and made available to the public. In particular, a horizontal layout has been applied so that statistical graphs can be checked immediately without scrolling left and right, and a responsive web design has been fully implemented to make it easy to use on mobile devices.

In addition, a total of 19 types of information are made available through the promotion of public data opening via the Open-API method every year. This allows users to develop their own applications and services. And the number of applications to utilize Open-API through public data portals and requests for additional data provision from research institutes, academia, media, and the National Assembly are steadily increasing.

C. Civil complaint data analysis contest

The ACRC held the “3rd Civil Complaint Data Analysis Contest” to uncover innovative ideas and visualized insights from the private sector using civil complaint data. Participants were given the task of analyzing civil complaints related to traffic safety in Korea using data on traffic violation reports filed with the Safety e-People to identify ideas for policy improvement. The Commission selected the four best submissions through expert evaluation and held an award ceremony on December 12 to grant the winners a certificate from the Chairperson of the ACRC and prizes worth up to 2 million won.

The ACRC plans to incorporate various ideas from the contest into policies to improve the quality of life of the public and enhance the visualization of the “Civil Complaint Big Data at a Glance” website.

D. Participation into the Government Innovation Fair

The ACRC's 'Solving social problems by utilizing big data analysis of civil complaints' was selected as an exhibition content for the '2023 Government Innovation Fair' as an innovation achievement representing the government of Yoon Suk Yeol. The ACRC operated an exhibition hall from November 23 to 25, 2023, entitled "I am a civil complaint big data analyst". Through this, the entire process of civil complaint big data analysis was introduced, and a data analysis lab was organized to provide an opportunity to analyze it directly. The Government Innovation Fair provided an opportunity for the public to experience the achievements of government innovation and raise awareness of the use of data analysis.

4. The Way Forward

Data is becoming increasingly important with the development of technology, to the extent that it is referred to as the rice or crude oil of the 4th Industrial Revolution, and the Korean New Deal is also promoting data as a core field to strengthen the DNA (Data, Network, AI) ecosystem. The ACRC has been systematically managing and analyzing civil complaint big data, which contains the voices of the people, to find the voices of the people from the data and use them for policy improvement. However, it has been difficult to create a common quantified analysis model, so the analysis has relied on the experience, intuition, and competence of the analysts.

To increase the utilization value of civil data and deliver benefits to the people, the ACRC will promote collaboration with industry, academia, and research institutions specializing in artificial intelligence to establish an automated system for processing and analyzing civil complaints. The ACRC will seek advancements in the field of civil complaint processing and analysis through machine learning of civil complaint data fusion and analysis know-how and advanced artificial intelligence technology from the private sector, and will continue to enhance the social use value of civil complaint data.



Chapter 5. Promotion of Civil Petition System for Proactive Administration

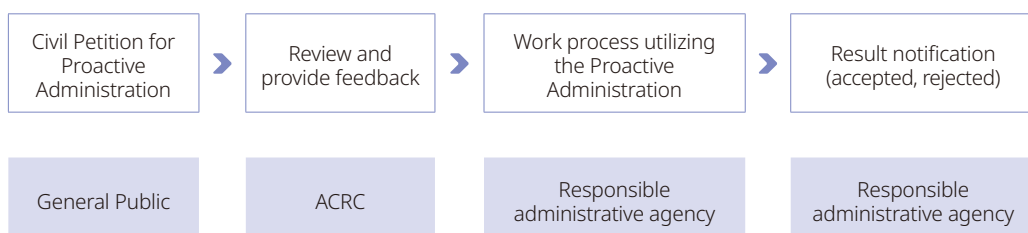
1. Operation of the Civil Petition System for Proactive Administration

A. Overview

The “Public Petition for Proactive Administration” is a pan-governmental initiative to drive proactive administration and a system that operates on a fast-track basis for redressing rights and interests.

When a citizen submits policy ideas for the public interest, the ACRC reviews the contents and provides its opinion, or recommendations on how to handle the suggested ideas to the relevant administrative agency actively. Then, the administrative agency actively incorporates them into its administration by improving laws and systems and notifies the idea submitter of the outcome. If the public official has handled the matter following the opinions of the Proactive Administration Committee or pre-consultation with the Audit Department, he or she will be exempted from disciplinary action.

<Table 6-6> Procedures for civil petitions for proactive administration



<Table 6-7> Key drivers of proactive administration

- Introduced the 'Proactive Administration National Application System' by amending the 'Proactive Administration Operating Regulations' (July 27, 2021)
- Established the 'Proactive Public Service Team' (February 22, 2022)
- Revised the "Guidelines for Processing and Operation" (April 27, 2022)
- Published casebooks on the 'Proactive Administration Applications' (Dec. 2022, Dec. 2023)

B. Operational performance

From July 2021 to the end of December 2023, the ACRC received 8,773 petitions for proactive administration through the e-People system, processed 8,727 cases, and provided advisory opinions to competent administrative bodies for 535 cases.

<Table 6-8> Civil petition for proactive administration (as of Dec. 2023)

Classification	No. of petitions received	Processing status			Under Investigation
		Total	Recommendations	Transferred-closed	
Civil Petition for Proactive Administration (implemented on 27 th , Jul. 2021)	8,773	8,727	535	8,192	46

The main examples include improving policies for declining birthrate and the younger generation, resolving inconveniences in people's lives, and addressing unreasonable regulations for the public.

First, in order to improve policies to counter the declining birthrate and support young people, the ACRC recommended that the government respond to the declining birthrate crisis, address injustices against young people, and actively respond to changes in society and conditions.

Countermeasures against low birthrate and improved policies for the young generation

- Improving the burden of pharmaceutical expenses due to military treatment for discharged persons who have not completed medical treatment.

(Situation) Treatment for discharged persons who have not completed treatment is available for up to 6 months after discharge, but the patient is responsible for the cost of medication

(Improvement) It is recommended that the government prepare a basis for support for pharmaceutical expenses and prepare measures such as securing a budget in order to help the state return to normal as a healthy member of society through medical support for mental and physical disorders that occurred during military service

- Expected to eliminate the financial burden of approximately 700-800 medications per year

- Expanding health insurance coverage for fertility treatment

(Situation) As the number of infertile couples increases, the number of subfertility treatments, including in vitro procedures, is also increasing. Currently, only a total of 22 cycles (including 7 freezing cycles and 5 artificial insemination cycles) are covered.

(Improvement) It is recommended to actively consider expanding health insurance coverage for subfertility treatment to expand the scope of support and remove barriers to treatment methods.

- Expect more support for increasing birth rates

Second, to address the inconveniences in people's lives, the ACRC recommended incorporating people's opinions into policies to resolve the problems they encounter in their daily lives.

Improving inconveniences in people's lives

- Relocation of utility poles located in the center of the sidewalk
 (Situation) Increased traffic inconvenience and risk of safety accidents due to utility poles located in the exact center of the sidewalk due to road expansion, etc.
 (Improvement) After consultation with relevant administrative agencies, it is recommended that relocation work of utility poles be carried out quickly
 → Relieve traffic inconveniences and prevent safety accidents by carrying out relocating the utility poles.



- Improving hygiene in railroad cabins
 (Situation) A passenger has developed hives on the skin due to skin contact with the seat on the train. Problems with cleanliness were identified and countermeasures were requested.
 (Improvement) It is recommended to strengthen hygiene management inspection standards for railway vehicles and establish management measures.
 → Related agencies have stepped up inspection and cleaning of rail cars, including reducing the frequency of seat contamination inspections from once a year to once a month.

Third, to address unreasonable regulations for the public, the Commission recommended reforming regulations that impact people's daily lives and strengthening the competitiveness of businesses.

Improvement of unreasonable regulations that the public needs

- Revision of laws related to ice import reporting obligations
 (Situation) Due to unclear laws, frequent civil complaints are filed regarding sanctions on ice makers imported without notification
 (Improvement) A revision of the law was recommended by analyzing cases of sanctions due to omission of import declaration
 → Prevent complaints by proactively improving unclear laws for business
- Ensuring real educational opportunities for students with Tourette's syndrome
 (Situation) To prevent students with Tourettes syndrome from dropping out of public education, it is necessary to consider whether they should be included in special education
 (Improvement) Recommendation to actively guide and promote parents and teachers to diagnose and evaluate whether students with Tourette syndrome should be included in special education
 → Expecting students with Tourettes syndrome to receive education that is specific to their disability

2. Prevention and Elimination of Passive Administration

To prevent and eliminate passive administration, the ACRC investigated re-report of passive administration and recommended that the head of the administrative organization take appropriate measures.

Passive administration is the act of a public official infringing on the rights and interests of the public or causing financial losses to the State through passive work behavior such as omission or negligence of duties.

<Table 6-9> Passive administration re-report status (as of the end of Dec. 2023)

Classification	No. of report received	Processing status			Under Investigation
		Total	Opinion recommended	Transferred closed	
Re-report of passive administration (enforced on 19 th Aug, 2021)	10,644	10,562	76	10,486	82

From August 2021 to December 2023, the ACRC has received 10,562 re-reports of passive administration via e-People, conducted investigations to verify the facts and made 76 recommendations to administrative agencies, including requests for reconsideration, and improvements to work methods.

Examples of such recommendations are as follows: recommending to repair and take systematic management measures for the overpass along the elementary school commuting route that had been left disrepair for a long time; recommending to make emergency repair and take responsible management to solve delayed measures for reports of manholes collapse and road damage; recommending to take active corrective action against the local governments that ignore the interpretation of the MOLIT on the exemption of fines for not having compulsory insurance for vehicles stored in junkyards and arbitrarily perform its tasks; and improving the problem of cars and two-wheeled vehicles passing on roads designated as the 'car-free streets'.

To prevent and eliminate passive administration, the ACRC plans to provide advice, counseling, and training to each administrative agencies in a more systematic way, in addition to recommending appropriate measures for passive administration reports.



Part 07

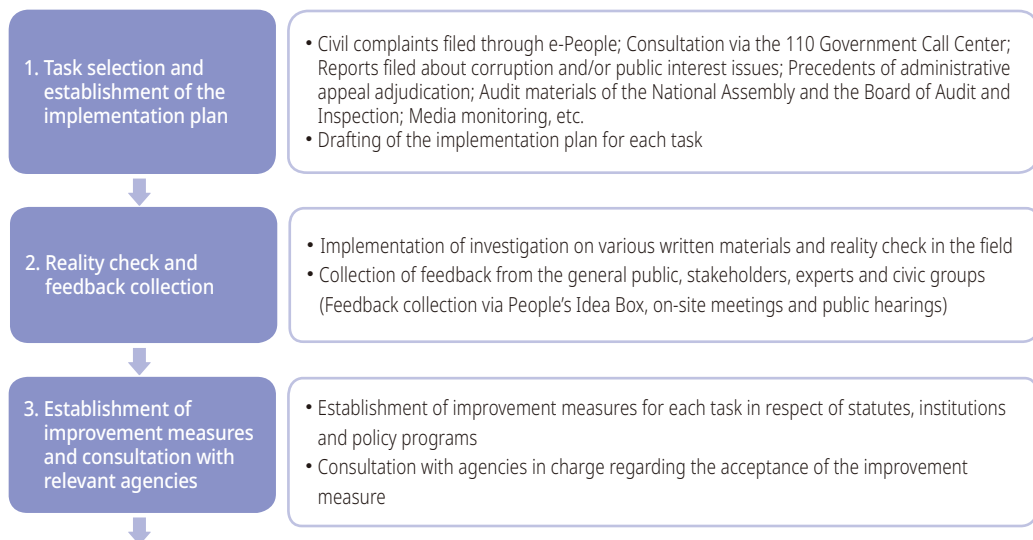
Institutional Improvement to Address
the Underlying Factors for Corruption
and Public Inconveniences

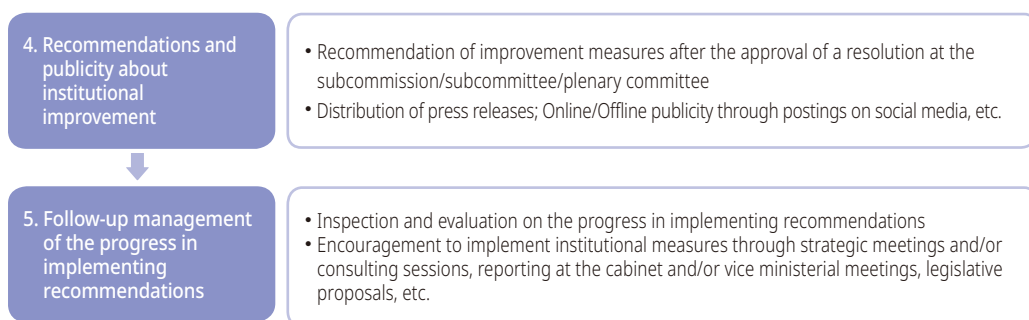


Chapter 1. Task Overview and Major Achievements of Institutional Improvement

As a pivotal agency overseeing various policy communication channels such as e-People, the 110 Government Call Center, and People's Idea Box -the digital citizen participation platform-, the ACRC has been fulfilling its roles in resolving grievances in a way that meets the needs of the Korean people, analyzing corruption causing factors and people's opinions received through various channels and identifying problems in institutions and policies in need of improvement. In addition to handling individual complaints and reports, the ACRC strives to prevent the recurrence of similar problems by resolving public inconveniences and underlying causes of corruption. To realize more fundamental rights improvements than just one-off redress, the ACRC is promoting institutional improvements to prevent corruption and resolve grievances, pursuant to Articles 12, 27, and 47 of the ACRC Act.

<Table 7-1> Workflow of Institutional Improvement





1. Institutional Improvements in Corruption-prone Areas to Eradicate Chronic and Systemic Corruption

In 2023, the ACRC selected improvement of injustice in people's lives and efficient management of the national budget as priority areas for anti-corruption and recommended improvements to 8 related legal and institutional deficiencies.

The ACRC endeavored to resolve injustices in the lives of the public in various ways, such as the plan to protect the rights of university and graduate students to avoid power trips related to their education and research activities. The ACRC continued to promote system improvements to correct unfairness in the recruitment process, such as the plan to disclose the interview scores of examinations for employment of public officials.

2. Institutional Improvements for Alleviating Difficulties in People's Livelihoods and Strengthening Social Safety Net

The ACRC formulated and recommended a total of 22 institutional improvement measures to resolve public grievances in 2023.

In particular, the ACRC focused on strengthening the social safety net for underprivileged groups such as the low income bracket and undernourished children, and worked to

resolve various inconveniences of the public in fields such as national defense, maritime, and transportation, and eased regulations.

For example, the ACRC protected vulnerable groups by resolving frequent complaints of non-payment of health insurance premiums by low-income brackets, revitalizing social contribution projects for underprivileged children, and strengthening the effectiveness of traditional market fire prevention projects.

In addition, the ACRC has made various recommendations to improve the inconveniences experienced by the public in their daily lives, including the "Solution to Solve the Inconvenience for High-Speed Train Users".

Furthermore, the ACRC made other reforms to ease regulations, including 'expansion of the validity period for official language test scores for national qualification examinations'.

3. Strengthening of Follow-up Measures to Materialize the Effects of Institutional Improvements

Since its launch in February 2008, the ACRC has made a total of 1,021 recommendations for institutional improvements to prevent corruption and resolve grievances by 2023. As these continuously increasing recommendations have been completed by the competent authorities, the ACRC continues to promote follow-up management to ensure that the people can experience the effects of institutional improvements in their daily lives and the resulting improvement in their quality of life.

In 2023, the ACRC inspected the implementation status of institutional improvement recommendations made from 2013 to 2022 for 1,725 institutions, including central government agencies and local governments.

Based on the results of the inspection, for institutions that faced challenges in implementing



the recommended measures and needed further discussion on implementation measures, the ACRC conducted meetings and consultations to form a consensus on the implementation tasks. Furthermore, the Commission encouraged active implementation efforts of the target institutions through institutional evaluation, etc.

Additionally, in the second half of the year, the ACRC conducted on-site implementation inspections on local governments and small public service-related organizations with low implementation rates to encourage implementation and emphasized the importance of implementing the recommendations and sought to generate interest by explaining the objectives behind the recommendations.





Chapter 2. Improvement Cases in Corruption-Prone Areas

1. Disclosure of interview scores for public official recruitment examination

Every year, hundreds of thousands of people take the public officials exam. Although many citizens have applied for the public official recruitment examination, they have not been able to find out the grades they received in the final interview process. It has been the position of the majority of recruitment examination organizations that interview results in examinations for employment of public officials cannot be disclosed because they constitute information whose disclosure would 'significantly interfere with the performance of the interview evaluation task'.

Public opinion is skeptical of this practice of not disclosing interview scores such as 'It's hard to prepare for the next test when you don't know which questions you failed and why', and 'Not disclosing interview scores can lead to unfairness'. The survey also found that in a straw poll on whether or not to release interview test results, the public was overwhelmingly in favor of releasing scores, with 89.2% of all responses in favor.

In response, the ACRC promoted system improvements in the direction of disclosing interview scores to resolve public grievances and promote rights such as the right to know, and to block irregularities in the hiring of public officials.

First, the ACRC recommended that the Ministry of the Interior and Safety amend the Operational Guidelines for Disclosure of Information. By stating that "certain aspects of the interview test results may be disclosed," the ACRC sought to establish standards for the disclosure of interview results and establish the possibility of disclosure in principle.

Second, the ACRC recommended that administrative agencies and local governments at all levels that operate examinations for employment of public officials should disclose interview scores. With this improvement, institutions of various levels will reflect the specific interview score disclosure policy in accordance with the Operational Guidelines for Disclosure of Information (to be revised) in the operation plans of various examinations for employment of public officials in the future and disclose interview scores accordingly.

2. Measure to protect the rights of university and graduate students to avoid power trips to their education and research activities

In July 2018, in accordance with the Comprehensive Plan to Eradicate Power Trips in the Public Sector and the Ministry of Education's Guidelines for Eliminating Power Trips in the Education Sector, each university established a power trip reporting center to receive reports and take follow-up actions.

According to data from the Ministry of Education, a total of 1,702 incidents were reported to the University Power Trip Reporting Center from 2018 to 2021.

If the outdated power trip behavior toward university students and researchers continues, it may lead to demoralization of researchers and inadequate research performance, which in the long run may lead to a deterioration in the competitiveness of national R&D in general. In response, the ACRC is promoting the eradication of power tripping behavior and the improvement of systems related to the protection of rights and interests of students at national and public universities.

First, the ACRC requested the Ministry of Education and national and public universities to investigate and publicize power trips by university. In addition, the ACRC requires universities to establish clear regulations prohibiting power trips in their respective codes of conduct for faculty and staff, and to supplement them with detailed operating regulations, including procedures for reporting violations.

The ACRC also recommended that the university strengthen the promotion of the Power Trip Reporting Center to university students, such as operating a dedicated phone number and enhancing the reporting information on the website, and ensure the participation of external experts in the investigation committee to ensure fairness in the investigation process. It was recommended that the disciplinary standards for reporting power trip should be clarified to prevent unreasonable disciplinary reductions, thereby creating an atmosphere of eradication of power trip in universities.

Despite various efforts, specific power trip behaviors against university students continue to occur, causing many problems such as damage to students, distrust between faculty and students and low morale among researchers. If the code of conduct of each university is greatly improved through this system improvement, it is expected that students' complaints will be handled more clearly and fairly.





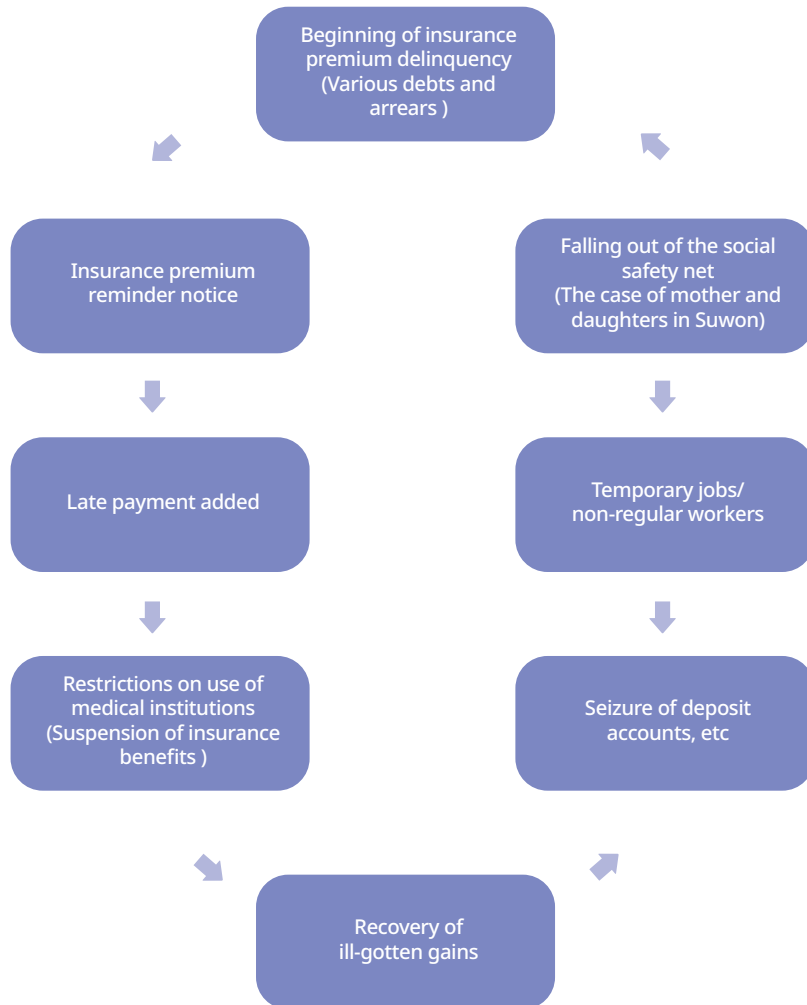
Chapter 3. Improvement Cases in Areas with Frequent Grievances and Complaints

1. Measures to resolve frequent complaints about non-payment of health insurance premiums by the low income bracket

Due to the economic crisis, many self-employed people and micro-enterprises are being forced to suspend or close their businesses.

Currently, low-income vulnerable people who are unable to pay health insurance premiums are caught in a vicious cycle of non-payment, which includes demand and additional late payment due to non-payment of insurance premiums, restrictions on insurance benefits, recovery of ill-gotten gains, and seizure of passbooks, making it almost impossible to break the cycle of non-payment. In addition, even though complaints have been repeatedly filed for a long time, they are trapped in the same vicious cycle as large and habitual payers, and are stigmatized as insincere payers, and their grievances and inconveniences are not resolved.

- [Figure 7-1] The vicious cycle of non-payment of health insurance premiums among low-income vulnerable populations



In response, the ACRC analyzed 817 complaints over the past five years and 117,721 complaints received on the e-People, and held a public forum in July with experts in the fields of healthcare, social welfare, law, and media to discuss improvements and reflect their opinions in the recommendations.

This recommendation includes a total of seven detailed measures. ① In order to eliminate blind spots in medical services for the low income bracket, the dependency criterion has been abolished for those who are unable to pay national health insurance premiums, and the dependency criterion has been abolished for those who are eligible for 'secondary out-of-pocket expense reduction' for national health insurance. ② To improve practices related to the "general seizure" of deposit receivables, the ACRC recommended that relevant institutions should mandatorily inform delinquent borrowers through phone calls and text messages prior to seizure of deposit receivables, including the disadvantages of seizure, how to make installment payments, etc.

Also, ③ the ACRC recommended that the grounds for "benefit restriction" for health insurance delinquents be abolished for low-income vulnerable groups only, or that the grounds for "health insurance benefit restriction" be abolished for all enrollees, similar to Taiwan's National Health Insurance. ④ The ACRC recommended that the rules governing "installment payments" of delinquent premiums be improved to reduce the number of installment payments to no more than 48 to bring the amount of delinquent premiums within the reach of the lowest income bracket, and to relax the standards for reapproval opportunities for those who have had their installment payment authorization revoked. ⑤ The ACRC recommended establishing grounds for 'suspension of premium arrears' by a workplace-based insured person, limited to low-income vulnerable groups, and establishing grounds for 'suspension of arrears for a certain period of time' when it is recognized that it is impossible to pay the arrears due to unavoidable reasons such as suspension or closure of business

And ⑥ To expand the scope of workplace-based insured person's "exemption from joint

and several payment", the ACRC abolished eligibility requirements such as income and assets of minors and the death of both parents to be exempted from liability for joint and several payment, and included low-income vulnerable persons such as seniors over 80 years of age and persons with disabilities in the "exemption from joint and several payment". ⑦ The ACRC decided to include various methods such as texting, calling, KakaoTalk (AlertTalk), etc. to notify subscribers of 'changes in eligibility' in order to diversify the ways of providing important information centered on consumers. In addition, the ACRC specifically displayed income, property, and automobile items related to insurance premium calculation, established a consent procedure for household members to provide information, and diversified verification methods through the Internet and mobile apps.

The ACRC expects that the structural crisis faced by low-income vulnerable groups related to health insurance premiums will be improved through this system improvement.

2. Measures to improve public inconvenience related to parking spaces reserved for persons with disabilities

To ensure the safe and convenient movement of persons with disabilities, parking lots of multi-use facilities and multi-family housing, roads, etc. are mandatorily equipped with parking spaces for persons with disabilities in accordance with the Act On Guarantee Of Right To Health And Access To Medical Services For Persons With Disabilities and Act On Promotion Of The Transportation Convenience Of Mobility Disadvantaged Persons.

However, the vehicle of a parent of a spouse living with a person with a disability cannot be parked in a parking space reserved for persons with disabilities. In addition, in the case of roads and passenger facilities, the standards for marking parking spaces reserved for persons with disabilities are not clearly established causing confusion and inconvenience in the use of parking lots. Therefore, several complaints have been filed with the e-People requesting improvements.

< Table 7-2 > Cases of complaints filed with e-People regarding parking spaces reserved for persons with disabilities

(Case 1) Improving parking placard issuance for caregivers of people with disabilities

- Many young couples with disabilities live with their parents-in-law or mother-in-law for support. However, they are not issued parking placards for disabled caregivers, so they have to use general parking lots. This poses a threat to their safety and needs to be improved. (September 30, 2022, the e-People)

(Case 2) Appeal against non-imposition of fines for illegal use of parking spaces reserved for persons with disabilities

- In some cases, the local government did not impose fines for illegally parked vehicles in parking spaces reserved for persons with disabilities because it was difficult to verify the violation through evidence photos. Only the center of the parking surface was marked with a picture of a person with disabilities, and measures such as facility improvement were recommended. (January 3, 2022, the e-People)

In response, the ACRC conducted a survey on related laws and systems, and found that parking placards for parking spaces reserved for persons with disabilities can only be issued to one car of a person with a disability or a guardian of a person with a disability. Parking placards for caregivers of persons with disabilities are limited to the following persons living at the same address as the person with disabilities: ① spouse, ② immediate dependent, ③ spouse of immediate dependent, ④ sibling, ⑤ sibling's spouse, and their children. This excludes spouses of lineal ascendants, spouses' immediate blood relatives, and siblings who are family members under civil law. On the other hand, spouses and children of siblings who are not family members under civil law are included, which is a gap in the protection of people with disabilities.

○ [Figure 7-2] Yearly collection of complaint data

Parking placard for a person with disabilities	Parking placard for a caregiver for a person with disabilities
	

In addition, parking spaces reserved for persons with disabilities are divided into two types of facilities: public use facilities such as shopping centers and multi-family housing covered by 「Act On The Guarantee Of Convenience Promotion Of Persons With Disabilities, Senior Citizens, Pregnant Women And Nursing Mothers」, and roadway and passenger facilities covered by 「Act On The Guarantee Of Convenience Promotion Of Persons With Disabilities, Senior Citizens, Pregnant Women And Nursing Mothers」. The 「Act On The Guarantee Of Convenience Promotion Of Persons With Disabilities, Senior Citizens, Pregnant Women And Nursing Mothers」 stipulates that detailed information should be provided in terms of the size, color, and drawing of the parking space lines and the wording of the signage, while the 「Act On Promotion Of The Transportation Convenience Of Mobility Disadvantaged Persons」 only stipulates that signage should be installed. Therefore, when the ACRC checked the parking lots of passenger terminals, railway stations, etc. where these facilities were installed, it was found that parking spaces reserved for persons with disabilities were installed without sufficient information such as a phone number for assistance, information about fines for obstructing parking, and a picture of the parking lot lines on the floor, causing confusion.

In response, the ACRC requested the Ministry of Health and Welfare to amend the 「Enforcement Decree of the Act On The Guarantee Of Convenience Promotion Of Persons With Disabilities, Senior Citizens, Pregnant Women And Nursing Mothers」 to allow the ① immediate spouse, ② spouse's immediate blood relatives, and ③ spouse's siblings,

who are family members under civil law, to receive a parking placard for their caregivers if they live with the disabled person. Therefore, the ACRC has requested the Ministry of Land, Infrastructure, Transport and Tourism to amend the 「Enforcement Decrees of the Act on Promotion of the Transportation Convenience of Mobility Disadvantaged Persons」 to ensure that the same installation standards for parking spaces reserved for persons with disabilities in the 「Act On The Guarantee Of Convenience Promotion Of Persons With Disabilities, Senior Citizens, Pregnant Women And Nursing Mothers」 that apply to general public facilities are applied to road and passenger facilities, which have caused public confusion due to different installation standards for similar facilities.

If the system of parking spaces reserved for persons with disabilities is improved through the process of amending the law, the various inconveniences and complaints that have arisen due to these systems will be resolved, improving the protection of persons with disabilities and the rights of the public. The ACRC will continue to actively work to eliminate blind spots that cause inconvenience to the disabled, the elderly, children, and other socially vulnerable groups.

3. Measures to revitalize social contribution projects for underfed children

In September 2021, the ACRC made recommendations to local governments nationwide on how to improve the child feeding system for the estimated 280,000 underfed children nationwide (as of 2022).

As a result, the unit price of child meal support by local governments, which was KRW 5,000 to KRW 9,000, will be increased from KRW 8,000 to KRW 9,000 by 2023. In addition, the design of the child meal card was changed to be the same as a regular card, so that the stigma that children felt when using the child meal card could be resolved.

However, the ACRC's further investigation revealed a number of cases in which the

information provided by local governments to facilitate children's access to school meal cards, such as the inclusion of non-operational restaurants or incorrect contact information, caused inconvenience.

In addition, there are restaurants that support underfed children through voluntary social contribution activities in the community, but the local government does not provide information about these restaurants, so children are not able to use them properly.

In response, the ACRC recommended that local governments across the country establish measures to prevent errors and omissions in the information of restaurants participating in the school lunch card, and that important information on the use of the school lunch card should not only be posted on websites, but also provided to children individually through text messages. It also recommended that local governments regularly check the status of restaurants that voluntarily support underfed children in their communities and provide relevant information to children.

The ACRC also introduced social contribution projects that some local governments, such as Seocho-gu and Sejong City, are implementing in partnership with local communities, and suggested that local governments take the initiative to identify and promote restaurants that support underfed children.

4. Measures to enhance the effectiveness of the traditional market fire prevention project

In the last five years (2017-2021), fires in traditional markets caused KRW 330 million in property damage per incident, about 18 times more than other fires. Of the 57 fires that occurred in traditional markets in 2021, 27 were caused by electrical factors, accounting for 47.4 percent.

In order to prevent fires in traditional markets, the government conducts annual electrical safety inspections of traditional markets and promotes projects to overhaul old power lines.

However, many traditional market stores are missing from the inspections, and even if they are in urgent need of maintenance projects, they are often excluded from the project or neglected.

The ACRC's survey found that stores that were missed in the initial electrical safety inspection were only inspected further if the owner of the store applied for it. Therefore, about 10% of stores were left uninspected every year due to the failure of the owner to apply for inspection.

In addition, as a result of safety inspections conducted in 2022, 1,849 (49.9%) of the 3,705 fire hazardous (Class E) stores that were determined to require immediate renovation did not improve their safety conditions. It was confirmed that projects to overhaul old power lines were not implemented for 770 (41.7%) of the 1,849 fire risk stores whose safety conditions were not improved due to problems with projects being promoted at the market level.

In response, the ACRC has made the following recommendations for improvement.

First of all, the ACRC has introduced a separate project promotion system for fire hazardous stores to ensure that fire hazardous stores are not left out of projects to overhaul old power lines.

To improve the effectiveness of projects to overhaul old power lines, the ACRC has also made it mandatory for projects to obtain design advice and post-construction inspections from a specialized organization, the Electrical Safety Corporation.

Finally, the ACRC has made it mandatory for stores that fail the first electrical safety inspection to undergo a second inspection. In addition, the ACRC has strengthened cooperation among relevant organizations, such as requiring local governments to notify electrical safety public corporations of improvement orders for fire hazardous stores to ensure compliance.



5. Measures to resolve the inconvenience of high-speed train users

Recently, there have been frequent complaints about the online mileage system, refunds, and delay information service of high-speed trains. Therefore, the ACRC has come up with a plan to improve the system through the e-People and the complaint analysis system.

First, the Korea Railroad Corporation automatically credited only one ticket's mileage to the purchaser when the user purchases two or more KTX tickets. In November 2021, the "Companion Mileage Savings System" was implemented, which allows travelers to earn mileage for the other ticket individually by applying for it.

However, many users lost the opportunity to earn miles because they did not realize that their companions had to apply separately to earn miles, and infants, children, and people with severe disabilities had difficulty signing up for membership and earning miles.

In response, the ACRC requested that the Korea Railroad Corporation strengthen its publicity efforts by posting information on companion mileage saving on its website and mobile app. It was recommended that the mileage of infants, children, and severely disabled travelers should be automatically credited to the purchaser.

Secondly, according to SRT's Passenger Conditions of Carriage, even if tickets were issued online and on mobile, refunds could only be made after the train departed by going to the station counter in person. Therefore, the ACRC recommended that this unreasonable rule be amended to allow refunds to be made online and on mobile even after the train departed.

Lastly, the ACRC recommended that the delay information provided on the in-station display boards and the ticket reservation list on the SRT mobile app be aligned, and that real-time delay information be displayed on SRT mobile tickets to reduce user confusion and inconvenience.

The Korea Railroad Corporation and SRT will implement the ACRC's recommendations by December 2024. The improvements are expected to increase the convenience of using high-speed train services.

6. Expansion of the validity period for official language test scores for national qualification examinations

Foreign language test providers such as TOEIC only recognized test takers' scores for a maximum of two years, and many national professional licensure exams require foreign language test scores to be submitted. As a result, test takers had to retake the test every two years to update their scores.

As the time and financial burden on test takers, including test preparation and examination fees, continues to increase, the examination for recruiting public officials has implemented a system to extend the validity period of scores from certified language tests.

* In the case of examinations for employment of public officials, 'the Decree On The Appointment Of Public Officials' was amended in 2021 to provide a five-year validity period for pre-registration of language test scores in the Ministry of Personnel Management's system (Cyber National Examination Center).

Since then, there has been an increase in requests for extending the validity period for official language test scores for national qualification examinations, as well as for examinations for employment of public officials, mainly from younger test takers.

In order to ease the financial burden on young people, the ACRC has decided to extend the validity period of language scores to five years for national qualification examinations that include foreign languages and substitute them for official language test scores.

